

*[Session Name]*

**Test-p3-01**

*[Case Name]*

**P3 (Evidence) 30 Dec 2025**

---

Exported By Alok jha

On

Feb 19, 2026



## Quick Mark

| Page              | Source Text                                                                                                     | Note | Issues |
|-------------------|-----------------------------------------------------------------------------------------------------------------|------|--------|
| <a href="#">1</a> | May I ask now the lead counsels to introduce himself and this hearing for today and the coming days by Lloyd... |      |        |

---

01 00:00:00 1, testing mic number 2 chairman,  
02 09:38:27  
03 09:38:27 (9.40 am)  
04 09:40:08 PRESIDENT: Good morning, ladies and gentlemen.  
05 09:40:10 I welcome you today for the first day of our  
06 09:40:14 proceedings.  
07 09:40:19 Let's introduce myself and my colleagues.  
08 09:40:20 My name is Omar Al Masri, I'm the chairman of the  
09 09:40:25 tribunal. To my right is Dr Salah Al Bashir, the  
10 09:40:31 arbitrator appointed by the claimant, and to my left is  
11 09:40:35 Dr Musleh Tarawneh, the arbitrator appointed by the  
12 09:40:39 respondent. Behind Dr Musleh is {"nm"}Ms Jude Al Masri,  
13 09:40:46 the secretary of the tribunal.  
14 09:40:48 For the record, these proceedings are transcribed  
15 09:41:03 and this hearing for today and the coming days by Lloyd  
16 09:41:08 Michaux, Ms Nicky Misso, and Mr Khent Manliguez.  
17 09:41:23 I take this opportunity to welcome you again, and  
18 09:41:27 for the record, Lloyd Michaux was agreed by both parties  
19 09:41:35 to perform this task of transcription.  
20 09:41:38 May I ask now the lead counsels to introduce himself  
21 09:41:50 and the members of his team.  
22 09:41:53 MR H KHIRFAN: Thank you, your Honour, thank you the  
23 09:41:58 honourable tribunal.  
24 09:41:58 {"^"}(Arabic spoken) everyone and Lloyd Michaux. My  
25 09:42:04 name is Hazem Khirfan and the team at Khirfan & Partners

---

---

01 09:42:10 advocates with me, {"^"nm}Ms Sasha Abaza, {"^"nm}so naz  
02 09:42:16 Khirfan and the representative of the JV in this  
03 09:42:19 arbitral tribunal {"^"nm}Ms Janet with us.  
04 09:42:22 And that's it.  
05 09:42:25 MR A NAJDAWI: Good morning, Mr Chairman.  
06 09:42:29 MR A NAJDAWI: First of all, thank you and we really happy  
07 09:42:29 First of all, thank you and we really happy that  
08 09:42:34 this case is being overseen by a tribunal with you as  
09 09:42:38 members. I'm here appearing on behalf of the  
10 09:42:41 respondent, my name is Ahmed Najdawi.  
11 09:42:44 {"^"nms>>}Sitting next to me in my right is the  
12 09:42:46 mentor and most recently Jordan lawyer of the year,  
13 09:42:50 Tha'er Najdawi.. To my left is {"^"nm}GAM's technical  
14 09:42:55 consultant who is Engineer Mohammed Al ba si. To his  
15 09:42:58 left is sha what Al car, who just recently took the oath  
16 09:43:02 and was sworn in. She's a member of the office of  
17 09:43:05 course. Next to her is Mahmoud el day yesterday, who is  
18 09:43:10 a trainee associate at our firm and next to him is  
19 09:43:14 engineer or architect what nar Al what dine zero GAM.  
20 09:43:18 She's the head of investments, I believe. Specific  
21 09:43:21 specific director of investment and supply chain. {"^"<<}  
22 09:43:23 PRESIDENT: You are welcome.  
23 09:43:26 And again, for the record, and we have also  
24 09:43:36 a trainee lawyer, who's joining Dr Musleh, Mr Faisal.  
25 09:43:43 SPEAKER: ^ck speaker) yeah. {"^"del?}

---

---

01 09:43:45 PRESIDENT: Nobody is objecting his presence?

02 09:43:49 MR H KHIRFAN: No objection.

03 09:43:54 MR A NAJDAWI: Not at all.

04 09:43:56 PRESIDENT: The attendees of both parties, the names of the

05 09:44:00 attendees, were exchanged between the parties and no

06 09:44:02 objection has been raised for this. This is for the

07 09:44:06 record.

08 09:44:06 Let me also, for the record also, tell you that we

09 09:44:15 are going to proceed with the hearing according to the

10 09:44:26 schedule decided by the tribunal and circulated

11 09:44:28 yesterday. As both counsels failed to provide the

12 09:44:34 tribunal with an agreed-upon schedule or to amend the

13 09:44:43 suggested schedule circulated to them during the

14 09:44:49 previous two weeks, the tribunal decided to proceed with

15 09:44:56 the schedule sent to you yesterday by the secretary.

16 09:45:00 We will start with a one-hour opening statement by

17 09:45:14 the claimant's counsel, and then a one-hour opening

18 09:45:20 statement by the respondent counsel, then we will have

19 09:45:25 a coffee break, followed by some clarification questions

20 09:45:31 from the tribunal to the lead counsels.

21 09:45:34 After that, we will start listening to the

22 09:45:44 testimonies of the claimant's fact witnesses, today we

23 09:45:49 will start with Mr Dimitrios Constantinidis, and for the

24 09:46:02 direct examination, cross-examination and re-direct

25 09:46:05 examination and to answer the tribunal's questions, and

---

---

01 09:46:11 we will conclude by him today.

02 09:46:13 For the next days, the subsequent days, the schedule

03 09:46:19 is we will start with the second witness of the

04 09:46:25 claimant, Mr Dimitrios Grammatas, and we will finish

05 09:46:35 with Mr Christodoulos Hadjidimoulas, Mr Haji, and we

06 09:46:54 will conclude the second day by this.

07 09:46:57 The third day we will start with the respondent's

08 09:47:07 fact witnesses and then we will go through the schedule

09 09:47:15 to the experts and the closing remarks.

10 09:47:17 So if there's nothing I missed or my colleagues want

11 09:47:25 to add or the counsels want to add, we will start with

12 09:47:30 your opening statement. The floor is yours, Mr Khirfan.

13 09:47:39 MR H KHIRFAN: Thank you. Just for the record, there will

14 09:47:41 be Powerpoint presentation presented on the screens,

15 09:47:45 because the plan was to have the projector, but because

16 09:47:49 this day we will have this room, so we opted to have it

17 09:47:53 on your screens during our opening.

18 09:47:56 MR T NAJDAWI: Objection. Any further submissions are not

19 09:47:59 allowed at any point now. Submitting a presentation or

20 09:48:06 visualising any document that has not been admitted

21 09:48:12 previously is objected. This is an opening statement.

22 09:48:19 It has to be presented orally with the capabilities that

23 09:48:25 I know {"^"wd}in Hazem to present without any further

24 09:48:29 visual effects.

25 09:48:29 MR A NAJDAWI: Mr Chairman, if I may add, this was at no

---

---

01 09:48:35 point agreed. In fact, there were calls between us as  
02 09:48:37 counsel saying that we will have no time to make  
03 09:48:40 presentations. In addition to that, as {"nm}Mr Their  
04 09:48:44 just said, the opening statement, as per the procedural  
05 09:48:47 rules, is expressly stated to be an opening which orally  
06 09:48:50 presents the submissions already made, and therefore,  
07 09:48:53 any further submissions in writing, whether visualised  
08 09:48:56 on the screen or submitted formally to the tribunal,  
09 09:49:01 this goes beyond the scope of what an opening statement  
10 09:49:05 should be {"wd}before procedural rules.  
11 09:49:08 (Tribunal confers)  
12 09:49:08 PRESIDENT: In this regard, ladies and gentlemen, the  
13 09:49:25 tribunal decided to allow the presentation which is part  
14 09:49:31 of the opening statement. The document itself is not be  
15 09:49:36 added to the file and nobody will have a copy of it.  
16 09:49:38 It is a part of the opening statement and you can  
17 09:49:45 consider it as an oral presentation. Just for  
18 09:49:52 presentation only.  
19 09:49:55 MR H KHIRFAN: Thank you.  
20 09:49:56 PRESIDENT: Tomorrow we will move to the next hall, which is  
21 09:50:00 more spacious, I think.  
22 09:50:02 MR H KHIRFAN: Yes, indeed.  
23 09:50:05  
24 09:50:06 {"ind}Opening submissions by MR KHIRFAN  
25 09:50:09 MR H KHIRFAN: This case is about breach of contract. It's

---

---

01 09:50:11 about a municipality that, having received nine years of  
02 09:50:15 successful service from a foreign contractor, decided to  
03 09:50:18 avoid its payment obligations, obstruct the contractor's  
04 09:50:23 legitimate claims, and then, when called to account,  
05 09:50:27 manufacture a series of counterclaims designed not to  
06 09:50:30 recover genuine losses but to create leverage and offset  
07 09:50:34 its own liabilities.

08 09:50:35 The claimant, a Greek joint venture of experienced  
09 09:50:42 engineering companies, designed, built and operated  
10 09:50:45 a landfill gas recovery and power generation system at  
11 09:50:51 Ghabawi landfill in Amman, Jordan. For over nine years,  
12 09:50:54 the claimant performed its obligations diligently,  
13 09:50:58 professionally and to the satisfaction of the owner and  
14 09:51:01 its engineers.

15 09:51:02 The project was financed by the World Bank and then  
16 09:51:07 European Bank for Reconstruction and Development. It  
17 09:51:11 was completed on time. It generated clean energy for  
18 09:51:16 Jordan's national grid. It received operational  
19 09:51:20 acceptance certificates for all four phases,  
20 09:51:25 certificates signed by GAM itself without reservations.

21 09:51:29 Yet the claimant now finds itself before this  
22 09:51:34 tribunal owed substantial sums, facing wall of baseless  
23 09:51:41 counterclaims and confronting evidence that, as the  
24 09:51:43 tribunal will see, has been manufactured for these  
25 09:51:47 proceedings.

---



---

01 09:51:47 Before we proceed further, we draw the tribunal's  
02 09:51:53 attention to a matter of fundamental importance. GAM  
03 09:51:56 has submitted four witness statements: respondent  
04 09:52:01 witness statement 1 through respondent statement 4.  
05 09:52:04 Upon examination, the tribunal will observe that  
06 09:52:09 respondent witness 2 to respondent witness statement 4  
07 09:52:14 are substantially identical documents. The portions  
08 09:52:19 addressing GAM's counterclaims are word for word,  
09 09:52:24 paragraph for paragraph, the same. Three different  
10 09:52:27 individuals have signed what is, in substance, a single  
11 09:52:31 text. This is not witness testimony. This is  
12 09:52:37 a template prepared by GAM and presented for signature.  
13 09:52:39 We will return to this point, but it sets the tone  
14 09:52:44 for GAM's entire approach to this arbitration: when the  
15 09:52:49 facts do not support its position, GAM manufactures the  
16 09:52:53 evidence and twists the facts.  
17 09:52:55 The original contract number 23/1/2010 was signed on  
18 09:53:04 20 February 2012. Following claimant's termination of  
19 09:53:09 the contract in November 2014, the parties entered into  
20 09:53:15 2015 agreement for phase 2, followed by the 2017  
21 09:53:20 agreement for phase 3 and the 2019 agreement for  
22 09:53:25 phase 4. The governing law is Jordanian. The seat of  
23 09:53:30 this arbitration is Amman.  
24 09:53:31 The contract required the claimant to design and  
25 09:53:36 construct gas collection infrastructure, build a power

---

---

01 09:53:41 generation facility and operate the system for a defined  
02 09:53:44 period.  
03 09:53:44 The original scope was expanded, ultimately  
04 09:53:50 encompassing four landfill sites. Critically,  
05 09:53:53 {"nm}cell 4 was not part of the original tender. It  
06 09:53:57 was added by direct award only and upon signing the 2019  
07 09:54:03 agreement in June 2019, after the power plant had  
08 09:54:08 already reached operational acceptance in May 2019.  
09 09:54:12 The contract ended was 30 May 2021. While brief  
10 09:54:21 extensions of operational services were subsequently  
11 09:54:23 agreed for June and July 2021, formalised retroactively  
12 09:54:29 by variation order number 10 in February 2022, the  
13 09:54:33 contract ended by its own terms, not by termination or  
14 09:54:39 dispute.  
15 09:54:39 The claimant performed. It completed phase 1,  
16 09:54:45 phase 2, phase 3 and phase 4. For each phase, the  
17 09:54:50 {"}/}design build engineer certified completion. For  
18 09:54:55 each phase, GAM issued operational acceptance  
19 09:54:59 certificate. Not one of these certificates contains  
20 09:55:04 a reservation of defect.  
21 09:55:05 The defect liability period expired, the last one  
22 09:55:10 in January 2022, without GAM requesting correction of  
23 09:55:16 any defect under the contractual procedures.  
24 09:55:20 I'll turn now to the claims and I'll start by GAM's  
25 09:55:27 failure to secure tax exemptions.

---

---

|    |          |                                                         |
|----|----------|---------------------------------------------------------|
| 01 | 09:55:29 | Under GCC 5.6, GAM had an obligation to secure tax      |
| 02 | 09:55:38 | exemptions for the claimant's benefit to the maximum    |
| 03 | 09:55:43 | allowable extent. The 2015 agreement strengthened this. |
| 04 | 09:55:50 | GAM was to request the tax exemptions for the coming    |
| 05 | 09:55:55 | phases of the project based on the type of project.     |
| 06 | 09:55:58 | This was in reference to bylaw number 13/2015, which    |
| 07 | 09:56:05 | provided four exemptions and allowances in respect of   |
| 08 | 09:56:10 | inputs for renewable energy systems.                    |
| 09 | 09:56:13 | The 2017 and 2019 agreements went further still. If     |
| 10 | 09:56:19 | exemptions were delayed, GAM was to pay the taxes       |
| 11 | 09:56:24 | directly and seek reimbursement from the authorities.   |
| 12 | 09:56:29 | The contract price was calculated on the assumption     |
| 13 | 09:56:33 | these exemptions would be obtained.                     |
| 14 | 09:56:35 | GAM will try to suggest that the claimant drove the     |
| 15 | 09:56:43 | exemption process, that GAM just responded to what the  |
| 16 | 09:56:47 | claimant asked for, and because those requests did not  |
| 17 | 09:56:52 | mention design and consultancy services, GAM's          |
| 18 | 09:56:55 | obligations did not extend that far. This is not what   |
| 19 | 09:57:00 | happened.                                               |
| 20 | 09:57:00 | GAM, identified by Law Number 13/2015, handled          |
| 21 | 09:57:06 | communications with the ministries and relevant         |
| 22 | 09:57:09 | authorities and ran the exemption process. GAM's own    |
| 23 | 09:57:13 | design build engineer wrote in exhibit R-043 that GAM   |
| 24 | 09:57:19 | would take care of the applications and would only      |
| 25 | 09:57:25 | contact the claimant when it needed supporting          |

---

---

01 09:57:28 information.

02 09:57:28 When GAM later asked for specific lists and

03 09:57:33 technical data, the claimant provided them. What the

04 09:57:38 claimant provided were inputs to a process GAM

05 09:57:41 controlled. They didn't define the scope of GAM's duty

06 09:57:46 under GCC 5.6, let alone limit it.

07 09:57:49 Under Jordanian law, obligation are categorised

08 09:57:54 either as obligations of result or as obligations of

09 09:57:58 means. GAM failed under both standards.

10 09:58:02 Faced with the clear wording of GCC 5.6, GAM

11 09:58:09 reiterates into pre-contract history: what the claimant

12 09:58:13 supposedly did or did not flag in 2014 and 2015, how it

13 09:58:20 justified its bid escalation, how it described taxes on

14 09:58:25 goods as opposed to services.

15 09:58:27 None of this can rewrite the contract. Once the

16 09:58:31 parties agreed in the 2015 agreement that GAM would

17 09:58:35 obtain exemptions to the maximum allowable extent and

18 09:58:40 codified that obligation in writing, the claimant was

19 09:58:44 entitled to organise its affairs on that basis.

20 09:58:46 Under Jordanian law, where the contractual text is

21 09:58:52 clear, it is not cut down by prior negotiations or

22 09:58:56 unilateral expectations. GAM cannot now rely on

23 09:59:01 fragments of pre-contract conduct to narrow an

24 09:59:04 obligation that the contract itself states in

25 09:59:08 unconditional terms.

---

---

01 09:59:09 If GCC 5.6 imposes an obligation of result, the  
02 09:59:15 question is simple: did GAM secure exemptions to the  
03 09:59:21 maximum allowable extent?  
04 09:59:23 It did not.  
05 09:59:31 materials and design and consultancy services. GAM  
06 09:59:36 secured exemptions for materials. It never secured --  
07 09:59:41 indeed, never properly applied for -- exemptions for  
08 09:59:44 services. The result was not achieved.  
09 09:59:47 If GCC 5.6 imposes an obligation of means, the  
10 09:59:53 question becomes: did GAM exercise such care, diligence  
11 09:59:59 and caution that a person in like circumstances would to  
12 10:00:05 achieve the contractual objective?  
13 10:00:07 It did not.  
14 10:00:07 It did not.  
15 10:00:14 encompassed the full scope of exemptions, but GAM never  
16 10:00:19 followed up on services.  
17 10:00:20 Every subsequent application was limited to  
18 10:00:24 materials. When the committee's approval came back  
19 10:00:28 covering only materials, GAM did not query the omission.  
20 10:00:33 It did not inform the claimant that services had been  
21 10:00:37 excluded. It did not re-submit one application without  
22 10:00:42 follow-up, followed by years of silence. Is not  
23 10:00:46 reasonable effort.  
24 10:00:46 GAM will say the claimant knew the exemption  
25 10:00:53 excluded services. This is false. GAM never provided

---

---

01 10:00:58 the claimant with copies of its narrowed applications or  
02 10:01:02 the committee's decisions. The claimant learned the  
03 10:01:07 truth only in 2021, when the ISTD demanded payment.  
04 10:01:11 GAM will say the claimant never asked for services  
05 10:01:16 to be included. This misses the point. The obligation  
06 10:01:20 was GAM's to secure exemptions to the maximum allowable  
07 10:01:24 extent. GAM knew or should have known that services  
08 10:01:30 were covered by Law Number 13/2015.  
09 10:01:33 GAM never asked the claimant whether it required an  
10 10:01:39 exemption on design and consultancy services. GAM never  
11 10:01:43 informed the claimant that the lists it was providing  
12 10:01:46 would be the exclusive base for GAM's application.  
13 10:01:49 The burden was not on the claimant to volunteer  
14 10:01:54 information. The burden was on GAM to fulfil its  
15 10:01:58 contractual duty.  
16 10:01:58 GAM will say the claimant should have pursued  
17 10:02:08 recourse against ISTD. But the ISTD's position was  
18 10:02:13 legally correct. No exemption had been granted for  
19 10:02:18 services because GAM never applied for one.  
20 10:02:22 The claimant's resource is not against the tax  
21 10:02:26 authorities. It is against the party that breached its  
22 10:02:31 contractual obligation.  
23 10:02:31 The claimant's damages fall into two periods.  
24 10:02:38 For services imported before the amending by law of  
25 10:02:42 2018 came into effect, the claim is straightforward

---

---

01 10:02:47 breach of contract. GAM failed to secure an exemption  
02 10:02:51 that was available under the law.  
03 10:02:52 For services imported after 2018, when the amending  
04 10:02:59 by law repealed the services exemptions, the claimant  
05 10:03:04 advances an alternative basis. Because the 2015  
06 10:03:08 agreement constitute a new contract following the  
07 10:03:12 claimant's termination of contract number 23/1/2010,  
08 10:03:18 in November 2014, the benchmark date under GCC 5.63 and  
09 10:03:24 9.10 is the claimant's proposal of 25 November 2015, not  
10 10:03:30 the original 2010 bid.  
11 10:03:33 The contract price was based on the tax framework  
12 10:03:37 then in effect, which included, by Law Number 13/2015,  
13 10:03:46 the 2018 repeal of service exemptions constitutes  
14 10:03:49 a change in law entitling the claimant to an equitable  
15 10:03:54 adjustment.  
16 10:03:54 The claimant claims approximately 1,150,000  
17 10:04:02 Jordanian dinars plus interest.  
18 10:04:04 GAM tries to cast doubt on the claimant's damages by  
19 10:04:08 pointing to the bid breakdown, which showed only  
20 10:04:13 3,350,000 Jordanian dinars for design engineering and  
21 10:04:20 did not separately list consultancy services. GAM says  
22 10:04:24 this proves the claimant couldn't have imported the  
23 10:04:28 volume of services it now claims to have paid sales tax  
24 10:04:32 on.  
25 10:04:32 This misunderstands how lump-sum contracts work.

---

---

01 10:04:37 The contract price paid by GAM is a fixed sum for  
02 10:04:43 the entire scope. The proposal breakdown is just  
03 10:04:47 a pricing tool. It does not cap what the claimant can  
04 10:04:52 spend or what kind of inputs it can use to get the job  
05 10:04:56 done.  
06 10:04:56 You may hear GAM make many baseless arguments to  
07 10:05:02 defend its indefensible breach. GAM may even try to  
08 10:05:07 argue that the claimant never actually expected an  
09 10:05:11 exemption on services. It is important to keep one  
10 10:05:15 central fact in mind. The claimant, relying that GAM  
11 10:05:20 had fulfilled its contractual obligations, deducted and  
12 10:05:24 remitted withholding tax on certain payments and it did  
13 10:05:29 not charge sales tax on them.  
14 10:05:31 This is precisely the pattern that triggered the  
15 10:05:36 ISTD's later assessment shown in exhibit C-531. GAM's  
16 10:05:42 version of events would require the tribunal to believe  
17 10:05:46 that the claimant, despite knowing that GAM never  
18 10:05:49 procured the full exemptions, deliberately left itself  
19 10:05:53 exposed to obvious sales tax liability on millions of  
20 10:05:57 dinars of services for no commercial benefit.  
21 10:06:00 That is not a serious explanation. It is an attempt  
22 10:06:04 to avoid the consequences.  
23 10:06:06 We will address now GAM's failure to compensate for  
24 10:06:13 defence law impacts, claim 2.  
25 10:06:16 This claim does not arise from Covid-19. The

---



---

01 10:06:23 pandemic alone did not prevent performance. What  
02 10:06:29 stopped the works and caused the claimant to incur these  
03 10:06:33 costs was the National Defence Law, a legal instrument  
04 10:06:39 enacted by the Jordanian government beginning  
05 10:06:42 17 March 2020 and all orders, communiques, ordnance and  
06 10:06:50 directives issued at the time to respond to the  
07 10:06:53 pandemic.  
08 10:06:54 These were among the strictest measures in the  
09 10:06:54 These were among the strictest measures in the  
10 10:06:57 world. Jordan ranked 100 out of 100 on the worldwide  
11 10:07:04 Government Response Stringency Index. Borders closed.  
12 10:07:10 Movement between governorates was prohibited. Foreign  
13 10:07:15 personnel, including the claimant's key technical staff,  
14 10:07:19 could not enter or leave. Construction was legally  
15 10:07:23 prohibited.  
16 10:07:23 The distinction matters. In jurisdiction that did  
17 10:07:30 not impose comparable legal restrictions, construction  
18 10:07:34 project continued with appropriate health precautions.  
19 10:07:39 The pandemic created a public health challenge. The  
20 10:07:44 defence law created a legal prohibition.  
21 10:07:46 The claimant could have implemented safety protocols  
22 10:07:52 and continued working. The law forbade it.  
23 10:07:55 GCC 9.10 entitles the claimant to adjustment of the  
24 10:08:02 contract price when laws, regulations or similar  
25 10:08:05 instruments are enacted after the baseline date affect

---

---

01 10:08:10 its cost.

02 10:08:11 This provision operates independently of the force

03 10:08:18 majeure clause.

04 10:08:18 The defence law is a law. It was combined with

05 10:08:24 various orders. These were enacted after the baseline

06 10:08:31 date. It affected the claimant's cost. The claimant's

07 10:08:36 entitlement arises under GCC 9.10, not because of the

08 10:08:41 pandemic but because of the government's regulatory

09 10:08:45 response to it.

10 10:08:45 GAM argues that GCC 9.10(6) bars additional payment

11 10:08:53 because the claimant received a time extension under

12 10:08:56 force majeure. This conflates two distinct events.

13 10:09:01 GCC 9.8 addresses events beyond a party's control, the

14 10:09:07 pandemic itself. GCC 9.10 addresses changes in law, the

15 10:09:12 defence law and related instruments.

16 10:09:14 The DB engineer himself acknowledged this dual

17 10:09:19 effect. The claimant properly invoked both provisions

18 10:09:23 because both applied to different aspects of the

19 10:09:27 situation: force majeure for the extension, change in

20 10:09:32 law for the cost recovery. Had the contract intended to

21 10:09:39 exclude from GCC 9.10 any change in law triggered by

22 10:09:42 a force majeure event, it would have said so. It did

23 10:09:47 not.

24 10:09:47 The DB engineer reviewed the claimant's claim and

25 10:09:52 accepted its merits. The only dispute was quantum. The

---

---

01 10:09:57 engineer proposed a 50 per cent reduction, which the  
02 10:10:01 claimant contested, but entitlement was acknowledged.  
03 10:10:05 The claimant claims approximately 548,000 euro and  
04 10:10:13 293,000 Jordanian dinars plus interest.  
05 10:10:16 GAM seeks to discredit the quantum by pointing the  
06 10:10:21 differences between the amounts now claimed and the  
07 10:10:24 interim figures submitted during the project.  
08 10:10:28 Again, this criticism is misplaced.  
09 10:10:28 Again, this criticism is misplaced. An interim  
10 10:10:34 claim advanced while a contractual relationship is  
11 10:10:36 ongoing does not necessarily represent a party's full  
12 10:10:41 entitlements. It reflects what that party considers  
13 10:10:44 capable of being resolved within the existing  
14 10:10:47 relationship at that time.  
15 10:10:48 At every stage, prior to arbitration, the claimant  
16 10:10:53 advanced figures significantly below its actual cost, in  
17 10:10:58 a genuine spirit of compromise and good faith. GAM  
18 10:11:03 rejected even those reduced figures, contrary to its own  
19 10:11:07 design build engineer's recommendations and obstructed  
20 10:11:11 each attempt at consultation and adjudication.  
21 10:11:15 GAM's refusal to engage left arbitration as the only  
22 10:11:21 avenue. Having forced the claimant's hands, GAM cannot  
23 10:11:25 now complain that the claimant seeks recovery of its  
24 10:11:28 full costs. Importantly, GAM does not say that the  
25 10:11:33 underlying costs were not incurred or are not

---

---

01 10:11:37 recoverable.

02 10:11:37 It complains only that the final quantification is

03 10:11:43 more comprehensive than interim figures. If there is

04 10:11:47 a difference, it is the product of GAM's own choices.

05 10:11:53 With respect to the unpaid invoices, claim 3.

06 10:11:56 The contract end date was 30 May 2021. As that date

07 10:12:05 approached, GAM was not ready to take over operations.

08 10:12:10 It had no subsequent operator in place. It requested

09 10:12:16 repeatedly that the claimant extend its services while

10 10:12:20 GAM evaluated proposals for one, two or three-year

11 10:12:25 continuation.

12 10:12:26 The claimant was reluctant. It had warned GAM for

13 10:12:31 months that spare parts and consumables were running

14 10:12:37 low, the major maintenance was due, and that continued

15 10:12:41 operation beyond the contract end date would require

16 10:12:46 advance planning and funding that GAM had not provided.

17 10:12:49 But GAM pressed, so the operator conceded in good

18 10:12:56 faith. The parties agreed to an extension for the month

19 10:12:59 of June 2021 on certain conditions.

20 10:13:04 In a conference call on 28 June 2021, chaired by the

21 10:13:04 In a conference call on 28 June 2021, chaired by the

22 10:13:09 city manager of Amman himself, GAM requested another

23 10:13:13 month. The claimant agreed, but on modified terms. It

24 10:13:19 would maintain the landfill facilities and operate the

25 10:13:23 flare but not the power plant, which could no longer be

---

---

01 10:13:27 safety run without the spare parts GAM had failed to  
02 10:13:31 procure.  
03 10:13:31 GAM accepted. The claimant performed, and on  
04 10:13:39 1 February 2022, GAM issued variation order number 10  
05 10:13:46 retroactively approving the July 2021 operational  
06 10:13:49 services and the associated costs.  
07 10:13:52 The unpaid invoices also include additional works  
08 10:13:58 that GAM itself requested. Accumulated leachate and  
09 10:14:03 overflowing waste from adjacent cells were covering the  
10 10:14:07 gas wells threatening the integrity of the landfill gas  
11 10:14:12 collection system. The claimant was asked to extend gas  
12 10:14:17 wells and carry out remedial measures to address  
13 10:14:21 problems caused by conditions outside its control.  
14 10:14:25 These additional works were proposed, reviewed and  
15 10:14:28 approved also under variation order number 10.  
16 10:14:31 GAM requested the services, the claimant performed  
17 10:14:38 them, GAM issued the variation order approving them and  
18 10:14:43 then GAM refused to pay.  
19 10:14:45 The amounts are modest, approximately 47,000 euros  
20 10:14:53 and 67,000 Jordanian dinars, but the principle matters.  
21 10:14:58 GAM requested services, it received those services; it  
22 10:15:04 must pay for them.  
23 10:15:04 For the late payment interest, claim 4.  
24 10:15:11 GAM was on numerous occasions late in settling  
25 10:15:14 payments due under the contract. Late payment interest

---

---

|    |          |                                                          |
|----|----------|----------------------------------------------------------|
| 01 | 10:15:19 | accrues under the contract at JIBOR plus 3 per cent for  |
| 02 | 10:15:25 | Jordanian dinars amounts and LIBOR plus 3 per cent for   |
| 03 | 10:15:28 | euro amounts. The claimant claims approximately 22,000   |
| 04 | 10:15:32 | euros and 93,000 Jordanian dinars in accrued interest.   |
| 05 | 10:15:37 | On the obstruction of dispute resolution, claim 5.       |
| 06 | 10:15:43 | The contract provides for a tiered dispute resolution    |
| 07 | 10:15:49 | mechanism: consultation, adjudication, then arbitration. |
| 08 | 10:15:52 | When disputes arose, the claimant sought to invoke this  |
| 09 | 10:15:57 | mechanism. GAM's response: obstruction.                  |
| 10 | 10:16:01 | GAM admitted in its own correspondence that              |
| 11 | 10:16:08 | adjudication was useless. It proposed skipping the       |
| 12 | 10:16:14 | contractual procedure entirely. When the claimant        |
| 13 | 10:16:19 | persisted, GAM refused to agree on terms for             |
| 14 | 10:16:22 | adjudication agreement. The claimant incurred costs      |
| 15 | 10:16:26 | attempting to comply with a procedure that GAM had no    |
| 16 | 10:16:31 | intention of honouring. Those costs are recoverable.     |
| 17 | 10:16:35 | For claim 6, the bad faith conduct.                      |
| 18 | 10:16:40 | After the contract ended, GAM refused to provide the     |
| 19 | 10:16:45 | claimant with assistance to renew its registration as    |
| 20 | 10:16:49 | a foreign operating company in Jordan. As a direct       |
| 21 | 10:16:53 | result, the claimant's bank accounts became dormant.     |
| 22 | 10:16:59 | GAM also refused to provide experience certificate for   |
| 23 | 10:17:03 | work performed, certificates routinely provided to       |
| 24 | 10:17:07 | contractors and necessary for future bids. This was      |
| 25 | 10:17:10 | punitive conduct designed to pressure the claimant and   |

---

---

01 10:17:14 it caused real harm.

02 10:17:15 The fourth narrative of abandonment. GAM's case

03 10:17:28 rests on a fiction that the claimant abandoned the

04 10:17:33 project. This word appears repeatedly in GAM's

05 10:17:39 pleadings. It is designed to evoke images of

06 10:17:43 a contractor walking off the site, leaving chaos behind

07 10:17:48 it.

08 10:17:48 It is false. The contract end date was 30 May 2021.

09 10:17:48 It is false.

10 10:17:56 did not have an operator ready to undertake operations

11 10:17:59 at that date, GAM repeatedly requested from the claimant

12 10:18:05 short extensions to the operation services.

13 10:18:07 The claimant conceded, though reluctantly, to extend

14 10:18:14 until 31 July 2021 on certain amended terms, on the

15 10:18:20 basis that GAM needed time to evaluate the proposals it

16 10:18:25 had solicited from the claimant.

17 10:18:26 GAM agreed to these amended terms. The claimant

18 10:18:30 tenure thereafter ended on 31 July 2021, having

19 10:18:37 fulfilled all obligation required of it. Therefore, the

20 10:18:43 contract ended on its terms. This is not abandonment.

21 10:18:49 This is a contract completion. In fact, it was GAM that

22 10:18:55 abruptly and unilaterally required the claimant to

23 10:18:58 vacate the site only three days' notice, on only three

24 10:19:04 days' notice, and it was GAM that, after handover on

25 10:19:08 1 August 2021, refused for the operator to re-enter the

---

---

01 10:19:13 site.

02 10:19:13 The claimant went further than the contract

03 10:19:16 required. It developed and submitted the transition

04 10:19:20 plan under OSA 2.2(1). It trained GAM's personnel in

05 10:19:27 all aspects of operations and maintenance as required

06 10:19:31 under OSA 4.6. It even trained the subsequent

07 10:19:36 operator's personnel, which it had no contractual

08 10:19:41 obligation to do. The contract required training GAM's

09 10:19:46 staff, not any successor. When the DB engineer

10 10:19:51 requested it, the claimant reconducted that training

11 10:19:55 in June 2021, after the contract end date.

12 10:19:59 If GAM believed, as it now alleges, that the

13 10:20:04 claimant performed so poorly throughout the project, its

14 10:20:09 conduct tells a different story.

15 10:20:14 Why did GAM award cell 4 to the claimant by direct

16 10:20:14 Why did GAM award cell 4 to the claimant by direct

17 10:20:19 award in 2019 without competitive tender?

18 10:20:24 Why did GAM request the claimant to extend its

19 10:20:27 services beyond the contract end date, not once, but

20 10:20:32 twice?

21 10:20:32 Why did GAM not invoke its contractual remedies

22 10:20:39 during the defect liability period, when it had every

23 10:20:43 opportunity to inspect, identify defects and demand

24 10:20:47 correction?

25 10:20:47 Why did GAM wait until July 2024, three years after

---



---

01 10:20:56 handover, to file counterclaims alleging defects it knew  
02 10:21:01 existed at the latest by August 2021?  
03 10:21:05 GAM took possession of the site. It inspected the  
04 10:21:10 facilities. It assumed operations. If these defects  
05 10:21:15 were real, GAM knew them at that time. Its delay in  
06 10:21:21 raising them is not merely procedural, it is fatal to  
07 10:21:26 its counterclaims.  
08 10:21:26 The answer is obvious. There was no abandonment.  
09 10:21:32 There were no material defects. GAM's counterclaims are  
10 10:21:38 an afterthought, a litigation tactic designed to offset  
11 10:21:44 its own liability.  
12 10:21:45 GAM's counterclaims are time-barred and  
13 10:21:55 unsubstantiated.  
14 10:21:57 The claimant has filed motions to dismiss GAM's  
15 10:21:57 counterclaims on time limitation grounds. Under  
16 10:22:10 article 791 of the Jordanian Civil Code, claims arising  
17 10:22:15 from defects in construction works must be brought  
18 10:22:20 within one year of discovery.  
19 10:22:22 GAM alleges it discovered defects in August 2021,  
20 10:22:29 upon receiving the site from the claimant. It filed its  
21 10:22:33 counterclaims in July 2024, nearly three years later.  
22 10:22:37 GAM's suggestion that article 791 of the Civil Code  
23 10:22:44 applies only to decennial liability under article 788 to  
24 10:22:51 791 and not to its own counterclaims, is not only  
25 10:22:58 strained; it is legally incoherent and detached from how

---

---

01 10:23:02 its case is actually pleaded.

02 10:23:04 The contract is a mixed contract, ({^"}Arabic

03 10:23:08 spoken), but the substance of the majority of GAM's

04 10:23:12 counterclaims is clear. They allege defects in the

05 10:23:15 design build services, not shortcomings in the operation

06 10:23:20 services.

07 10:23:20 Those design build obligations fall within the

08 10:23:25 contracting contract, ({^"}Arabic spoken), of the

09 10:23:28 regime of the Civil Code and are therefore subject to

10 10:23:32 that regime's mandatory rules, including the one-year

11 10:23:36 limitation period in article 791, running from the date

12 10:23:41 of discovery of the alleged defect.

13 10:23:43 GAM cannot invoke design build type breaches, seek

14 10:23:50 design build type remedies and then attempt to escape

15 10:23:55 the Civil Code's contracting contract framework by

16 10:23:58 simply relabelling those same allegations as generic

17 10:24:03 contractual breach claims.

18 10:24:04 Properly understood, a claim under the contracting

19 10:24:09 contracts provision is itself a contractual breach

20 10:24:12 claim. GAM's theory would lead to the absurd result

21 10:24:17 that the Civil Code's dedicated construction contract

22 10:24:22 rules somehow regulate non-contractual liability while

23 10:24:26 leaving ordinary contractual liability entirely outside

24 10:24:31 any limitation regime.

25 10:24:33 This is not the law.

---

---

01 10:24:40 while the factual matrix is still reliable. Documents  
02 10:24:45 and memories are intact and causation can still be  
03 10:24:49 proved.  
04 10:24:49 GAM did the opposite. It waited nearly three years  
05 10:24:55 after accepting the site and the new facility  
06 10:24:58 in August 2021, during which time its own subsequent  
07 10:25:03 operator, by GAM's admission in exhibit R-222, carried  
08 10:25:09 out extensive works and interventions.  
09 10:25:12 Having allowed the defect liability periods to  
10 10:25:16 expire without using the contractual procedures and  
11 10:25:19 having sat on its alleged defects while a different  
12 10:25:23 operator materially altered the facility, GAM cannot  
13 10:25:28 credibly ask this tribunal to reconstruct causation back  
14 10:25:32 to the operator's design build works.  
15 10:25:34 That is precisely the legal and evidentiary  
16 10:25:40 unfairness article 791 is designed to prevent and GAM's  
17 10:25:46 counterclaims C1 to C9 are time-barred on that basis.  
18 10:25:50 Counterclaim C12 concerning customs reimbursement is  
19 10:25:59 time-barred for a different but equally straightforward  
20 10:26:03 reason. This will be expanded on later.  
21 10:26:06 In substance, the counterclaims lack merit. On the  
22 10:26:15 engines claim, C1, GAM makes several allegations under  
23 10:26:19 C1. They all share the same flaw. What GAM has done is  
24 10:26:27 to string together isolated incidents over a long period  
25 10:26:33 of continuous operation and present them as evidence of

---

---

01 10:26:38 systematic defects, when in truth each incident was  
02 10:26:42 either routine maintenance, already remedied or outside  
03 10:26:47 the operator's response as explained in the operator's  
04 10:26:52 defence to the counterclaim and its rejoinder.  
05 10:26:53 Events of that kind are inherent in the operation of  
06 10:26:59 any complex industrial engine and are expressly  
07 10:27:04 contemplated by the operation services regime. They do  
08 10:27:08 not evidence a failure in design, construction or in  
09 10:27:13 discharging contractual obligations.  
10 10:27:14 This is confirmed by GAM's own documents. Even on  
11 10:27:21 the specific short block allegation, which is the only  
12 10:27:25 material issue that arose during the operator's tenure,  
13 10:27:29 the operator addressed this, and thereafter exhibit  
14 10:27:32 C-079 records that the power plant reach a normal  
15 10:27:37 operation running at some 90 per cent of the maximum  
16 10:27:41 power capacity.  
17 10:27:42 This is incompatible with the picture of the  
18 10:27:47 defective unit, and critically the May 2021 service  
19 10:27:53 report prepared by Iltekno, annexed to the May 2021  
20 10:27:59 operation report, which is exhibit R-116, shows that all  
21 10:28:03 three engines were in good operational condition as  
22 10:28:07 of May 2021. This remained the case until handover on  
23 10:28:14 31 July 2021.  
24 10:28:16 Against that background, GAM cannot credibly  
25 10:28:22 maintain a story of latent systematic engine defects

---

---

01 10:28:26 while its own records, its subsequent operator's  
02 10:28:30 continued use and the Iltekno service findings all  
03 10:28:33 points in the opposite direction.  
04 10:28:35 Hydrogen sulphide, C2, which is the H2S.  
05 10:28:45 GAM's central allegation is that given the high H2S  
06 10:28:51 levels recorded in cell 4 in late 2020, the operator  
07 10:28:54 should have installed an additional dedicated H2S  
08 10:28:58 treatment facility as part of the landfill gas to power  
09 10:29:02 system.  
10 10:29:02 This is wrong, both legally and technically. It is  
11 10:29:08 important to note that the power plant was designed and  
12 10:29:12 constructed under phase 3. Even if such an additional  
13 10:29:18 H2S treatment facility had been required, as GAM now  
14 10:29:23 claims, it would have fallen squarely within the design  
15 10:29:27 build services for phase 3.  
16 10:29:28 The power plant, including the choice of gas  
17 10:29:33 treatment facilities, was fully designed based on  
18 10:29:37 verified gas data from cells 1 to 3 being the only cells  
19 10:29:42 then within scope.  
20 10:29:42 This design was approved by GAM's design build  
21 10:29:49 engineer. After construction was finished, operational  
22 10:29:54 acceptance was granted in May 2019 and the defects  
23 10:29:59 liability period expired long ago. Cell 4 was only  
24 10:30:05 brought into the operator's scope with signing of the  
25 10:30:09 2019 agreement in June 2019. After construction of

---

---

01 10:30:14 cell 4 was finished, the issue with high H2S level in  
02 10:30:20 cell 4 appeared in December 2020.  
03 10:30:22 GAM now attempts to use what happened later in  
04 10:30:28 cell 4, which came in phase 4, to reopen and re-litigate  
05 10:30:33 design choices in phase 3. This is untenable.  
06 10:30:37 One might wonder why cell 4 faced an issue with high  
07 10:30:44 H2S, when this was never an issue for cells 1 to 3.  
08 10:30:50 The composition of the waste deposited in the cell  
09 10:30:55 is the answer. Scientific consensus, as well as  
10 10:30:59 commonsense, dictate that the composition of the  
11 10:31:03 landfill gas is dictated by the underlying waste stream.  
12 10:31:09 Municipal solid waste does not produce this level of  
13 10:31:14 H2S. Construction and demolition waste, on the other  
14 10:31:19 hand, does.  
15 10:31:19 GAM is responsible for waste management in the  
16 10:31:25 landfill and expressly represented that it only accepts  
17 10:31:30 municipal solid waste and does not accept construction  
18 10:31:34 and demolition waste into Ghabawi.  
19 10:31:39 Given that cells 1 to 3 never phased this issue, and  
20 10:31:39 Given that cells 1 to 3 never phased this issue, and  
21 10:31:43 the scientific consensus is that H2S can only be caused  
22 10:31:47 by certain waste composition, there is no credible  
23 10:31:52 explanation for a cell 4-specific H2S spike other than  
24 10:31:57 that the waste composition in cell 4 is different,  
25 10:32:02 specifically, that it materially deviated from the

---

---

01 10:32:06 municipal waste profile that GAM had always represented  
02 10:32:10 and most possibly included construction and  
03 10:32:14 demolition-type materials.  
04 10:32:15 The high H2S levels is therefore directly caused by  
05 10:32:21 GAM's own waste management practices diverging from its  
06 10:32:27 contractual specifications.  
07 10:32:28 There is no evidence for GAM's story about  
08 10:32:32 verification failures or alleged concealment. The  
09 10:32:36 operator's gas verification during phase 3 focused, as  
10 10:32:40 the contract required, on cells 1 to 3. The  
11 10:32:44 contemporaneous record shows a transparent process. H2S  
12 10:32:48 readings from cells 1 to 3 were disclosed and checked by  
13 10:32:53 DB engineer. The manufacturer confirmed a 750PPM  
14 10:32:59 allowable limit and lab results in November 2022 again  
15 10:33:05 confirmed that H2S from cells 1 to 3 stayed within that  
16 10:33:10 limit.  
17 10:33:10 GAM's suggestion that alleviated H2S was always an  
18 10:33:17 issue that the operator hid is directly contradicted by  
19 10:33:21 this record and by CER-1.  
20 10:33:24 Against that causation background, GAM's attempt to  
21 10:33:29 re-cast the dispute as a design failure collapses. The  
22 10:33:34 contract did not require a dedicated H2S treatment unit.  
23 10:33:40 It required the operator to design to the general  
24 10:33:44 quality standard and best engineering practice on the  
25 10:33:47 basis of the owner's own waste specifications and

---

---

01 10:33:52 verified gas data from the cells then within scope.

02 10:33:55 That is what the operator did and the design was

03 10:34:01 expressly approved. When the unforeseen cell 4

04 10:34:06 behaviour emerged, the operator responded with extensive

05 10:34:11 mitigation measures that CER-3 confirms were entirely

06 10:34:15 consistent with prudent practice.

07 10:34:17 It isolated and throttled high H2S wells in cell 4,

08 10:34:25 adjusted the gas field, switch to a more expensive

09 10:34:30 higher {^"wd}TPN oil, increased the frequency of oil

10 10:34:33 analysis and oil changes and intensified preventive

11 10:34:38 maintenance.

12 10:34:38 Those measures worked.

13 10:34:41 This is categoriically proven in the May 2021

14 10:34:49 Iltekno service report annexed to the May 2021 monthly

15 10:34:53 operation report, exhibit R-116.

16 10:34:55 This contemporaneous report demonstrates that

17 10:35:00 despite elevated H2S levels, the operator's mitigation

18 10:35:04 measures were effective, as there is no reported

19 10:35:08 corrosion or damage in any of three engines.

20 10:35:11 The May 2021 service report only supports what is

21 10:35:17 proven in the other exhibits in this arbitration,

22 10:35:20 including oil analysis that remained within normal

23 10:35:24 ranges and H2S readings downstream of the chiller that

24 10:35:30 stayed well below raw gas levels demonstrating that the

25 10:35:35 engines were effectively protected.

---



---

01 10:35:36 In short, there is no contractual obligation, no  
02 10:35:42 design error and no proven damage. The elevated H2S in  
03 10:35:48 cell 4 is the product of GAM's own waste practices and  
04 10:35:53 the operator's response to that anomaly was exemplary,  
05 10:35:58 not culpable.  
06 10:35:58 The leachate. GAM claims the operator was required  
07 10:36:04 to design, construct, integrate and operate a leachate  
08 10:36:09 management system for cells 1 to 4; in other words, to  
09 10:36:12 ensure that leachate does not accumulate beyond certain  
10 10:36:17 levels within the waste body.  
11 10:36:18 That is false. The operator was contracted to  
12 10:36:23 provide a gas to power generation system, not a leachate  
13 10:36:28 management system, which was expressly excluded from its  
14 10:36:33 scope under the contract.  
15 10:36:34 To understand why, it helps to know what a proper  
16 10:36:41 leachate management system actually involves:  
17 10:36:44 a collection and extraction infrastructure at the bottom  
18 10:36:48 of the landfill cell where extracted leachate is then  
19 10:36:52 transported to treatment facilities, treated, and then  
20 10:36:55 disposed of. The entire system remained GAM's  
21 10:36:59 responsibility as the landfill operator under clause 4.1  
22 10:37:05 of the design build services appendix.  
23 10:37:07 This is also made abundantly clear in GAM's  
24 10:37:13 responses to bidders in the addenda to the contract,  
25 10:37:17 considered the highest order document of the contract.

---

01 10:37:20 The contract defined the operator's role on leachate  
02 10:37:26 narrowly: first, recirculating leachate within a cell in  
03 10:37:31 order to support the landfill gas production process;  
04 10:37:34 and second, extracting leachate that accumulated within  
05 10:37:38 the gas wells in order to ensure proper landfill gas  
06 10:37:42 capture. In other words, these duties were strictly  
07 10:37:46 limited to what was needed for effective landfill  
08 10:37:51 {^"wd}gas attainment. They were directly tied to the  
09 10:37:53 landfill gas to power generation system the operator was  
10 10:37:57 contracted to provide and could not materially reduce  
11 10:38:01 the leachate levels within the waste body.  
12 10:38:03 Later agreements and variation orders did add some  
13 10:38:09 specific leachate-related tasks for the operator, but  
14 10:38:12 these were limited measures designed to support GAM's  
15 10:38:16 own leachate management functions. Not to take them  
16 10:38:20 over.  
17 10:38:20 Operating the existing facilities, which included  
18 10:38:25 those used for leachate management and extraction,  
19 10:38:29 remained under GAM's control throughout. GAM cannot now  
20 10:38:33 use counterclaim C3 to retroactively expand the  
21 10:38:37 operator's obligations to cover systemic leachate  
22 10:38:42 failures that belong on GAM's side of the contract and  
23 10:38:47 it cannot re-cast the operator's limited supportive  
24 10:38:51 interventions as if they were a turnkey assumption of  
25 10:38:55 GAM's own pre-existing duties.

---

|    |          |                                                          |
|----|----------|----------------------------------------------------------|
| 01 | 10:38:57 | With respect to counterclaim C4 to C10, these            |
| 02 | 10:39:03 | counterclaims continue the pattern exhibited in C1 to    |
| 03 | 10:39:08 | C3. GAM has neither proven breach nor quantified         |
| 04 | 10:39:15 | damages. It asks the tribunal to appoint experts to      |
| 05 | 10:39:19 | assess its losses.                                       |
| 06 | 10:39:21 | This is not how arbitration works.                       |
| 07 | 10:39:21 | This is not how arbitration works. A claimant must       |
| 08 | 10:39:25 | prove its case, including quantum. GAM has not done so.  |
| 09 | 10:39:33 | These claims are GAM's attempt to clutch at straws, so   |
| 10 | 10:39:39 | much so that the operator will not waste the tribunal's  |
| 11 | 10:39:42 | time in addressing them, as they have been categorically |
| 12 | 10:39:47 | rebutted in its submissions.                             |
| 13 | 10:39:50 | We only present a few examples to illustrate the         |
| 14 | 10:39:55 | weakness of these claims.                                |
| 15 | 10:39:56 | For spare parts, C5, GAM alleges the claimant failed     |
| 16 | 10:40:03 | to hand over sufficient inventory, but the contract is   |
| 17 | 10:40:07 | clear: spare parts remain the operator's property unless |
| 18 | 10:40:14 | GAM elects to purchase them at fair market value under   |
| 19 | 10:40:19 | GCC 9.3.1(5). GAM never exercised that option. The       |
| 20 | 10:40:26 | claimant was entitled to remove every spare part from    |
| 21 | 10:40:31 | the site. Instead, it voluntarily left behind certain    |
| 22 | 10:40:38 | parts and consumables as a gesture of goodwill.          |
| 23 | 10:40:42 | GAM now claims the gift was insufficient.                |
| 24 | 10:40:48 | One cannot claim damages for the perceived               |
| 25 | 10:40:52 | inadequacy of something one had no legal right to        |

---

---

01 10:40:55 receive.

02 10:40:55 For training, C6, the claimant developed and

03 10:41:01 delivered a comprehensive training programme for GAM's

04 10:41:05 personnel as required under OSA 4.6.

05 10:41:08 When the DB engineer requested in June 2021, after

06 10:41:14 the contract end date, to reconduct the training, the

07 10:41:18 claimant did so at no additional charge. The claimant

08 10:41:22 even trained the subsequent operator's personnel, which

09 10:41:27 it had no contractual obligation to do.

10 10:41:30 What precisely is the complaint?

11 10:41:32 GAM now attacks the quality of the service, but the

12 10:41:39 nature of its complaints is telling. The DB engineer

13 10:41:44 requested demonstrations on how to stop and start the

14 10:41:48 engines and practice on all change of oil.

15 10:41:53 If subsequent operator needed to be shown how to

16 10:41:53 If subsequent operator needed to be shown how to

17 10:41:56 change oil, it was not qualified for the appointment.

18 10:42:01 The claimant's role was to transfer site specific

19 10:42:04 knowledge to a professional peer, not to operate

20 10:42:07 a vocational college for an unprepared successor.

21 10:42:11 GAM's complaints are, in truth, an admission of the

22 10:42:11 GAM's complaints are, in truth, an admission of the

23 10:42:15 subsequent operator's own inadequacy. These are not

24 10:42:20 serious claims. They are the arguments of a party

25 10:42:24 searching for grievances where none exist.

---

---

01 10:42:26 Moving to the last three counterclaims, C11 to C13.

02 10:42:34 PRESIDENT: You have almost ten minutes?

03 10:42:39 MR A NAJDAWI: {"spkr"}I need 10 minutes maximum.

04 10:42:45 PRESIDENT: How about you have only seven minutes?

05 10:42:49 MR H KHIRFAN: {"spkr"}I'm fine with ten

06 10:42:49 minutes.{"overspeaking"}

07 10:42:49 MR H KHIRFAN: Counterclaim C11, outsourcing, says the

08 10:42:55 claimant violated laws by outsourcing sources. This

09 10:42:58 miscategorised standard subcontracting arrangement that

10 10:43:02 were expressly permitted under the contract.

11 10:43:04 Counterclaim C12, customs reimbursements, seeks

12 10:43:11 reimbursement of customs duties GAM paid on the

13 10:43:15 claimant's behalf, the very duties GAM was obligated to

14 10:43:20 pay under GCC 5.6.

15 10:43:22 C12 is divided into two categories: first, payments

16 10:43:28 made before the 2019 agreement; and second, payments

17 10:43:33 made under the 2019 agreement in respect of cell 4,

18 10:43:38 phase 4.

19 10:43:41 As regard to the first category, GAM's own letter ^^

20 10:43:41 As regard to the first category, GAM's own letter,

21 10:43:43 C334 of 2 December 2018, expressly undertook to settle

22 10:43:50 duties with full knowledge that MEMR already rejected

23 10:43:55 exemption for certain items on 18 October 2018, R-066.

24 10:44:02 GAM thus undertook that obligation with eyes open and

25 10:44:07 cannot now re-cast it as a late discovered overpayment.

---

---

01 10:44:17 For those later payments, GAM's primary case is that  
02 10:44:22 its obligation to reimburse the operator was subject to  
03 10:44:26 a condition, that the tax exemption would ultimately be  
04 10:44:29 granted and that MEMR's outright rejection  
05 10:44:32 in January 2022, which is R-088, meant the condition  
06 10:44:37 never crystallised and its obligation therefore never  
07 10:44:40 arose.

08 10:44:40 Even if that framing were accepted, it only sharpens  
09 10:44:45 the point. If GAM's reimbursement obligation never  
10 10:44:48 crystallised, then the operator had no entitlement to  
11 10:44:53 have those customs duties paid on its behalf, and any  
12 10:44:57 recovery by GAM can only be categorised as a claim in  
13 10:45:02 unjust enrichment under article 301 to 311 of the Civil  
14 10:45:07 Code.

15 10:45:07 Article 311 imposes a three-year limitation period  
16 10:45:13 from the moment the creditor becomes aware of the  
17 10:45:17 enrichment. By January 2020, at the latest, upon MEMR's  
18 10:45:22 rejection, GAM knew that the exemption was not approved,  
19 10:45:27 knew that it had, allegedly, paid customs duties it now  
20 10:45:32 says it was not obligated to, and knew that the operator  
21 10:45:37 was the party enriched by those payments, yet GAM waited  
22 10:45:43 until July 2024 to bring C12.

23 10:45:47 On its own narrative, therefore, any unjust  
24 10:45:50 enrichment claim in respect of category 2 amounts is  
25 10:45:56 extinguished by article 311, and counterclaim C12 is

---

01 10:46:01 time-barred at least to that extent.

02 10:46:03 Either way, C12 fails. If GAM's reimbursement

03 10:46:09 obligation was contractual, it cannot now claim

04 10:46:13 over-payment for duties it expressly undertook to

05 10:46:17 settle. If it was conditional and never arose, any

06 10:46:22 recovery claim is extinguished by article 311's

07 10:46:27 three-year bar.

08 10:46:27 Counterclaim C13 purports to reserve the right to

09 10:46:32 claim delayed damages based on key personnel not being

10 10:46:37 in Jordan in March 2020.

11 10:46:37 This is one of GAM's more desperate claims. Not

12 10:46:44 only does it fail to specify any contractual basis for

13 10:46:48 this alleged reservations, the facts undercut it

14 10:46:53 completely. GAM itself approved an extension of time

15 10:46:57 based on the force majeure event, and the operator

16 10:47:00 finished construction within the allotted time. As

17 10:47:04 regards operation services, no personnel engaged in

18 10:47:07 operations were outside of the Kingdom during this time,

19 10:47:11 and the operator undertook extensive effort to ensure

20 10:47:15 operational services continued despite the many

21 10:47:18 restrictions in place as a response to Covid-19. No

22 10:47:23 damages were suffered. What exactly is the complaint?

23 10:47:26 GAM's own conduct undermines its counterclaims.

24 10:47:33 Consider what GAM did during the contract as opposed to

25 10:47:38 what it says now.

---

01 10:47:40 GAM issued operational acceptance certificate for  
02 10:47:40 GAM issued operational acceptance certificate for  
03 10:47:45 all four phases without reservation.  
04 10:47:48 GAM awarded cell 4 to the operator through direct  
05 10:47:48 GAM awarded cell 4 to the operator through direct  
06 10:47:51 award.  
07 10:47:53 GAM approved all the monthly progress and  
08 10:47:53 GAM approved all the monthly progress and  
09 10:48:03 operational reports through the DBE and CSCU without  
10 10:48:08 objection.  
11 10:48:08 GAM allowed the defect liability periods to expire  
12 10:48:12 without requesting correction of any defect.  
13 10:48:14 GAM requested extensions of operation services  
14 10:48:19 in June and July 2021, conduct inconsistent with  
15 10:48:24 dissatisfaction.  
16 10:48:24 GAM failed to follow the contractual procedure under  
17 10:48:28 article 785 of the Civil Code, which requires an owner  
18 10:48:33 to first request repair before delegating such repair  
19 10:48:37 works to a subsequent operator.  
20 10:48:38 These are admissions against interest. They speak  
21 10:48:43 louder than any witness statement.  
22 10:48:44 GAM's manufactured witness evidence.  
23 10:48:50 We return now to the matter flagged at the outset,  
24 10:48:54 GAM's witness statements.  
25 10:48:54 GAM has submitted four witness statements, RWS-1 is

---



01 10:49:01 from His Excellency Yousef Al Shawarbeh, and the mayor  
02 10:49:04 of Amman and chairman of GAM's counsel. RWS-2 to 4 are  
03 10:49:09 from other GAM employees and an employee of the  
04 10:49:12 subsequent operator.  
05 10:49:13 His Excellency's testimony in RWS-1 does not address  
06 10:49:20 the alleged defects. Instead, he {^"wd>}disclaims two  
07 10:49:25 letters, he personally signed in 2021, claiming he  
08 10:49:30 signed them in good faith without verification at the  
09 10:49:34 operator's request and they should not be treated as  
10 10:49:38 admission. So GAM's highest official admits he signed  
11 10:49:42 official documents without due diligence, then seeks to  
12 10:49:46 disclaim them when they become inconvenient.  
13 10:49:48 RWS-2 to 4 purport to describe not only the  
14 10:49:55 condition of the project upon operator's departure, but  
15 10:49:58 also events that allegedly occurred during the  
16 10:50:03 operator's tenure, including specific incidents from as  
17 10:50:08 early as May 2019, yet the signatory of RWS-3,  
18 10:50:14 Mr Jum'ah, is an employee of the subsequent operator,  
19 10:50:18 Jordan Biogas Company. The subsequent operator did not  
20 10:50:22 even submit its bid until 6 June 2021. It did not take  
21 10:50:29 over the site until 1 August 2021. Training began only  
22 10:50:34 in early 2021. Mr Jum'ah has no first-hand knowledge of  
23 10:50:40 what occurred at the site in 2019 and/or 2020. He  
24 10:50:46 cannot know what he claims to know unless, of course,  
25 10:50:50 he's simply repeating what GAM told him to say.

---

01 10:50:53 The same problem infects --

02 10:50:57 PRESIDENT: I'm sorry to interrupt you, but you exhausted

03 10:51:01 the one hour and the 10 minutes you already requested.

04 10:51:04 MR H KHIRFAN: I need only few minutes, and I think Mr

05 10:51:09 Ahmad --

06 10:51:09 MR A NAJDAWI: We leave this to the tribunal.

07 10:51:13 PRESIDENT: Okay. You are given only five minutes.

08 10:51:15 MR T NAJDAWI: We don't mind Hazem to continue because he's

09 10:51:21 too enthusiastic.

10 10:51:21 MR H KHIRFAN: This is how I was born!

11 10:51:27 Thank you. As Ahmad said, you're his mentor and we

12 10:51:33 see you as well as mentor, Mr Najdawi.

13 10:51:39 The same problem infects exhibit 222, the so-called

14 10:51:39 The same problem infects exhibit 222, the so-called

15 10:51:42 notice of claim from the subsequent operator dated

16 10:51:45 12 March 2024. This document purports to describe the

17 10:51:49 operator's conduct and alleged omissions throughout the

18 10:51:53 contract period, but the subsequent operator was not

19 10:51:57 party to the contract. It was not present during the

20 10:52:00 relevant events. It has no independent knowledge of the

21 10:52:03 matter it describes. And the document appeared,

22 10:52:08 remarkably, just six weeks after the claimant filed its

23 10:52:12 statement of claim.

24 10:52:12 The inference is obvious. R-222 was authored or, at

25 10:52:20 a minimum, directed by GAM for the sole purpose of being

---

---

01 10:52:24 submitted into this arbitration. The problem is that

02 10:52:28 RWS-2 to 4 are identical; not similar, not substantially

03 10:52:34 the same, identical, word for word, paragraph for

04 10:52:39 paragraph. Three individuals have signed the same

05 10:52:41 document.

06 10:52:41 This cannot be genuine witness testimony. Witnesses

07 10:52:46 even to the same events do not use the same words. They

08 10:52:50 recall different details, they emphasise different

09 10:52:53 points. They have different perspectives. When three

10 10:52:57 people sign the same text, only one conclusion is

11 10:52:59 possible: the text was written by someone else and

12 10:53:03 presented for signature.

13 10:53:04 Section 9.3.4 of the procedural rules requires that

14 10:53:09 each witness statement contain the witness factual

15 10:53:12 testimony, and identical text signed by three people is

16 10:53:17 not three instances of factual testimony. It is one

17 10:53:21 text with three signatures. It does not comply with the

18 10:53:24 rules.

19 10:53:24 The witness signed documents they did not write,

20 10:53:28 attesting to facts they did not independently verify.

21 10:53:31 This is manufactured evidence. There is no other

22 10:53:35 explanation.

23 10:53:35 The implications are serious.

24 10:53:38 First, what GAM presents as four witnesses is, in

25 10:53:42 substance, two, his Excellency Mr Al Shawarbeh and one

---

---

01 10:53:47 template.

02 10:53:50 corroboration. Corroboration requires independent

03 10:53:54 accounts. Repetition of the same text is not

04 10:53:56 corroboration.

05 10:53:56 Third, practice calls into question in GAM's entire

06 10:54:01 evidentiary approach. If GAM is prepared to manufacture

07 10:54:04 witness evidence, what confidence can the tribunal have

08 10:54:07 in its other submissions?

09 10:54:09 The tribunal should give RWS-2 to 4 no weight. They

10 10:54:15 are not witness statements. They are advocacy dressed

11 10:54:20 as evidence.

12 10:54:20 The documentary record speaks for itself. This case

13 10:54:27 will be decided on documents. The claimant has

14 10:54:30 submitted 532 exhibits. They include the contract and

15 10:54:35 all amendments, operational acceptance certificates for

16 10:54:39 all phases, monthly progress and operational reports,

17 10:54:43 CSCU and DBE's approvals on those monthly reports,

18 10:54:48 correspondence between the parties, invoices and payment

19 10:54:51 records and DB engineer's determinations and expert

20 10:54:54 reports on technical issues. Critically, they also

21 10:54:58 include third-party assessment from independent

22 10:55:01 manufacturers, authorised service providers and

23 10:55:04 accredited laboratories, verifications and inspection of

24 10:55:08 major equipment by Iltekno, ABB, {"nm}Convico,

25 10:55:12 {"nm}TUV and {"nm}Jibco, calibration certificate for

---

---

01 10:55:15 {"^"nm>}Gaz analysers and ({"^^"}inaudible) analysis of  
02 10:55:18 engine oil, samples by {"^"nm}cay in the United Arab  
03 10:55:22 Emirates.  
04 10:55:23 These independent attestations confirm the good and  
05 10:55:23 These independent attestations confirm the good and  
06 10:55:26 proper performance of all parts of the new facility and  
07 10:55:29 the proper discharge of the design build services and  
08 10:55:32 the operational services throughout the contract term.  
09 10:55:35 These documents tell a consistent story:  
10 10:55:39 a contractor that performed, an owner that accepted that  
11 10:55:43 performance, and disputes that arose only when payment  
12 10:55:47 came due.  
13 10:55:48 GAM has submitted its own exhibits, including R2022  
14 10:55:48 GAM has submitted its own exhibits, including R-222,  
15 10:55:53 purported notice of claim from the subsequent operator  
16 10:55:57 dated March 2024, prepared, it would appear, for this  
17 10:56:02 arbitration.  
18 10:56:02 The claimant has objected to this document. Its  
19 10:56:07 timing is suspect. It appeared six weeks after the  
20 10:56:11 claimant filed its statement of claim. Its content is  
21 10:56:15 suspect. The subsequent operator purports to describe  
22 10:56:19 events it could not have witnessed during a period when  
23 10:56:22 it was not present at the site. The interference is  
24 10:56:26 obvious. R-222 was authored or, at a minimum, directed  
25 10:56:31 by GAM using its subsidiary a vehicle to manufacture

---

---

01 10:56:35 evidence.

02 10:56:35 The pattern --

03 10:56:37 PRESIDENT: Excuse me, Mr Khirfan.

04 10:56:40 MR H KHIRFAN: Yes, just two minutes.

05 10:56:42 PRESIDENT: You are given one minute to conclude.

06 10:56:44 MR H KHIRFAN: Okay.

07 10:56:47 MR H KHIRFAN: The pattern to GAM's ^^ submitted internal

08 10:56:47 The pattern to GAM's other exhibits. GAM has

09 10:56:50 submitted internal documents that purport to record

10 10:56:53 observations and defects at various dates, yet these

11 10:56:57 internal documents contain allegations that do not

12 10:56:59 appear in the documents GAM actually sent to the

13 10:57:02 claimant at the time.

14 10:57:13 But the most telling documents are GAM's own, the

15 10:57:13 But the most telling documents are GAM's own. The

16 10:57:15 operational acceptance certificates, the approved

17 10:57:19 monthly reports, the request for extension, for

18 10:57:24 correspondence in which GAM called adjudication useless,

19 10:57:27 these are admissions they cannot explain away.

20 10:57:31 The claimant respectfully requests the tribunal

21 10:57:31 The claimant respectfully requests the tribunal

22 10:57:34 order and award and relief sought as set out in all the

23 10:57:38 claimant's counterclaims, respondent submission, in

24 10:57:41 addition to granting such other relief as the tribunal

25 10:57:45 considers just and appropriate.

---

---

|    |          |                                                           |
|----|----------|-----------------------------------------------------------|
| 01 | 10:57:46 | One last paragraph.                                       |
| 02 | 10:57:49 | The claimant came to Jordan to build something            |
| 03 | 10:57:53 | useful, a system that would convert waste into energy,    |
| 04 | 10:57:57 | reduce environmental harm and contribute to Jordan's      |
| 05 | 10:58:02 | infrastructure. For nine years, it did exactly that.      |
| 06 | 10:58:05 | It is entitled to be paid for its work. It is entitled    |
| 07 | 10:58:10 | to compensation for GAM's breaches. It is entitled to     |
| 08 | 10:58:14 | have GAM's manufactured counterclaims dismissed. The      |
| 09 | 10:58:18 | evidence will show that the claimant performed its        |
| 10 | 10:58:20 | obligations. The evidence will show that GAM did not      |
| 11 | 10:58:23 | perform its obligations. The evidence will show that      |
| 12 | 10:58:27 | GAM's counterclaims are time-barred, unsubstantiated and  |
| 13 | 10:58:31 | supported by witness statements that are not genuine      |
| 14 | 10:58:34 | testimony. We are confident that at the conclusion of     |
| 15 | 10:58:38 | these proceedings the tribunal will find in favour of     |
| 16 | 10:58:42 | the claimant on all claims and dismiss GAM's              |
| 17 | 10:58:45 | counterclaims in their entirety.                          |
| 18 | 10:58:47 | Thank you.                                                |
| 19 | 10:58:49 | Are you ready, Mr Najdawi?                                |
| 20 | 10:58:59 | MR A NAJDAWI: Yes, sir.                                   |
| 21 | 10:59:01 | PRESIDENT: You are also granted one hour, but to be fair, |
| 22 | 10:59:17 | Mr Hazem exhausted 71 minutes in his opening statement.   |
| 23 | 10:59:30 | For fair treatment of the parties, you are also allowed   |
| 24 | 10:59:37 | 71 minutes.                                               |
| 25 | 10:59:38 | MR H KHIRFAN: Thank you, Mr Chairman.                     |

---

---

01 10:59:40 (Discussion off the record)

02 10:59:50

03 11:00:13 {"^"ind}Opening submissions by MR A NAJDAWI

04 11:00:18 MR A NAJDAWI: Thank you, Mr Chairman. Thank you members of

05 11:00:22 the honourable tribunal.

06 11:00:30 MR A NAJDAWI: I just wanted to open by saying that we

07 11:00:41 haven't really scripted this opening statement. We have

08 11:00:46 a narrative in our minds and this narrative has been

09 11:00:49 built over the past four years based on evidence, and

10 11:00:53 therefore we don't really need to script this opening

11 11:00:55 statement and read from paperers.

12 11:00:59 I would like to first say that I have just changed

13 11:01:05 the structure of the opening statement. I would like to

14 11:01:08 first start by addressing the matter of the witness

15 11:01:12 statements and the matter of the reports that my

16 11:01:16 colleague has just referred to, because this is still

17 11:01:19 fresh in everyone's minds.

18 11:01:20 The three witness statements that my colleague says

19 11:01:25 are identical, I do not see an issue as to why such

20 11:01:35 documents should not be identical. I do not see an

21 11:01:39 issue as to why affidavits cannot be written by third

22 11:01:43 parties. It's an affidavit, and affidavits are usually

23 11:01:47 written by lawyers, very simply.

24 11:01:48 If all three witnesses, they approve the same

25 11:01:53 specific fact, it's a very specific fact. If they all

---



---

01 11:01:55 confirm them, then they do. How they say it and how  
02 11:01:59 they word it and structure it and where they put the  
03 11:02:03 commas, this, I believe, is irrelevant and should not be  
04 11:02:06 used to question or raise doubts about those witnesses,  
05 11:02:10 the authenticity of those statements, at all, because  
06 11:02:14 we've seen allegations of forgery being made in the  
07 11:02:17 statements and we've seen other allegations being made  
08 11:02:19 in that statement after the operator was exposed to  
09 11:02:24 a certain degree.

10 11:02:24 Regarding the witness statement of His Excellency,  
11 11:02:29 he does not disclaim the letters. The letters were  
12 11:02:32 issued based on a request from the operator, applied for  
13 11:02:37 an exemption without having filed any evidence. So, to  
14 11:02:41 expedite the process, His Excellency just issued the  
15 11:02:43 letter to the ministry to see whether an exemption may  
16 11:02:48 be granted, on the assumption that what the operator was  
17 11:02:51 representing to His Excellency was true. In fact, we  
18 11:02:55 have reached a point where it is absolutely crystal  
19 11:02:59 clear that what they have been representing for more  
20 11:03:02 than five years now, whether before His Excellency or  
21 11:03:05 before this tribunal, is in fact false and amounts to  
22 11:03:10 gross misrepresentation of the actual type of claim that  
23 11:03:14 they have or the actual particulars of claim that they  
24 11:03:16 have.

25 11:03:16 So it's not really a disclaimer of a letter, it's

---

---

01 11:03:20 just saying, "I issue the letter in good faith, based on  
02 11:03:23 your request", so you can't now come in and say this  
03 11:03:26 letter is an in addition by me as mayor of Amman.  
04 11:03:30 As for the Biogas list of claims, I don't see why it  
05 11:03:38 doesn't make sense to the opposing side that this list  
06 11:03:43 was prepared after they submitted the claim.  
07 11:03:46 These claims have all been corroborated by the  
08 11:03:51 operator's very own letters before it left the project.  
09 11:03:54 The facts are all corroborated by the operator's very  
10 11:03:58 own letters before they left the project, and the  
11 11:03:59 subsequent operator obviously piled up claims over time.  
12 11:04:03 So it sent in one month a claim, the next year it sent  
13 11:04:07 another claim, and so on and so forth.  
14 11:04:08 Eventually, it was asked to compile all of those  
15 11:04:12 claims, so that these may be submitted in arbitration,  
16 11:04:16 but every single fact mentioned is actually supported by  
17 11:04:20 the operator's own admissions, their own letters, so  
18 11:04:24 I don't get why we should go up and dispute whether  
19 11:04:27 these documents are authentic or not based on the fact  
20 11:04:30 that they were produced after the date they filed their  
21 11:04:34 claim.  
22 11:04:34 Of course, they do not dispute any of the facts  
23 11:04:39 themselves, any of the issues, the damages.  
24 11:04:41 That's what I wanted to start with, since memory was  
25 11:04:50 still fresh regarding them.

---

---

|    |          |                                                          |
|----|----------|----------------------------------------------------------|
| 01 | 11:04:51 | As regards the real opening statement, I think           |
| 02 | 11:04:51 | As regards the real opening statement, I think           |
| 03 | 11:04:57 | context is key. I always think context is key and this   |
| 04 | 11:05:02 | is something where, if it's obscured, people can be      |
| 05 | 11:05:06 | easily misled. Anything read without context is not      |
| 06 | 11:05:11 | read properly, accurately and correctly.                 |
| 07 | 11:05:13 | So the context that we've added to all of this is        |
| 08 | 11:05:19 | that the operator did not come to Jordan for the         |
| 09 | 11:05:23 | purposes of bettering its waste management environment   |
| 10 | 11:05:26 | or whatever my learned counsel just said. They came      |
| 11 | 11:05:29 | into Jordan to exploit a public institution, a public    |
| 12 | 11:05:33 | institution's excessive good faith, to make extra        |
| 13 | 11:05:37 | contractual gains from day one. These are not            |
| 14 | 11:05:40 | intentions. These are supported by hard evidence.        |
| 15 | 11:05:43 | This is the context which we would like to start         |
| 16 | 11:05:47 | with.                                                    |
| 17 | 11:05:47 | Initially, it's helpful to understand what the           |
| 18 | 11:05:51 | project is and how its structure is. The project         |
| 19 | 11:05:54 | originally stemmed from a tender and it had three        |
| 20 | 11:05:56 | phases, three phases only: phase 1 concerned the capping |
| 21 | 11:06:00 | works and design build works of cell 1; phase 2          |
| 22 | 11:06:06 | concerned the capping works and design build works of    |
| 23 | 11:06:09 | cells 2 and 3; and then phase 3 concerned the design and |
| 24 | 11:06:13 | build of a power plant.                                  |
| 25 | 11:06:14 | In between those phases there are additional             |

---

---

01 11:06:17 operation services, whether in respect of the cells or  
02 11:06:21 in respect of the plant after the connection to the  
03 11:06:23 cells.  
04 11:06:23 So, to start with the very obvious part, we received  
05 11:06:33 a 300-page statement of claim, which pivots around one  
06 11:06:40 central allegation and that is an allegation of bad  
07 11:06:43 faith on part of GAM. This allegation of bad faith in  
08 11:06:49 a project which took place over 10 years was never  
09 11:06:53 brought up, not even for one second. There was no such  
10 11:06:57 allegation during the project.  
11 11:06:58 The reason this allegation came to light is because,  
12 11:07:04 due to certain circumstances, the operator wished to  
13 11:07:08 advance claims which it knew had no basis, and we will  
14 11:07:13 show this with hard evidence and with conclusions in  
15 11:07:18 this opening statement.  
16 11:07:19 So, rather than focusing on evidence, rather than  
17 11:07:23 focusing on basis for entitlement, rather than doing  
18 11:07:26 that, it sought to obscure the context, it sought to  
19 11:07:30 omit evidence, it sought to omit quotations of evidence  
20 11:07:34 within its statement of claim, whenever it suited it, so  
21 11:07:35 that it drives a certain picture in whoever reads that  
22 11:07:42 statement. Eventually, without any legal basis, they  
23 11:07:47 start mentioning that there is extreme bad faith on part  
24 11:07:50 of GAM in respect of all claims. This is the theme that  
25 11:07:53 they want to present, because there is no actual legal

---

---

01 11:07:56 or contractual basis for what they are alleging.  
02 11:07:58 Essentially, if you go to the legal arguments part,  
03 11:08:02 all they say is the contract is the parties' own  
04 11:08:06 agreement or parties' own law and it has to be performed  
05 11:08:10 in good faith and that's it.  
06 11:08:11 So if we start with why the operator came in, with  
07 11:08:19 why we say the operator came in to make extra  
08 11:08:22 contractual gain and not really to better the  
09 11:08:24 environment of Jordan, because it came here before this  
10 11:08:26 project and it came out with a case, it came out with  
11 11:08:30 a dispute, with an arbitration. That was its only  
12 11:08:32 project in Jordan. The second project it took was  
13 11:08:35 GAM's, and this is also the subject of many disputes.  
14 11:08:38 When the project started, the operator was the only  
15 11:08:43 bidder in the project and they knew this, they  
16 11:08:46 absolutely knew this, and they were trying to get this  
17 11:08:50 project with cheaper prices in order to move forward to  
18 11:08:55 the next stages.  
19 11:08:55 Once the project proceeded, what they did was they  
20 11:09:02 entered the project site, they said, "No, we can't work  
21 11:09:06 in cell 1 because the condition of cell 1 does not allow  
22 11:09:09 us to work". This is after signing the agreement in  
23 11:09:12 2012, first week.  
24 11:09:13 They were replied to by the DBE saying, "How come  
25 11:09:19 you're saying now that the condition of cell 1 is not

---

---

01 11:09:21 appropriate?" This is {"wd>}DBOT contract and it has  
02 11:09:24 express language requiring you to satisfy yourself of  
03 11:09:27 the condition of the site upon signature and deeming you  
04 11:09:31 as having satisfied yourself of that condition, even if  
05 11:09:33 you haven't done it. This is a turnkey {"wd}DBOT  
06 11:09:37 contract.  
07 11:09:37 The DBE engineer even stated that the conditions  
08 11:09:42 that you're alleging in cell 1 are conditions which can  
09 11:09:46 be bypassed or can be overcome by any prudent operator.  
10 11:09:50 No one would make a fuss out of those issues.  
11 11:09:52 But the operator choose to suspend its obligations  
12 11:09:56 and GAM then decided -- then was at a decision making  
13 11:10:01 process, this is after award, where it had two choices:  
14 11:10:06 either delete the project from its pipeline and lose the  
15 11:10:10 funding it has gotten from the World Bank, or succumb to  
16 11:10:16 the operator's extra contractual claims for delay, delay  
17 11:10:22 costs and a variation in the works, because as GAM  
18 11:10:25 expressly stated in its justification of why it was  
19 11:10:30 agreeing to such variation, the loss that GAM would  
20 11:10:33 incur if this project does proceed -- this is the exact  
21 11:10:37 same internal justification of GAM. The loss that GAM  
22 11:10:42 would sustain, if the project does not proceed by  
23 11:10:45 succumbing to their extra contractual claims, then GAM  
24 11:10:48 will lose more than what the operator would gain if the  
25 11:10:52 project would proceed. This is an internal

---

---

01 11:10:54 justification. This wasn't given to the operator, but  
02 11:10:57 we submitted it in this arbitration.  
03 11:10:58 So the project moved forward. How did it move?  
04 11:11:02 There were variations to the works, of course. Cell 1  
05 11:11:05 was no longer in phase 1. They replaced cell 1 with  
06 11:11:08 cell 2, which was in phase 2 originally. They signed  
07 11:11:12 a settlement of dispute. They cashed the delay costs  
08 11:11:15 that they were claiming without any solid basis under  
09 11:11:20 the contract. Then they moved forward.  
10 11:11:22 By 2014, because of this delay in starting up the DB  
11 11:11:29 works and the operations, the World Bank's funding, the  
12 11:11:32 loan agreement, as is usually the case, has a deadline  
13 11:11:35 by which you need to disburse the entire loan amount.  
14 11:11:39 You don't get the loan as soon as you sign the  
15 11:11:41 agreement. You have to request disbursements as  
16 11:11:44 progress continues in the project.  
17 11:11:45 By that point in time, progress was not achieved.  
18 11:11:48 Mind you, this was a funding which was supposed to cover  
19 11:11:52 not only phase 1, not just one cell, regardless what the  
20 11:11:56 cell was. It was supposed to cover as well phases 2  
21 11:11:58 and 3.  
22 11:11:58 So by 2014, they finish cell 2 in phase 1 and the  
23 11:12:07 deadline lapses for the funding.  
24 11:12:09 GAM then was forced into procuring alternative  
25 11:12:13 funding from an alternative institution, which is

---

---

01 11:12:16 {"^"nm}EBRT, at higher interest rates, with more  
02 11:12:18 commitment charges, and having already paid to  
03 11:12:20 World Bank cancellation charges on the loan that was not  
04 11:12:23 disbursed.  
05 11:12:23 Then, when that particular fact happened, what the  
06 11:12:31 operator did was they started requesting evidence of  
07 11:12:35 financial arrangements being in place for the purposes  
08 11:12:38 of covering the ongoing phases, the phases 2 and 3.  
09 11:12:44 Obviously this is not a FIDIC contract. It does not  
10 11:12:48 have a clause which mandates a right for the operator to  
11 11:12:51 request financial evidence, evidencing that adequate  
12 11:12:54 financial arrangements are made. There is no such  
13 11:12:56 obligation in the contract.  
14 11:12:57 When such evidence was not provided, they quickly  
15 11:13:03 sent a letter terminating or alleging that they've  
16 11:13:06 terminated the letter because one of their invoices was  
17 11:13:09 a bit delayed in terms of payment, and it was a very  
18 11:13:13 minute amount, it was maybe 20K.  
19 11:13:15 So the reason for that termination is because  
20 11:13:21 phases 2 and 3, which became cells 1 and 3 in phase 2  
21 11:13:25 and then the power plant in phase 3, this is according  
22 11:13:27 to the variation, these were conditional under the  
23 11:13:29 original contract. They were obligatory on the operator  
24 11:13:34 to do, but it is up to GAM's choice whether it decides  
25 11:13:37 to proceed with them after phase 1 is concluded, and if

---



---

01 11:13:40 it decides to proceed with them, they have to notify the  
02 11:13:43 operator, and therefore, in that instance, the operator  
03 11:13:46 would be obliged to proceed with them at the same prices  
04 11:13:49 in its bid.  
05 11:13:50 The termination, the alleged termination that  
06 11:13:53 they've done, obviously without any court order or  
07 11:13:56 arbitral award -- and the contract does not state that  
08 11:13:58 they can just automatically terminate the contract  
09 11:14:01 without a court order or arbitral award -- it was done  
10 11:14:05 to preempt not receiving that notice from GAM, not  
11 11:14:10 continuing with the conditional tranche.  
12 11:14:12 Why?  
13 11:14:12 As they have later admitted, in the future stages of  
14 11:14:18 the project, their bid was inadequate in terms of prices  
15 11:14:25 to cover for phases 2 and 3, so they wanted to split  
16 11:14:31 these phases whereby, rather than continuing them based  
17 11:14:35 on the original prices in their original bid, they would  
18 11:14:39 terminate the contract, request the price escalation,  
19 11:14:41 and start making agreements per phase so that each phase  
20 11:14:46 would have a separate agreement with new prices, with  
21 11:14:48 price escalations.  
22 11:14:49 Of course GAM did not concede to that termination.  
23 11:14:55 The operator states -- and this is a material fact.  
24 11:14:58 This happened in 2014 and the operator sought to include  
25 11:15:02 it in its claim. These are facts which the operator was

---

---

01 11:15:06 building a case for ever since 2014. It didn't come out  
02 11:15:10 of nowhere.  
03 11:15:11 Mind you, the operator did not note anything else  
04 11:15:16 about the period before 2017 and 2018, except this fact,  
05 11:15:23 or alleged fact. They want to validate the termination  
06 11:15:27 by saying that GAM approved this termination or conceded  
07 11:15:31 to it, and they reference an unsigned minutes of meeting  
08 11:15:34 in this regard.  
09 11:15:34 Of course GAM never conceded and no arbitral award  
10 11:15:38 was ever obtained in order to terminate the contract.  
11 11:15:41 And GAM never approved; in fact, it rejected that  
12 11:15:44 termination, because as soon as that notice was sent,  
13 11:15:47 GAM, maybe a week later or two weeks later, issued  
14 11:15:51 a notice dismissing this notice and asking them to start  
15 11:15:55 the conditional tranche, because they were obliged to do  
16 11:15:58 so under the original contract.  
17 11:15:59 So what they did was they refused to start that.  
18 11:16:05 They submitted the price escalation and then they  
19 11:16:07 started threatening to leave the project if the price  
20 11:16:10 escalation was not approved. GAM, again faced with  
21 11:16:14 deadlines for further disbursements and a project which  
22 11:16:17 was mandated by international organisations under  
23 11:16:20 environmental impact assessments -- waste management had  
24 11:16:23 to be addressed -- feared stopping the project. Of  
25 11:16:27 course, our colleagues on the other side or their client

---

---

01 11:16:31 was not really much caring about how the project  
02 11:16:35 proceeds, whether it proceeds diligently or not.  
03 11:16:37 So they've entered into the 2015 agreement based on  
04 11:16:44 that escalation. That 2015 agreement, the operator  
05 11:16:49 insisted that phase 3, now the power plant, would be  
06 11:16:52 outside that scope, because he wanted another separate  
07 11:16:55 agreement with another escalation.  
08 11:16:56 After phase 2 was completed, then they submitted  
09 11:17:05 another price escalation. Of course again they said,  
10 11:17:08 "We will not continue unless you agree to this price  
11 11:17:11 escalation". GAM, again, with deadlines for  
12 11:17:14 disbursements and fear of stalling this project, they  
13 11:17:18 agreed to that and then they moved forward.  
14 11:17:20 Reaching up to, in 2019, a new phase was come up by  
15 11:17:36 GAM. Actually, it was tendered out to the operator and  
16 11:17:41 the operator expressed interest and, on that basis, they  
17 11:17:44 gave them that variation order.  
18 11:17:46 The operator asks: why, if you're not happy and  
19 11:17:50 satisfied with my services, then why would you give me  
20 11:17:52 another variation for a phase 4, which is cell 4?  
21 11:17:56 The answer is simple: you're the one who's  
22 11:17:59 responsible for cells 1 to 3. We want cell 4 connected  
23 11:18:02 and you're saying that we can't connect cell 4 to the  
24 11:18:05 power plant, so who do we have other than you to do it?  
25 11:18:10 Basically. We can't just have two design build

---

---

01 11:18:12 contractors and two operators separately; there's a lot  
02 11:18:15 of risk in coordination. And, obviously, the services  
03 11:18:18 of the operator in that particular period, they were all  
04 11:18:23 in a black box. The site was entirely within the  
05 11:18:26 exclusive possession and control of the operator. It  
06 11:18:29 decided what issues to tell GAM are in the project and  
07 11:18:34 it decided what issues to conceal; not to omit, to  
08 11:18:38 actively conceal.  
09 11:18:38 Our very valid argument is that there was indeed  
10 11:18:52 abandonment. There was indeed abandonment, total  
11 11:18:55 abandonment. Not just abandonment of issues in the  
12 11:18:58 project, of damages, of deficiencies, but also  
13 11:19:02 abandonment of works for which a variation order was  
14 11:19:05 issued and was accepted by the operator.  
15 11:19:07 So if you allow me to move on to the claim that we  
16 11:19:17 received, the claim that we received obscures context.  
17 11:19:20 We will now start by addressing claims 1 and 2.  
18 11:19:25 In claim 1 the operator decided to omit four years  
19 11:19:25 In claim 1, the operator decided to omit four years'  
20 11:19:29 worth of correspondence regarding the tax matters that  
21 11:19:34 it alleges, or underpinning the tax allegations that it  
22 11:19:37 makes, to omit four years of correspondence. There are  
23 11:19:40 over 50, 60, 70 written exhibits on this topic. They  
24 11:19:46 chose to obscure them. Why? Because they want you to  
25 11:19:49 read the contract and they want you to look at their

---

---

01 11:19:51 claim simply without any context whatsoever.

02 11:19:52 We have, in our statement of defence, highlighted

03 11:20:00 where the documents that were omitted by the operator

04 11:20:03 were included in our defence, in red. So everything in

05 11:20:06 red in our statement of defence constitutes documents

06 11:20:09 that are relevant, that are productive, totally

07 11:20:12 productive to this dispute, but have otherwise been

08 11:20:15 omitted by the operator selectively and intentionally.

09 11:20:19 If we move on to the tax claim, we must note that to

10 11:20:25 this day -- and we have stated that in the defence, we

11 11:20:28 didn't shy away from doing it -- to this day, there is

12 11:20:31 no evidence on the surfaces that were imported by the

13 11:20:35 operator or allegedly import by the operator. We don't

14 11:20:39 have contracts, we don't have invoices, we don't have

15 11:20:42 payments; there is no evidence whatsoever.

16 11:20:43 What they are relying on is a letter issued by

17 11:20:47 His Excellency in 2016 -- sorry, in 2020 based on their

18 11:20:57 request, telling the ministry: please consider excepting

19 11:21:00 or reducing the sales tax on these services that they

20 11:21:03 allege based on their request, knowing that the ministry

21 11:21:05 would then require more details from the operator and

22 11:21:09 that that chain would be established with the ministry,

23 11:21:12 that chain of evidence evidencing that the services they

24 11:21:15 are alleging are in fact true.

25 11:21:17 But, obviously, this does not mean that GAM was

---

---

01 11:21:22 responsible for that or that any obligation was on GAM

02 11:21:24 to procure a tax exemption for that.

03 11:21:26 So let us go back on claim number 1 and go through

04 11:21:30 the arguments straightaway.

05 11:21:32 As part of claim number 1, the operator requests

06 11:21:37 around 1 million Jordanian dinars in damages. As

07 11:21:41 a result, there are two allegations: breach of the

08 11:21:44 original contract and/or subsequent agreements by GAM

09 11:21:49 or, alternatively, for a change in law. How can you in

10 11:21:55 one instance allege a breach and then in another

11 11:21:57 instance allege it's a change in law? There is inherent

12 11:22:01 contradiction in those two elements. If it's a change

13 11:22:04 in law it's not a breach, and if it's a breach it's not

14 11:22:06 a change in law.

15 11:22:07 This sum, the 1 million sum of sales tax, the

16 11:22:14 operator alleges without any proof whatsoever,

17 11:22:18 represents sales tax levied on services imported by the

18 11:22:21 operator's local branch, the foreign operating office,

19 11:22:25 between 2016 to 2020.

20 11:22:26 The services the operator alleged without any proof,

21 11:22:31 as well, are design and engineering consultancy services

22 11:22:36 rendered by the operator's member companies, the member

23 11:22:40 companies of the JV in Greece, to the local branch.

24 11:22:44 Again, without evidence.

25 11:22:45 In bridging its requests and the facts alleged, it

---

---

01 11:22:52 says breach or change in law and it says this is the  
02 11:22:54 amount and this is what it represents, in bridging those  
03 11:22:58 together, it says it bases the claim on the notion that  
04 11:23:02 such sales tax could have been exempted under the 2015  
05 11:23:07 renewable energy regulations, and lo and behold, the  
06 11:23:11 2015 regulations do not address any other services other  
07 11:23:16 than design and engineering consultancy.  
08 11:23:18 So they've framed their claim as design and  
09 11:23:22 engineering consultancy services without any evidence  
10 11:23:25 because they know that this is the only thing that was  
11 11:23:27 covered under the 2015 regulations, or potentially to be  
12 11:23:31 covered under the 2015 regulations, and because they  
13 11:23:34 know that the context of the agreements, the subsequent  
14 11:23:37 agreements that took place after 2015, in 2015 and  
15 11:23:42 afterwards, were built on the 2015 regulations and not  
16 11:23:47 any other regulation. It's not just a wide  
17 11:23:49 all-encompassing exemption that we're talking about, and  
18 11:23:52 we will come to that in a bit.  
19 11:23:53 They say it allows for zero-rated sales tax on these  
20 11:23:59 services, when imported, and of course there's a huge  
21 11:24:03 difference between zero-rated sales tax and then  
22 11:24:06 exemption from sales tax. A zero-rated sales tax means  
23 11:24:11 that whatever is being imported is still subject to  
24 11:24:14 sales tax under the sales tax law, albeit at a rate of  
25 11:24:18 0 per cent.

---

---

01 11:24:18 An exemption from sales tax means it is no longer  
02 11:24:22 subject to sales tax, and that distinction is very clear  
03 11:24:25 in the sales tax law. We'll get to why this is  
04 11:24:28 extremely, extremely relevant.  
05 11:24:30 So, of course, they say the 2018 regulations  
06 11:24:40 abolished the potential tax reduction on imported design  
07 11:24:44 and consultancy services, engineering consultancy  
08 11:24:47 services, and therefore that constitutes a change in law  
09 11:24:50 which we will see in a bit.  
10 11:24:52 The original contract. They have presented a slide  
11 11:24:55 showing GCC 5.6. This is the original contract.  
12 11:24:58 They have omitted deliberately now in the  
13 11:25:03 presentation limb 3 of this clause. This clause  
14 11:25:09 together states that the contract price shall be  
15 11:25:12 inclusive of all taxes and levies. All taxes and  
16 11:25:16 levies.  
17 11:25:17 It then states that it is on the operator to  
18 11:25:22 actually calculate the taxes prevailing when it submits  
19 11:25:26 its bid 30 days prior to the submission deadline, which  
20 11:25:30 was April 2010.  
21 11:25:31 Then it tells the operator that even if you fail to  
22 11:25:36 do that, it is your responsibility, because you failed  
23 11:25:39 to price your bid according to the prevailing taxes and  
24 11:25:42 the contract price is deemed inclusive of all taxes.  
25 11:25:44 Then it further states even if there were exemptions

---



---

01 11:25:49 at that point in time when you are pricing your bid, or  
02 11:25:52 even if exemptions were possible after you submit your  
03 11:25:56 bid, you're required to dismiss that and you're required  
04 11:25:59 to calculated based on the prevailing prices. This is  
05 11:26:01 in the instructions for bidders, not in this clause, but  
06 11:26:04 they should be read together, and this is in the  
07 11:26:06 statement of defence.  
08 11:26:06 Where is the limb that is a killer in this  
09 11:26:11 particular instance? It's limb 3, which was omitted  
10 11:26:14 from the presentation.  
11 11:26:14 It says that if an exemption is obtained in respect  
12 11:26:20 of any tax under the contract, then a contract price  
13 11:26:23 adjustment shall take place by reduction. Whether or  
14 11:26:27 not you have taken the tax in your bid, then we are  
15 11:26:30 going to reduce the price if an exemption is taken out.  
16 11:26:33 So what happened in the subsequent agreements? As  
17 11:26:40 stated earlier, the operator attempted to split the  
18 11:26:43 phases in order to escalate its prices for those phases,  
19 11:26:47 and at the time of bid when it was seeking  
20 11:26:48 clarifications from GAM, it actually posted this  
21 11:26:51 question in its clarifications. Can we split the  
22 11:26:54 phases? GAM said no. Under separate contracts. GAM  
23 11:26:58 said no.  
24 11:26:58 Then it concocted a way whereby it forcefully split  
25 11:27:03 those phases over time. So in 2015, when phase 2 was

---

---

01 11:27:07 concerned, new phase 2, which is cells 1 and 3, the  
02 11:27:11 operator submitted a price escalation. In that price  
03 11:27:17 escay larks it noted 800,000JDs, around 800,000JDs ^ as  
04 11:27:22 additional taxes compared to what was already in its bid  
05 11:27:26 on goods, on imported goods.  
06 11:27:29 It made a huge fuss about this, saying that we're  
07 11:27:35 sorry, we didn't take into account these taxes in our  
08 11:27:38 original bid. So it's their false. If I get an  
09 11:27:42 exemption of that based on original contract, then  
10 11:27:44 I would reduce the price by 800,000, because they're  
11 11:27:47 deemed to have taken that price into account.  
12 11:27:49 The DBE alerted the operator of this and he told  
13 11:27:56 them you're supposed to have taken the taxes into  
14 11:27:58 account.  
15 11:27:58 They refused to commence new phase 2 without  
16 11:28:01 something to address this. Of course no mention of  
17 11:28:04 services was made in this price its caylation or taxes  
18 11:28:08 on services.  
19 11:28:08 Eventually, the parties agreed on the 2015 agreement  
20 11:28:14 and the context behind that agreement is totally set out  
21 11:28:17 in our defence -- totally. There is not even one  
22 11:28:21 exhibit or one documentary matter which was omitted from  
23 11:28:26 this context.  
24 11:28:27 That particular provision it was entered into for  
25 11:28:32 the purposes of covering goods and not anything else ^

---

---

01 11:28:37 this was the request of the operator and it says within  
02 11:28:40 this new addition in the 2015 agreement, that when the  
03 11:28:43 tax reduction is approved on those goods, then no  
04 11:28:48 consequential price adjustment by reduction shall take  
05 11:28:51 place. Why? Because the 800,000 escalation in the  
06 11:28:54 price 2015 price escalation was removed by the operator,  
07 11:28:58 on the assumption that a reduction will take place.  
08 11:29:00 I'm looking at the budget line item. It says  
09 11:29:08 a taxation on imported goods and duty stamps on  
10 11:29:11 contract variation. This is the exact same thing that  
11 11:29:13 was written as a need of further coverage from GAM and  
12 11:29:19 this is an extra contractual claim. Again, this is  
13 11:29:22 something which they should have borne under the  
14 11:29:24 original contract.  
15 11:29:25 So both before and after signature of this  
16 11:29:31 agreement, correspondence took place, the operator was  
17 11:29:34 asked, in order for us to go and request, because the  
18 11:29:37 obligation here is to request an excerpt, it's not to  
19 11:29:40 achieve a result ^, it's to request an exemption under  
20 11:29:43 the 2015 regulations.  
21 11:29:44 So it's a continuation of the reasonable efforts  
22 11:29:48 that was stated in the original contract. It's not an  
23 11:29:52 olgation of result by any means, but in any case,  
24 11:29:56 whenever a request is to be made by GAM, they will need  
25 11:29:58 the supporting information from the operator. They

---

---

01 11:30:01 cannot just simply assume that the operator is importing  
02 11:30:04 other things without the operate for having disclosed  
03 11:30:08 that to GAM and told them I want a reduction in respect  
04 11:30:11 of this.  
05 11:30:11 So lists were September out ^^ provides us lists  
06 11:30:15 what you want a tax reduction on. They provided lists.  
07 11:30:17 These are all goods. No mention of any services.  
08 11:30:22 They were fully aware of the cycle of correspondence  
09 11:30:25 with the ministry, up until the reduction was granted on  
10 11:30:31 those goods. They could see that, because they were  
11 11:30:34 responsible for clearance of those goods when they  
12 11:30:40 impodded them, so they had to have the decision with  
13 11:30:43 them and what it covered.  
14 11:30:44 Even the application itself that was sent by GAM to  
15 11:30:50 the ministry and said we want a tax reduction from ^^  
16 11:30:56 prees consider this application. Here is the list  
17 11:30:58 provide ^^ items which they want a tax reduction on.  
18 11:31:02 It's annexed. This was stated in fine print below the  
19 11:31:07 paragraph. They now state that because this is in  
20 11:31:09 Arabic, and because they had it, they confirmed that  
21 11:31:13 they had it, but they say that because this was in  
22 11:31:15 Arabic and because it's in fine print, we didn't see  
23 11:31:18 that.  
24 11:31:18 We didn't see that you only mentioned goods. What  
25 11:31:22 you were providing lists for goods only. You should

---

---

01 11:31:24 have known.

02 11:31:24 So moving on to phase 3, phase 3, the very important

03 11:31:31 thing that we need to establish is whether these

04 11:31:34 agreements, the 2015, 2017, 2019 agreements are to be

05 11:31:39 read together or to be read separately. In the 2017

06 11:31:43 treatment there is no mention of requesting a sales tax

07 11:31:46 reduction from Emaar ^. There is no such addition made

08 11:31:51 to GCC it just says should the tax reduction be delayed

09 11:31:55 by the time the equipment is to arrive in Jordan, the

10 11:31:58 equipment, and even the 2015 agreement it says equipment

11 11:32:02 and materials, it doesn't state services, even if the

12 11:32:06 tax reduction is delayed by the time the equipment, then

13 11:32:08 GAM will take care of the taxes but it assumes ^^ not

14 11:32:13 eventually rejected.

15 11:32:14 There is a counterclaim that was entered in this

16 11:32:17 regard. I believe my colleague has just knitted ^ to

17 11:32:22 the fact that if that condition does not crystallise, if

18 11:32:27 an exemption is not actually issued by the ministry,

19 11:32:30 then certainly the operator does not, is not entitled to

20 11:32:35 the amount paid by GAM, because GAM is basing it on

21 11:32:38 paying that amount and then recovering from it the

22 11:32:40 authorities when the reduction is granted by Mina ^

23 11:32:45 those were rejected.

24 11:32:45 He says then that there is an unjust enrichment

25 11:32:54 issue with this and this is totally not, this the

---

---

01 11:33:02 totally false.

02 11:33:02 Applying that regime on a contractual matter is

03 11:33:07 first of all, wrong. Seconds of all, any claim for

04 11:33:11 unjust enrichment, one of the pre requisites to prove

05 11:33:14 unjust enrichment is to show that payment was made

06 11:33:17 without their order, without their request. As in

07 11:33:21 a gift. This payment was made based on the request.

08 11:33:26 They requested us to pay this amount. I was based on

09 11:33:29 a contractual provision. How could you then allege

10 11:33:32 unjust enrichment as a defence to this? It has no

11 11:33:35 relevance whatsoever.

12 11:33:36 So in the 2017 agreement --

13 11:33:46 MR AL BASHIR: More than 30 minutes because you start ^^.

14 11:33:51 DR AL BASHIR: More than 30 minutes because you start ^^.

15 11:33:55 (Discussion off the record).

16 11:33:57 MR A NAJDAWI: When the 2017 agreement was entered into, it

17 11:34:04 was preceded by another price escalation for the power

18 11:34:07 plant. The price escalation did not include the taxes

19 11:34:11 on goods that were previously included in the 2015

20 11:34:14 regulations, because that price escalation, the 2015

21 11:34:18 regulation, the 2015 escalation, included goods for both

22 11:34:21 phases 2 and 3 on the assumption that the operator will

23 11:34:24 proceed with both phases and those were already subject

24 11:34:27 to a tax reduction.

25 11:34:27 In 2017 when obviously GAM was forced to accept

---

---

01 11:34:33 their proposal again, the only requested an add December  
02 11:34:36 Al tax reduction on spare parts and consumables, only.  
03 11:34:40 This is what was rejected by the ministry.  
04 11:34:42 Because the 2015 regulations require inputs to be  
05 11:34:46 directly inputs and the design in the delivery ^^ of  
06 11:34:50 a renewcial energy system. It cannot be spare parts.  
07 11:34:53 Then we go to 2019.  
08 11:34:58 Look here. The record speaks for itself. Further  
09 11:35:04 correspondence took place of course, further  
10 11:35:06 correspondence with the ministry. No mention of  
11 11:35:08 services whatsoever, nothing.  
12 11:35:10 In 2019, there is the new phase 4, cell 4, which was  
13 11:35:16 given to them. They request as part of their price  
14 11:35:22 offer, that the certain goods be also exempted from  
15 11:35:29 sales tax and they inserted a new clause in 2019  
16 11:35:33 agreement saying that taxes on imported goods shall not  
17 11:35:36 be the responsibility of the operator. It's clear.  
18 11:35:39 It's all about goods. There is no services.  
19 11:35:41 We move on to then the -- there is just one bid  
20 11:35:47 I would like to handing regarding the change in law ^.  
21 11:35:50 Because my colleague just mentioned it in his statement.  
22 11:35:53 I thought this is worthless. I thought this is  
23 11:35:55 pointless to address, to be honest in the statements.  
24 11:35:57 But I needs to address it. For the tribunal.  
25 11:36:01 The change in law it's not just any change in law.

---

---

01 11:36:07 It has to be a change in law by reference to an existing  
02 11:36:11 legal framework. You have to compare the change that  
03 11:36:13 occurred, the alleged change, to an existing legal  
04 11:36:16 framework and this is standard practice. This is  
05 11:36:18 standard language in change in law provisions. To an  
06 11:36:21 existing legal framework that was present a certain  
07 11:36:24 period.  
08 11:36:24 What is that period? 30 days prior to the bid  
09 11:36:27 submission deadline. What is the bid submission  
10 11:36:29 deadline? 17 May 2010. So 30 days prior to that,  
11 11:36:36 always remained, it was never changed. It was never  
12 11:36:39 amended. It always remained april 2010.  
13 11:36:42 So the 2018 regulations, everyone if they abolished  
14 11:36:49 ^ a specific provision on tax reduction in the 2015  
15 11:36:53 regulations, this is not a change compared to the  
16 11:36:57 existing legal framework in 2010. Because the existing  
17 11:37:01 legal framework in 2010 did not even include the  
18 11:37:04 possibility of reducing taxes on whatever they allege  
19 11:37:09 they've entitled to reduce taxes on.  
20 11:37:10 So this is not a change in law. This is by all  
21 11:37:14 means cannot be a change in law and to add to that, the  
22 11:37:16 subsequent agreements in the SCCs of those subsequent  
23 11:37:21 agreements which hold the highest priority, they state  
24 11:37:25 that the contract price shall not be suckets to any  
25 11:37:30 alteration ^ except where there is a variation in the

---



---

01 11:37:34 works or in the operation services, meaning they have  
02 11:37:37 superseded GCC 9.10 which talks about alteration  
03 11:37:41 specifically alteration of the contract prices for  
04 11:37:43 changes in law.  
05 11:37:43 This clause was no longer to be operative.  
06 11:37:48 So as we just stated, the operator not even once  
07 11:38:02 they requested a tax reduction on sales tax.  
08 11:38:05 Even their claims, their claims came in late 2020,  
09 11:38:09 they started off by saying, subject to sales tax with  
10 11:38:13 sents or services imported in 2016 ^^.  
11 11:38:16 Then this abankrupt I will changed in June 2021 ^  
12 11:38:21 where they abruptly stated, no, it's not just 2016, the  
13 11:38:25 tax department also caught us with further services  
14 11:38:28 imported throughout 2017 to 2020.  
15 11:38:32 The final amount was 900,000 after as they allege  
16 11:38:37 they were exempted from penalties and fines ^.  
17 11:38:39 So the question is why was this not discovered long  
18 11:38:44 before? The answer is simple. They wanted to obscure  
19 11:38:48 it. They didn't want to disclose this. Secondly, I'll  
20 11:38:52 tell you why now. Secondly, they deliberately cancelled  
21 11:38:58 the registration with the tax department on the  
22 11:39:01 assumption as they state now in the statements, that  
23 11:39:03 they will be given an exemption. Whereas the 2015  
24 11:39:06 regulations talk about a reduction down to  
25 11:39:10 zero per cent, meaning the imported service continues to

---

---

01 11:39:13 be subject to sales tax albeit at a rate of 0 per cent,  
02 11:39:17 which n Dr The sales tax laws requires not only  
03 11:39:20 registration by them, but also filing of those services.  
04 11:39:23 So it cannot be that they have been paying  
05 11:39:28 withholding taxes on those imported services and then  
06 11:39:31 alleged later we didn't know, the sales department ^^  
07 11:39:34 income tax department in 2020 and they wellised we are  
08 11:39:38 paying ^^ on these services and now for sales tax.  
09 11:39:40 This should have been known in 2016. Even if GAM  
10 11:39:45 wanted to address this, even if they wanted to address  
11 11:39:48 it, they could have told us from 2016.  
12 11:39:51 So that failure to maintain the registration is  
13 11:40:00 absolutely crucial coupled with the fact that they never  
14 11:40:04 mentioned anything about services.  
15 11:40:05 Moving on to this day, there is no evidence of what  
16 11:40:14 these services are. No contracts, no invoices, nothing.  
17 11:40:17 When cornered with the argument that where have you  
18 11:40:23 imported these services from? Can it be from  
19 11:40:26 a subcontractor without getting our approval? The  
20 11:40:28 amount of sales tax is 1 million. It means that the  
21 11:40:31 services imports was in a value of 7 million.  
22 11:40:32 They said no, in their reply for the first time  
23 11:40:38 ever, these were obtained from the JV member companies.  
24 11:40:42 Why? Why are you creating a duplicative tax cycle  
25 11:40:48 between you and those members when GAM is paying the

---

---

01 11:40:51 local branch for invoices issued by the local branch  
02 11:40:55 including sales tax in applicable on those invoices?  
03 11:40:58 Why have GAM or why have extra additional sales tax be  
04 11:41:04 imposed on a duplicate cycle? What is that 7 million?  
05 11:41:07 The entirety of the value of the design, because they're  
06 11:41:11 saying design and engineering consultancy, they are  
07 11:41:13 saying design and engineering. The entire value of the  
08 11:41:16 scope of design and engineering from 2016 to 2020 is  
09 11:41:23 350,000. It's not 350, it's less than that ^^.  
10 11:41:26 Can it be that an amount of sales tax on imported  
11 11:41:30 design and engineering consultancy services ^ is higher  
12 11:41:34 than the amount in the contract? Can you contract with  
13 11:41:37 a person at a contract value of 1 million only for them  
14 11:41:40 to come and say, well, I have subcontracted Beijing at  
15 11:41:44 a rate of 7 million and you're liable for those taxes or  
16 11:41:47 you're liable for whatever additionally arises out of  
17 11:41:50 that? Is that even commonsense? What was done really,  
18 11:41:54 in fact, was that they were finally money outside Jordan  
19 11:41:58 as expenses ^^ they didn't want the local breach to pay  
20 11:42:02 income tax on revenues it took from GAM and therefore  
21 11:42:05 everything that it took as revenue is reflected as  
22 11:42:09 expenses to the JV member companies. Those were not  
23 11:42:11 actual services, not actual services invoices.  
24 11:42:14 This included construction. Imagine importing  
25 11:42:19 construction services from the JV member companies in

---

---

01 11:42:23 Greece when they're not even here.

02 11:42:24 Obviously, this is totally outside the scope of the

03 11:42:31 2015 regulation. So not only they did not mention it,

04 11:42:34 this could never have been fore sign in any way, shape

05 11:42:37 or form.

06 11:42:37 Moving on to claim number 2. I've tried to finish

07 11:42:42 up quickly because I still have the counterclaim to go

08 11:42:45 through, but these two claims are major.

09 11:42:46 Claim number 2, they allege there was a change in

10 11:42:52 law. Even here. It is not that they have omitted

11 11:42:57 a large volume of evidence. It's that when quoting that

12 11:43:00 evidence in their statements, they omitted huge portions

13 11:43:03 from that evidence. They couldn't omit the evidence

14 11:43:06 altogether.

15 11:43:06 They put forward the claim for substantial increase

16 11:43:10 in the contract price of 800K. The remedy is alteration

17 11:43:14 in the contract price by increase.

18 11:43:15 800K.

19 11:43:17 So account for alleged delay and disruption costs.

20 11:43:23 Arguing that restrike ^^ Covid-19 specifically the

21 11:43:26 travel ban were a change in law which caused such costs.

22 11:43:30 Obviously did not. It wasn't the travel ban that caused

23 11:43:33 such costs. If anything it was the fact that they let

24 11:43:36 their personnel leave just days before the travel ban

25 11:43:39 took effect, while having admitted that they knew that

---

---

01 11:43:42 travel ban was coming into effect before it actually  
02 11:43:44 came into effect, they let them go and one confronted  
03 11:43:49 when this ^ they said well, they took annual leaves and  
04 11:43:53 I have to abide by the law.  
05 11:43:54 Annual levels in the midst of construction works?  
06 11:44:00 They order 2345EUR8 length in the ^^ construction works  
07 11:44:02 in the midst of them. For annual leave and these were  
08 11:44:06 critical personnel three personnel without which without  
09 11:44:09 whom the project could not have proceeded?  
10 11:44:11 Then they tell you, my colleague has just knitted  
11 11:44:15 on record during his opening statement, that okay, we  
12 11:44:18 did that for the construction aspect, but for the  
13 11:44:20 operation, we didn't. Because we wanted to ensure  
14 11:44:22 continue knewty of the operations.  
15 11:44:24 So we didn't get our personnel leave Jordan, the  
16 11:44:28 operations personnel, yet the construction is  
17 11:44:30 a different aspect of course. Because there's a claim  
18 11:44:32 for delay costs.  
19 11:44:33 They place particular emphasis on the travel ban.  
20 11:44:42 Of course it's claim for 800K was originally 300K and  
21 11:44:46 the distinction here is not as my colleague states.  
22 11:44:48 It's because simply we're saying why 300K to 800K. If  
23 11:44:52 you look at the original claim, which was final, it was  
24 11:44:56 prepared over a period of one year during the project  
25 11:44:58 and not an interim claim by any means, it was final.

---

---

01 11:45:02 Employee seeded by interim claims.  
02 11:45:03 It was referencing the exact budget lines agreed  
03 11:45:07 under the contract. So whenever there's a delay, they  
04 11:45:10 would adjustment the figures in the budget lines and  
05 11:45:13 then they would document up with a value. This is not  
06 11:45:16 to say that we agree with the mechanism.  
07 11:45:18 But when you see an increase of 800K, mostly  
08 11:45:23 attributed to overheads, home office overheads, the  
09 11:45:27 overhead of the JV office in Greece who has many other  
10 11:45:30 project, not limited to construction, not limited to  
11 11:45:33 design, not limited to Jordan.  
12 11:45:34 And you see that the discrepancy is mostly  
13 11:45:40 attributed to that, then the situation is clear. The  
14 11:45:44 budget lines in the contract do not account for home  
15 11:45:46 office overhead of the JV. Therefore, we did not agree  
16 11:45:49 on this price being part of contract and therefore their  
17 11:45:52 claim is not really to alter the contract price using  
18 11:45:57 change in law. The change in law provision. It's to  
19 11:45:59 renegotiate the prices under the contract by assuming  
20 11:46:04 that the JV's overheads are compensable. Mind you, the  
21 11:46:08 remedy under change in law is alteration of the contract  
22 11:46:11 price. It cannot be by having new budget lines being  
23 11:46:15 added to the contract. New itemmised budget lines.  
24 11:46:18 So of course the claim is not limited to salaries  
25 11:46:25 paid to employees, which they allege they could not have

---

---

01 11:46:27 terminated.

02 11:46:27 It includes medical treatment bills, car repair

03 11:46:34 costs, redecoration costs of premises and apartments.

04 11:46:40 2,300-page appendix which no one can actually review

05 11:46:45 within any period of one month, two months, three

06 11:46:48 months. It cannot be reviewed. They're stacked up

07 11:46:51 together without references and not having been

08 11:46:53 submitted as documenttry evidence. They're not

09 11:46:56 numbered. They're not paginated. They're not

10 11:46:58 sequenced.

11 11:46:58 So the way they've approached this claim is by

12 11:47:08 saying -- the way they've tried to frame this claim is

13 11:47:19 bay saying first duj the ^^ force majeure ^^ continued

14 11:47:23 to be a force majeure throughout the entire term of the

15 11:47:24 project for them based on their admissions.

16 11:47:26 They never stated not even once that the travel ban

17 11:47:31 was a change in law. No notice was given in this

18 11:47:33 regard. The notice on change in law was on the defence

19 11:47:35 law and the defence ordinances, which contained no

20 11:47:38 travel ban. There is no travel ban on that.

21 11:47:41 Then in their reply, when they were --

22 11:47:48 DR AL BASHIR: Repeat this point, please.

23 11:47:52 enduring this project on a change in law was not based

24 11:47:55 on a travel ban and everything they're arguing concerns

25 11:47:58 a travel ban in their claim now in this arbitration.

---

---

01 11:48:00 The notice they gave during the project was a change in  
02 11:48:04 law due to the National Defence Laws and the national  
03 11:48:07 defence ordinances, which contained no travel ban.  
04 11:48:10 The travel ban per se and every single restrictive  
05 11:48:15 measure other single restrictive measure which they  
06 11:48:18 allege is a change in law, throughout the project,  
07 11:48:20 consistently was held as force majeure by them. Even  
08 11:48:24 the travel ban.  
09 11:48:25 Specifically, and speses I will held as force  
10 11:48:28 majeure.  
11 11:48:28 So of course they obscured that from their claim.  
12 11:48:35 When you read the claim, they don't show you this aspect  
13 11:48:37 of their quoted exhibits.  
14 11:48:39 Again, to mislead and to misrepresent the context.  
15 11:48:42 Again, we state GCC 9.10 which is the change in law  
16 11:48:50 was rescinded entirely by virtue of the subsequent  
17 11:48:54 agreements. They say the contract price shall not be  
18 11:48:57 subject to any alteration, except where there is  
19 11:49:00 a variation in the works or a variation in the  
20 11:49:02 operations.  
21 11:49:02 It cannot be subject to any alteration.  
22 11:49:04 The remedy in the change in law clause is only an  
23 11:49:08 alteration -- only an alteration of the contract price.  
24 11:49:11 Not a claim for prolongation costs, an alteration.  
25 11:49:13 Now, GCC -- when phased GCC of course 9.86 states ^

---



---

01 11:49:24 that I shall not be liable for any prong occasion cost  
02 11:49:29 and they shall not be entitled to any claim for  
03 11:49:32 prolongation costs as a result of any delays experienced  
04 11:49:34 because of force majeure. Based on their admissions  
05 11:49:37 during the project, this was all caused based on their  
06 11:49:40 admissions, without in addition, that this was caused by  
07 11:49:44 a force majeure.  
08 11:49:44 And that is why in good faith -- before I address  
09 11:49:51 that, when we stated this clause in their reply they  
10 11:49:54 attempted to reshuffle claim number 2. First they were  
11 11:49:58 seeking compensation under GCC 9.10 in their claim. Of  
12 11:50:02 course in the project it was force majeure. Claimant it  
13 11:50:05 was change in law. Specific performance ^^ a claim for  
14 11:50:07 specific performance of the contract and then now in  
15 11:50:11 their reply to the defence on the claim, they say no,  
16 11:50:14 it's a statutory claim under article 205 of the Civil  
17 11:50:17 Code.  
18 11:50:17 This flailing line of argumentation just shows that  
19 11:50:31 there is a complete lack of entitlement to this. They  
20 11:50:35 knew about 9.86 ^. They knew they couldn't claim for  
21 11:50:38 these costs.  
22 11:50:38 Of course Civil Code article does not even work in  
23 11:50:43 their favour. We have stated that in the defence in  
24 11:50:47 a very detailed manner.  
25 11:50:48 Obviously the remedy under article 2050 it was never

---

---

01 11:50:55 invoked ^ in the claim to begin with. It cannot be  
02 11:50:58 invoaj ^^ change the entire basis of the claim in  
03 11:51:01 a reply. The remedy to rebalance cannot be by shifting  
04 11:51:05 the entire cost on me. Even if that article applied.  
05 11:51:09 What is particularly interesting is that -- and this  
06 11:51:18 is where I posit that there is something wrong with the  
07 11:51:20 DB engineer. The determination you are not entitled to  
08 11:51:26 claim for a change in law ^^ . Because you have stated  
09 11:51:29 this is force majeure and we've proceeded on the basis  
10 11:51:32 that its force majeure.  
11 11:51:32 But suddenly, after GAM issued a decision approving  
12 11:51:41 any extension and I'm not saying whether it's force  
13 11:51:43 majeure or otherwise, they gave it in good faith like  
14 11:51:45 the other ministries, it's the same period, 94 days or  
15 11:51:49 92 days of which it considered 70 days as suspension.  
16 11:51:53 So it's not the full 170 days.  
17 11:51:55 They issued it on the condition that this shall be  
18 11:52:01 within the contract prices already in existence.  
19 11:52:05 Meaning no alteration, no financial consequence on GAM.  
20 11:52:09 So they're rejected the argument on the change in law.  
21 11:52:12 The DBE after probably six months of the operator  
22 11:52:16 continuing to pursue its claim, then issues a proposal  
23 11:52:20 for settlement.  
24 11:52:20 That proposal for cement the DBE has no 240R9 issue  
25 11:52:25 ^^ . He's a DBE. If you want to issue a determination,

---

---

01 11:52:28 issue a determination, but not a proposal for  
02 11:52:30 settlement. He states why don't you just split the  
03 11:52:32 costs 50:50.  
04 11:52:32 You've stated that this cannot fly. This claim  
05 11:52:37 cannot fly under the contract. You come six months  
06 11:52:39 later and you say why don't you split the cost and in  
07 11:52:44 the fine manuscript of the last page of that proposal  
08 11:52:48 for settlement ^^, he says this is a determination.  
09 11:52:50 Look how sneaky that document was. This is what  
10 11:52:56 they're relying on.  
11 11:52:57 S the basis of their claim ^^.  
12 11:53:00 So all of these are extra contractual gains that the  
13 11:53:11 operator not only recovered during the project through  
14 11:53:15 various mean, but they also wish to recover from or  
15 11:53:18 through the tribunal.  
16 11:53:19 I go now into detail about article 5. I think this  
17 11:53:26 is per ^^ in the statement of defence, perfectly laid  
18 11:53:29 out ^. I think it's very important to read that,  
19 11:53:31 because there are certain aspects which cannot all ^^  
20 11:53:35 they're arguing import, article 205 ^^ burdensome, not  
21 11:53:40 impossibility, not prevention.  
22 11:53:40 Obviously the operator is in breach of contract in  
23 11:53:47 this particular. The cause of the costs which they  
24 11:53:49 allege, if they are true, is their action in having  
25 11:53:53 their key personnel leave before and we have requested

---

---

01 11:53:56 evidence from the border control --

02 11:53:59 PRESIDENT: Yes, you did.

03 11:54:00 MR A NAJDAWI: To see where they left exactly. They left

04 11:54:04 after they knew a travel ban was incoming.

05 11:54:06 PRESIDENT: We will address this matter after the hearing

06 11:54:10 sessions concluded.

07 11:54:12 MR A NAJDAWI: So the quantum I will not go through as well

08 11:54:23 in this opening, because we don't have time. I'll go

09 11:54:25 through the rest of the claims quickly and then move on

10 11:54:27 to the counterclaim. I'll start with claim number 5,

11 11:54:30 sorry --

12 11:54:30 PRESIDENT: But you have only 17 minutes, I think.

13 11:54:34 MR A NAJDAWI: I'll try my best. So I'll start with claims

14 11:54:39 not 3 and 4 now, but 5 and 6. 5 is the claim on

15 11:54:44 adjudication. The claim was written in a ways will

16 11:54:48 omitting context. It was written in a way to show that

17 11:54:51 GAM stifled the progress. We all know this is a dispute

18 11:54:55 resolution mechanism in a contract. It always accounts

19 11:54:58 for one party delaying whatever needs to be done on its

20 11:55:02 part.

21 11:55:02 Every single item in the dispute resolution process

22 11:55:07 says in we do not agree to an adjudicator, go and

23 11:55:10 appoint an ged Jude day for by if I did ^^ arbitrator go

24 11:55:14 ^^ arbitrator unionsing the UNCITRAL. It's not even

25 11:55:20 possible to delay adjudication or arbitration

---

---

01 11:55:24 unilaterally. What happened is when you rearrange the  
02 11:55:26 facts chronologically, which they haven't done in their  
03 11:55:30 claim, when you see that the entire purpose behind the  
04 11:55:34 delay is because they kept changing their claims, they  
05 11:55:37 first requested going straight to adjudication on one  
06 11:55:41 claim, then they came back and said no, we need to ^^ on  
07 11:55:44 two claims, then they came back and said no, let's go to  
08 11:55:46 arbitration. Then they came back and said no, let's to  
09 11:55:49 ^^ on further claims.  
10 11:55:50 The entire period, the one year or one year and  
11 11:55:53 a half was because of them. ^^ okay, okay, okay, okay.  
12 11:55:56 What is particularly appalling to me to be honest is  
13 11:56:01 when they go and they talk about what happened during  
14 11:56:06 amicable negotiations, during settlement negotiations,  
15 11:56:10 and there is no decency in any person to go and talk  
16 11:56:15 about these particulars. They even included exhibits.  
17 11:56:18 My answer to that is if only we could give you what  
18 11:56:25 actually happened in the settlementings ins. If only we  
19 11:56:29 could give you the context, I think we wouldn't have  
20 11:56:31 seen most of the claims woe saw in this arbitration.  
21 11:56:36 Because no basis for these claims, and they know it.  
22 11:56:39 They already know it.  
23 11:56:39 This is without even considering the counterclaim,  
24 11:56:44 by the way.  
25 11:56:44 Claim number -- ^^ the adjudicator, her agreement

---

---

01 11:56:57 stated that she wanted us to be jointly and severally  
02 11:56:59 liable for any actions by themed in adduce ^^ we can't  
03 11:57:06 agree to a governing law of Switzerland and courts in  
04 11:57:08 Switzerland. So please amend those. No, I won't.  
05 11:57:13 Those those. We cannot agree to joint and several  
06 11:57:16 liability. I have public assets if they do something  
07 11:57:19 wrong, they ^^ if I do something wrong, I should be  
08 11:57:21 liable for it. She sends an email saying GAM is in  
09 11:57:24 breach of contract. I refuse to continue adjudication.  
10 11:57:26 This is not even a properly appointed audio guy car  
11 11:57:30 by now. Let's no agreement ^^ already saying GAM is in  
12 11:57:33 breach of contract.  
13 11:57:33 Going on to claim number 6 and this is a claim for  
14 11:57:41 the local branchings which is frankly speaking, it is it  
15 11:57:45 letter I will surprising. They're requesting an  
16 11:57:49 experienced certificate, requesting exact feedback on  
17 11:57:52 the performance. So that they do find it in grease.  
18 11:57:55 Positive feedback of course, not negative. They're  
19 11:57:59 requesting that when we have disputes over the actual  
20 11:58:01 performance, and they're saying we have not issued that  
21 11:58:04 experience certificate in bad faith.  
22 11:58:05 They want to force us to issue that experienced  
23 11:58:10 certificate saying they've perform a witness trades,  
24 11:58:12 when we're saying your perform as lousy.  
25 11:58:14 And on the side of the local branch, since when do

---

---

01 11:58:23 local branches continue their commercial activities  
02 11:58:25 after the project cease? Since when? It is man estated  
03 11:58:29 in the law that they're not supposed to commercial  
04 11:58:31 activities this is why they suspend them. This is why  
05 11:58:34 their entire period is connected to the period of the  
06 11:58:37 project. They want a letter from GAM stating that no,  
07 11:58:40 the project is still ongoing and the services are still  
08 11:58:42 ongoing. Please renew the certificate. Please.  
09 11:58:45 And I spoke I've to ^^ name going to be trance  
10 11:58:49 parent about this. I put it in my reply. I stated you  
11 11:58:53 could simply ask for a letter from the tribunal, saying  
12 11:58:56 that there's an arbitration case that's ongoing. What  
13 11:58:58 you care about is not the suspension. Was you care  
14 11:59:01 about is showing the CCD that there is an ongoing right,  
15 11:59:04 n obligation to be settled in arbitration. So that they  
16 11:59:07 don't cancel the registration. But they must remain  
17 11:59:11 suspended.  
18 11:59:11 In their rejoinder in their rejoy ^^ urgent relief  
19 11:59:16 request which you have submit ^^ they have stated that  
20 11:59:19 please have GAM issue a letter stating that the  
21 11:59:21 arbitration, there is an arbitration that is on going.  
22 11:59:23 So they understand the rationale that their original  
23 11:59:27 request is asking us to commit forgery. Saying that the  
24 11:59:30 project is still ongoing and the services and renew the  
25 11:59:34 lines and have them continue their financial ^^

---

---

01 11:59:37 activities and commercial activities. How come?

02 11:59:39 Going back to claims 3 and 4, this is a claim for

03 11:59:44 additional -- I will refer just to my defence, but it's

04 11:59:48 helpful to note that one of these invoices is an invoice

05 11:59:51 for additional works, not the operations of the last,

06 11:59:55 there are four invoices for operations in the last month

07 11:59:57 of July, which was not paid because they haven't done

08 12:00:01 proper operations obviously.

09 12:00:02 There is another invoice for addis AI works ^.

10 12:00:09 These works were part of the variation order that they

11 12:00:11 talked about.

12 12:00:11 The issue is that in their claim they did not submit

13 12:00:15 the variation order. They didn't want to. So we

14 12:00:18 responded by saying your claim is not based on qualm Tim

15 12:00:21 merit ^^ what you're actually done and you have no basis

16 12:00:24 to claim for value of whatever you performed without

17 12:00:28 a variation order.

18 12:00:28 Why did they not submit it? They submitted nit

19 12:00:31 their reply after this defence.

20 12:00:32 Why did they not submit it originally? They have

21 12:00:36 not even completed 10 per cent of the works required in

22 12:00:39 that variation order. Effectively disentiing them

23 12:00:45 from the invoice that they sent, assuming thief done the

24 12:00:48 works properly for that invoice. Not even 10 per cent.

25 12:00:50 They didn't want to -- they want to about a scour

---



---

01 12:00:55 the context. Fen, way don't tell you we have done  
02 12:00:58 everything perfectly. We haven't abandoned the project.  
03 12:01:00 No, you have abandoned the project in an extremely bad  
04 12:01:04 state and you have also aban dod additional worksment  
05 12:01:08 it's simple.  
06 12:01:08 For the claim on late payment interest, I don't know  
07 12:01:14 what to tell you. I refer to my defence and when we  
08 12:01:18 face this with a defence, they come back and say  
09 12:01:21 contractual late payment interest is like delay damages.  
10 12:01:24 It's like liquidated damages. You can't tell us that we  
11 12:01:27 can't go above the 9 per cent for matters of public  
12 12:01:33 order. Because it's delay damages. It can be  
13 12:01:35 20 per cent for all we caimplet it's late payment  
14 12:01:38 interest under the contract.  
15 12:01:39 How is this ever like -- I don't understand where  
16 12:01:43 this is coming from. Liquidated damages, penalty  
17 12:01:47 clause.  
18 12:01:47 Going to the counterclaim. The counterclaim story  
19 12:01:54 is very clear. Everything is based on their letter.  
20 12:01:59 They have admitted to every single issue in the project  
21 12:02:02 before they left. Why? The question is why?  
22 12:02:04 After November 2020, that date is very important,  
23 12:02:14 because they have stated it in one of their letters they  
24 12:02:16 said because in November 2020, you have not told us to  
25 12:02:19 renew the contract, then we consider the contract cannot

---

---

01 12:02:23 be renewed on the same terms.

02 12:02:24 In the contract there is a clause that says in we

03 12:02:28 want to renew the operations, we need to notify next six

04 12:02:31 months prior to the end days, which is November 2020 up

05 12:02:35 in we fail to notify, the no renewal shall take place on

06 12:02:38 the same terms.

07 12:02:39 They kept silent about this. They didn't want GAM

08 12:02:43 to renew the contract on the same terms, because

09 12:02:45 obviously they wanted to escalate their prices again for

10 12:02:47 operations. And this is exactly what they did.

11 12:02:50 Come November 2020, it passes in December they start

12 12:02:55 issuing letters you haven't renewed and we can't renew

13 12:02:58 on the same terms. We need renewal now. Please note

14 12:03:01 that if we continue to operate, we will increase our

15 12:03:05 prices exponentially. We need to do 1, 2, 3, 4, 5, #,

16 12:03:10 7. When they were talking about this, they were

17 12:03:12 referencing why they had to reference why obviously

18 12:03:14 justify why there's an increase in cost.

19 12:03:16 They stated H2S, leach it ^^ . For the first time

20 12:03:22 ever. Ever. In the 10 years of a project. Issues in

21 12:03:26 H2S and leach it ^^ . Leachate ^.

22 12:03:29 And they have mentioned other parts as well.

23 12:03:32 Now, these were exponential increase. When the

24 12:03:38 contract was not renewed as they had hoped, obviously

25 12:03:41 they escalated matter. There was a great deal of

---

---

01 12:03:45 animosity from the operator. They came up with claim  
02 12:03:50 number 1 and 2, although it is my opinion that these are  
03 12:03:53 not clai<sup>sz</sup> ^^ before any proper tribunal. Honestly ^^.  
04 12:03:57 And they came up with -- once they were exposed with  
05 12:04:02 the counterclaim, they came up with the technical  
06 12:04:03 arguments which you will see, by the way, the three  
07 12:04:05 expert reports they have been submitted to reject ^  
08 12:04:09 expressly this is the agreement, to reject GAM's  
09 12:04:13 counterclaims. How can this ever be unbiased? If you  
10 12:04:17 appoint an expert who supposed to be independent and up  
11 12:04:20 biased to reject my claims then obviously he will be  
12 12:04:22 biased.  
13 12:04:22 Going through the claims, the engines we received  
14 12:04:28 even ^^ that are in fatal condition at the transfer date  
15 12:04:31 which is July by the way. It's not May. If we go back  
16 12:04:34 to May, they had deferred maintenance from March to May.  
17 12:04:39 So that the engines could be in mint condition on May.  
18 12:04:42 They had deferred the delayed maintenance scheduled  
19 12:04:45 maintenance. They delayed it until May, until the  
20 12:04:47 original end date, when we go in and ^^ they're in my  
21 12:04:50 opinion condition. Give them one further month of  
22 12:04:52 operation and exactly one further month of operation,  
23 12:04:54 650 hour, nothing, they fall apart. They fall apart and  
24 12:05:00 they tell you this is GAM's responsibility.  
25 12:05:01 We extended the operations.

---

---

01 12:05:04 Now a very important aspect to note here is they  
02 12:05:07 have mentioned that we are basing our claim on design  
03 12:05:10 build obligations. No, we're not. They're talking  
04 12:05:14 about defect notification pier. They nided in their  
05 12:05:16 statements that we did not base it on design build  
06 12:05:19 operations or on operations or on something else.  
07 12:05:22 This is a DBO. The contract. It's a turnkey  
08 12:05:26 contract. You have to transfer something that's fit for  
09 12:05:28 purpose at the end of the day. It has to be safe,  
10 12:05:30 operational.  
11 12:05:30 We do not need to show what the root cause wasness  
12 12:05:37 as long as we know that there is Wan ^ transferred  
13 12:05:40 the -- this is collaborated by their own evidence, piert  
14 12:05:42 the transfer date, as long as we find an issue, then  
15 12:05:45 it's your problem.  
16 12:05:46 Mind you, a very important aspect operation services  
17 12:05:51 in the contract they're not -- they're totally distinct  
18 12:05:56 from DB works. They expressly state that the operator  
19 12:06:00 must continue it's a definition, must continue to repair  
20 12:06:03 and rehabilitate the power plant and the cells. It's  
21 12:06:07 not just operation and preventative maintenance as  
22 12:06:10 scheduled maintenance. He has to repair and didn't want  
23 12:06:13 to repair of course the of ray, to they wanted to defer  
24 12:06:15 all of the cost of repairing which should have been at  
25 12:06:18 their responsibility to a new contract, which is why

---

---

01 12:06:21 they were saying extra costs, extras could, if you want  
02 12:06:24 to renew.  
03 12:06:24 The engines were in terrible conditions throughout  
04 12:06:29 the entire period. Even they completed power plant in  
05 12:06:32 mid-2019, and they started operating and then they send  
06 12:06:37 a letter stating we only achieved operational completion  
07 12:06:39 of the power plant in August 2020. Although they stated  
08 12:06:43 that they completed it in mid-2019, because the engines  
09 12:06:46 were from the very beginning, lousy, H2S. The engine  
10 12:06:52 block.  
11 12:06:52 PRESIDENT: I want to remind you that you have only five  
12 12:06:57 minutes left.  
13 12:06:59 MR A NAJDAWI: Okay.  
14 12:07:00 MR H KHIRFAN: From our side, no objection.  
15 12:07:07 MR A NAJDAWI: Thou. ^^ sorry, on the engine point, the  
16 12:07:12 engine block. They make us pay for an engine with an  
17 12:07:16 engine blacks that brand new, as per the contract. Then  
18 12:07:20 they later take ^^ they return it with an injoin black  
19 12:07:23 that is 2007, 13 years old. Then they tell you so what?  
20 12:07:29 It wasn't operated not even for a single hour. They  
21 12:07:34 even concealed it. They even concealed this particular  
22 12:07:37 fact. They told GAM two and reimport the new engine,  
23 12:07:42 the one they've repaired, on the same details of the  
24 12:07:45 original engine. They didn't tell GAM that they put  
25 12:07:48 a new engine block. Which engine block has a fracture

---

---

01 12:07:52 when the engine has not even reached 5 per cent of its  
02 12:07:56 contractual capacity, their capacity? 2 per cent of its  
03 12:08:00 design life. There's a track Chun in the ^^ telling you  
04 12:08:04 no, no defects in the project. Or no deficiencies in  
05 12:08:08 damages in the project. There ^^ for all I care.  
06 12:08:11 I don't care. They have given me a facility that  
07 12:08:13 doesn't work. That's full of damage. I don't need to  
08 12:08:18 prove a root cause. When we go to the H2S and look how  
09 12:08:22 sneaky this is, look how sneaky, the H2S a corrosive  
10 12:08:26 gas. They stated in their letters prior to leaving the  
11 12:08:29 project, that H2S can cause major corrosion to the  
12 12:08:33 engines and to other equipment within the plant. They  
13 12:08:35 have said this. They have said in order to fix this, we  
14 12:08:38 need to do this, we need to do that, we need to do this  
15 12:08:41 and that, maintenance, repair, more personnel, and oil.  
16 12:08:46 In this arbitration, they tell you H2S is just an order,  
17 12:08:50 it's not really that important.  
18 12:08:51 If anything, we change the oil regularly and by  
19 12:08:55 changing the type of oil we fix the problem and here is  
20 12:08:57 an expert report.  
21 12:08:58 So was those lies during the pro to get more money?  
22 12:09:03 Does that mean they have lied about the issue of H2S?  
23 12:09:07 This level of contradiction is insane. It's impossible  
24 12:09:10 to deal with. In every single fact, what's happened  
25 12:09:14 with the H2S. The H2S in 2017, before phase 4 was ever

---

---

01 12:09:19 constructed, they were designing the power plant and  
02 12:09:21 they were already responsible for cell 1, 2, 3. They  
03 12:09:24 recommended to the DB engineer not to have an 42 ^^ in  
04 12:09:29 a plant although it's always prudent to have one by the  
05 12:09:32 way. They recommend not to. Their basis, here is  
06 12:09:35 a schedule that we -- I will get to it.  
07 12:09:39 Here is a schedule that we prepared showing the H2S  
08 12:09:43 readings of cells 1 to 3. How much H2S ^^ unverified  
09 12:09:47 they tell you it's verified. It's unverified. It's  
10 12:09:50 a schedule ^^ no one knows anything about it. We have  
11 12:09:54 no automated rated, to look back at. They have been  
12 12:09:57 threatened all once they transferred the facility.  
13 12:09:59 So they have recommended no H2S treatment unit.  
14 12:10:03 Why? Because their bid is too low to account for that.  
15 12:10:06 Their price escalation was too low to account for ^^  
16 12:10:10 even though it's on their part it's a fitness for  
17 12:10:13 purpose standard.  
18 12:10:13 We move on they construct the power plant. They  
19 12:10:18 know that the H2S readings of cells 1 to 3 are high, be  
20 12:10:22 they want to obscure it. The ^^ system in the power  
21 12:10:25 plant is limited to 150. You can't tell.  
22 12:10:27 Then they abruptly come and tell you in 2020, end of  
23 12:10:32 2020, they want to blame cell 4 for the H2S issue. Why?  
24 12:10:37 Because this was an additional phase after a designed  
25 12:10:40 the power plant. So its trying to deflect

---

---

01 12:10:43 responsibility, even though it is our conclusion that  
02 12:10:46 you must have studied the gas composition ^^ you could  
03 12:10:49 have tell ^^ treatment unit before its connection.  
04 12:10:53 There is an clear obligation to study the gas comptation  
05 12:10:55 and the ^^ waste competition which now they claim is C  
06 12:10:58 and D waste all ^^ all of a sudden. Based of total  
07 12:11:01 assumption, it must have been C and D waste the expert  
08 12:11:04 says. Musk, I assume. Cities 40 per cent ^^ all as  
09 12:11:08 surchtionzs.  
10 12:11:08 Again, appointed to reobject GAM's counterclaim. Of  
11 12:11:15 course this is what he's going to do.  
12 12:11:16 The issue of H2S imagine right before they connected  
13 12:11:21 cell 4 to the power plant, right before December 2020,  
14 12:11:26 in October.  
15 12:11:27 They go and they allegedly test samples from cells 1  
16 12:11:34 to 3, they send them to Dubai to a laboratory. They  
17 12:11:37 don't tell GAM cells 1 to 3 only, not cell 4 of the gas  
18 12:11:41 computation and the H2S readings they don't tell GAM  
19 12:11:44 anything about this.  
20 12:11:45 After connecting cell 4 in December they come  
21 12:11:49 in January and say, oops, H2S readings are too high.  
22 12:11:52 This will be destructive to the plant. We will not be  
23 12:11:55 able to continue. We need more spare parts, we need  
24 12:11:58 more person hell. We need more money. ^. Then they  
25 12:12:02 ask but what about the readings of 1, 23,? They're like

---



---

01 12:12:05 no, we tested them prior to connecting cell 4. Then why  
02 12:12:08 haven't you tested cell 4? It's because they were  
03 12:12:11 building a case.  
04 12:12:12 Those samples were not from cells 1, 23,. It is  
05 12:12:16 impossible for those ^^ cells why? Because in January  
06 12:12:21 of 2021 when they start alleging high H2S cells in ^^  
07 12:12:25 they suggested that through handheld readings with  
08 12:12:27 handheld devices, why haven't you been doing that  
09 12:12:30 throughout the prior phases? Why did you give me a ^^  
10 12:12:33 that's limit to 150PPM? If you had handheld devices by  
11 12:12:37 could actually provide accurate readings. Why haven't  
12 12:12:39 you done it across the board for all cells?  
13 12:12:41 He came after January and says handheld device  
14 12:12:46 readings this is the reading for cell 1, cell 2, cell 3.  
15 12:12:50 We reach July the readings increase. H2S never  
16 12:12:55 increases with Tim. It will always increase. It  
17 12:13:00 decreases a lot. This is a very old cell. It cannot  
18 12:13:02 have readings of the sort.  
19 12:13:03 It want us to ^^ hand else readings are fully  
20 12:13:09 accurate and fully trustworthy and fully authentic.  
21 12:13:11 Of course they thrived all the logs of those  
22 12:13:17 readings ^^ from the power plants systems before they  
23 12:13:23 went it.  
24 12:13:23 During that period, they attributed the operator  
25 12:13:28 attributed the issue of H2S to reach it, they said leach

---

---

01 12:13:32 it is the ^^ high H2S. Now in the report they real I'd  
02 12:13:37 that if they say this now in the report in their expert  
03 12:13:40 report, they realise if they continue this narrative  
04 12:13:43 saying that leach it was the drive behind H2S, then  
05 12:13:47 cells 1 to 3 would have tad high. The ^^ very beginning  
06 12:13:51 and then they shouldn't have recommended not having an  
07 12:13:55 H2S treatment plant Y? Because from day 1 they have  
08 12:13:58 been saying that the leachate levels are ^^ cells 1 to 3  
09 12:14:03 day 1, 2020.  
10 12:14:04 So what did they have the expert do? They have the  
11 12:14:07 expert come up with a new trigger, new trigger. He said  
12 12:14:11 no, it's not just leachate. In addition to liar eat it  
13 12:14:14 must be CND waste only in cell contract not municipal  
14 12:14:18 wastement this is municipal waste. They take it from  
15 12:14:22 bins outside houses, they cake it it can 23409 be that  
16 12:14:26 a truck that is coming out of a project construction  
17 12:14:28 project goes to the landfill. They're not even they  
18 12:14:32 don't even have the instructions to go there. They  
19 12:14:33 don't even know I ^^ this is a landfill for municipality  
20 12:14:37 waste and they have agreed to that. Kitt never have C  
21 12:14:41 ^^ in by bin in front of my house. Or the bins in front  
22 12:14:45 of the medical institutions. It's never possible. Yet  
23 12:14:48 their expert says C ^^ wayn't that crap ^.  
24 12:14:52 They don't want you to think that there was  
25 12:14:56 something wrong before.

---

---

01 12:14:56 Leachate. They are inexcusable to be obliged to  
02 12:15:01 perform a leachate management system as a whole. And  
03 12:15:05 the SCC all talk about this. They say a leachate reseek  
04 12:15:10 ill back ^^ that any expert management system includes  
05 12:15:13 everything. They haven't not once told us to go and  
06 12:15:20 operate the existing facility. They have always told us  
07 12:15:23 leachate levels are high, but we're dealing with it.  
08 12:15:26 We're pumping. All the ^ within we're going we're  
09 12:15:30 fine, everything is perfect. Until January 2021 when no  
10 12:15:35 renewal took place and they knew that if ^^ it will be  
11 12:15:38 different terms. Where they state? When, leachate  
12 12:15:42 levels are too high, you have to operate the existing  
13 12:15:44 facility. The existing facility was not ^^ clarify this  
14 12:15:48 in my statement. This is an amendment.  
15 12:15:51 It was not failing to operate. It was inactive when  
16 12:15:55 the project started. Throughout time, the pumps  
17 12:15:59 obviously without maintenance they became idle, too idle  
18 12:16:02 basically. But they could have been operated within  
19 12:16:05 a month within two weeks of maintenance.  
20 12:16:07 If any issue with leachate of the extent that the  
21 12:16:11 operator now alleges and it's expert report all alleges,  
22 12:16:15 had ever arisen, they should have notified us, their  
23 12:16:19 under a duty to co-ordinate ^^ facility monitor leachate  
24 12:16:23 levels. They're under that duty. Even if they're not  
25 12:16:27 responsible for the existing facility, they never once

---

---

01 12:16:29 told us operate the existing facility. They told us  
02 12:16:32 we're fine. Yes, there are high, but I'm purposing.  
03 12:16:36 There's a very interesting thing in the expert report  
04 12:16:38 that we will have to turn to and it will show evidently  
05 12:16:45 extreme bias.  
06 12:16:46 If we go to the other matters, just quickly,  
07 12:16:51 Mr Chairman, we go to the contract records, contract  
08 12:16:56 records they haven't delivered it. We actually received  
09 12:16:58 the contract records in April in aid of Eid ^ three  
10 12:17:06 weeks before the original ^^ who did we receive them  
11 12:17:09 from? The DBE sitting in Spain. We had no contract  
12 12:17:13 records what sore. They tell you how come? We sent you  
13 12:17:16 a letter before we left. We told you here are the  
14 12:17:18 contract records. If you go and look at those contract  
15 12:17:23 records that letter what KWR0U78 ^^ saying we have been  
16 12:17:26 corresponding throughout the past 10 years consider that  
17 12:17:28 as contract records. Bye.  
18 12:17:30 This is their delivery of contract records at the  
19 12:17:33 end of the term. It's goo and extract whatever you want  
20 12:17:36 to extract and they came into this arbitration knowing  
21 12:17:38 that GAM would be under extreme difficulty in gathering  
22 12:17:41 evidence and what did they do? They submitted  
23 12:17:45 a 2,300-page appendix of unsorted documents, a 300-page  
24 12:17:49 statement of claim and the next week they requested  
25 12:17:52 amicable settlement.

---

---

01 12:17:52 And they refused to stop the clock from ticking on  
02 12:17:56 the defence until we negotiate with them the amicable  
03 12:17:59 settlement. They refused. And we had to participate.  
04 12:18:02 It's not like we were going to approve their request as  
05 12:18:07 laid out in the statement of claim. Be look at how  
06 12:18:09 they're operating.  
07 12:18:09 In any case, there's the contract ^^ there's the  
08 12:18:16 spare parts. They tell you the spare parts, this is  
09 12:18:19 very interesting. They just said the spare parts is --  
10 12:18:25 one seconds.  
11 12:18:25 As ^^ spare parts was a gift and they presented the  
12 12:18:33 clause. The clause talks about operator's equipment.  
13 12:18:35 It talks about spare parts for operator's equipment.  
14 12:18:38 The equipment they have brought in to design an  
15 12:18:42 build the project and to operate the project, not the  
16 12:18:44 actual facility that they have procured for us and that  
17 12:18:46 we have paid for, the spare parts for that has  
18 12:18:49 a separate clause. You have to always have adequate  
19 12:18:52 inventory level os spaf ^^ ongoing operations.  
20 12:18:54 They now take you to a clause which had all ^^  
21 12:18:59 operator equipment ^^ operator equipment and tell you we  
22 12:19:01 give them ^^ new fag as a gift. See they should I have  
23 12:19:05 paid for it. Fair market value.  
24 12:19:06 What? Please Sasha if you can pull up the slide on  
25 12:19:14 the clause of the operator's equipment. Operator's

---

---

01 12:19:17 equipment ^. They have drilling machines. And they  
02 12:19:22 tell you no, we gave you the spare parts. We did that.  
03 12:19:24 Moving forward anding this very important. There  
04 12:19:28 was a clear obligation under the contract to conduct  
05 12:19:32 independent verification every six months of the power  
06 12:19:36 plant in terms of operations and functions amounts every  
07 12:19:39 six months. They haven't done not even one ^^.  
08 12:19:41 When we told them about this in a defence, they said  
09 12:19:45 why haven't you requested it before during the project?  
10 12:19:48 Now obligations are now contingent on a request, so  
11 12:19:53 I make a contract, I have a thousand obligations within  
12 12:19:56 them, the operator has nothing to do until you request.  
13 12:20:01 You must tell him do this, that, so that they actually  
14 12:20:03 perform. No independent verification. Records  
15 12:20:08 threatened, contract records not even thraved, ^^, a huge  
16 12:20:13 mess.  
17 12:20:13 And they have the audacity to come and play with the  
18 12:20:20 narrative now in the context now and attribute things  
19 12:20:23 based on assumptions to cell ^^ C and D ^^ should have  
20 12:20:27 known that from the very beginning, they need to inspect  
21 12:20:31 the waste composition, they need to know the gas  
22 12:20:33 competition before they enter into the works and before  
23 12:20:37 they design.  
24 12:20:37 Training. They say training, we have done training.  
25 12:20:52 No practical, no proper practical training whatsoever.

---

---

01 12:20:55 They also talked about ^^ wait. They said Jum'ah wasn't  
02 12:20:59 even in the project during his testimony. Based n the  
03 12:21:03 fact that Biogas company and he was an employee of  
04 12:21:05 Biogas, the Biogas company came after they left the  
05 12:21:10 project. By the way, Jum'ah was an employee of GAM.  
06 12:21:15 And he was in the project as an employee of GAM and he  
07 12:21:17 was transferred to the Biogas after the transfer date.  
08 12:21:20 The level of they're trying to hit at the awe then  
09 12:21:26 advertise Oi of witness statements and of facts that  
10 12:21:29 they themselves have admitted ^^ . This is their tactic.  
11 12:21:32 Authenticity. They've no ^^ they don't know what  
12 12:21:35 they're doing. But in return, this excessive show of  
13 12:21:39 good faith was exploited to the bone ^^ for extra  
14 12:21:46 contractual gain.  
15 12:21:47 Ventilation ^^ they have installed a system which is  
16 12:21:59 not even built for the weather of Jordan. Not build.  
17 12:22:03 Ventilation and buy cooler for the engines that tie stop  
18 12:22:06 working when it's not even build for Jordan. It's build  
19 12:22:09 for Siberia.  
20 12:22:10 The standard are for Siberia for the way. They have  
21 12:22:18 gone and they have commissioned the standards that are  
22 12:22:20 acceptable for Siberia, not for Jordan. Obviously we  
23 12:22:25 have entered the claim for delay damages. Why? Look.  
24 12:22:31 It is true that GAM has issued an extension of # 0 day,  
25 12:22:35 not 170 days. So we will be able to claim delay damage,

---

---

01 12:22:40 we haven't claimed that yet. We will be able to claim  
02 12:22:42 re^^ for the remaining 70 or 9 a days ap^ in the period  
03 12:22:46 they're requesting.  
04 12:22:47 But other than that, if they wish to reconstruct the  
05 12:22:52 claim under a change in law, and if this is something  
06 12:22:56 which is acceptable to the tribunal, then GAM's decision  
07 12:22:59 on the extension must be unwound. Because the condition  
08 12:23:03 for that extension is that it must be ^^ without any  
09 12:23:08 change. So if we're going to consider the irclaim in  
10 12:23:11 law in the tribunal accepts this, we have to undo that  
11 12:23:14 extension.  
12 12:23:14 ^^ (Arabic spoken) this is a condition on that in  
13 12:23:22 that letter. So once we do, you will discover that it  
14 12:23:26 was not the change in law that was the cause of the  
15 12:23:28 delay. It was their personnel leaving with fore  
16 12:23:32 seebilityd of the fact that there is a travel ban  
17 12:23:35 incoming and I would love to speak about their witnesses  
18 12:23:38 about this and to get the records from the border  
19 12:23:42 control.  
20 12:23:42 Electrical system. A huge report on it. The  
21 12:23:53 report. I can't even just begin to fathom how this  
22 12:23:57 expert wants to convey himself as an it pen dent and  
23 12:23:59 unbiased expert. You will see in the cross-examination.  
24 12:24:02 I will not ways your time. The electrical system  
25 12:24:04 failing entirely, the expert comes in and he doesn't

---



---

01 12:24:07 even address that. He rebuts, he wants to rebut the  
02 12:24:10 counterclaim. He's been appointed to rebut it.  
03 12:24:12 DR TARAWNEH: Reach ^^ only stotting onlyquation ^^.  
04 12:24:22 MR A NAJDAWI: The ^^ because the contract requires them to  
05 12:24:26 comply with the am flickable law in all regards. So the  
06 12:24:29 failure to register with the tax defendant from 2016  
07 12:24:31 onwards is a breach of contract. That breach of  
08 12:24:34 contract is something that I need to have in the  
09 12:24:36 counterclaim. The entire claim number 1 if it had any  
10 12:24:42 truth to it there's no evidence on it whatsoever. If it  
11 12:24:45 had any truth to it, it's sent ^^ breach of the law and  
12 12:24:48 the very own negligence in telling GAM about this, this  
13 12:24:52 is even if GAM accepted obtaining a tax reduction in  
14 12:24:59 respect of such services.  
15 12:24:59 7 million. The entire value of project is 7 million  
16 12:25:06 from 2016 to 2020. But only desire and consultancy ^^  
17 12:25:10 engineering consultancy services. Only design and  
18 12:25:13 engineering.  
19 12:25:13 I think this is it. He said we refuse them entry.  
20 12:25:22 This is the last point.  
21 12:25:22 They said we refused themed entry into the site.  
22 12:25:27 They were issued a notice one month after they left the  
23 12:25:29 site of the deficiencies and the damages in the project  
24 12:25:33 A notice that is contained in the counterclaim. They  
25 12:25:35 reply to it saying we're not going to do this. (Arabic

---

---

01 12:25:39 spoken). Therefore, I don't have to notify him anymore.  
02 12:25:47 It wasn't a notification four years later or three years  
03 12:25:50 later. I was a not occasion one month after the  
04 12:25:53 transfer date.  
05 12:25:53 Just before they left on the last day, they say we  
06 12:26:00 refused entry to the site. On the last day, they sent  
07 12:26:04 an email after they took after their personnel 31 July,  
08 12:26:09 they sent am email to GAM saying we want to enter the  
09 12:26:12 site to take photos. They had just left. Now they want  
10 12:26:16 to take, to enter into the site. They had verbally told  
11 12:26:19 someone that we want photos to attach to the monthly  
12 12:26:21 progress reports. The last monthly progress report.  
13 12:26:24 If you really look at this, they're coming in a day  
14 12:26:29 after they left, because they wanted to take photos of  
15 12:26:32 the status quo of the project. However, this is not --  
16 12:26:36 they knew they were disputes, they knew there were  
17 12:26:38 issues in the project. However, this is not a valid and  
18 12:26:41 legally justifiable lay ^^ should have requested it from  
19 12:26:44 the urgent matters judge from the court. Don't just  
20 12:26:48 enter and take photos whenever you like. So they  
21 12:26:51 refusedder ^^ taking photos. But the monthly later they  
22 12:26:55 told theld ^^ remedy. They said no, we're not  
23 12:26:58 remedying.  
24 12:26:58 So it was in fact abandonment.  
25 12:27:01 Sorry, on the matter of the H is ^^ last comment.

---

---

01 12:27:09 Cell 4 the manifolds of cell 4 which bring all the gas  
02 12:27:12 into the power plant they were adjusting them and  
03 12:27:15 manoeuvring around them to reduce the entire gas output  
04 12:27:19 from the cell so as to reduce the H2S proportionally.  
05 12:27:22 Because they're saying H2S is only from cell 4.  
06 12:27:27 Right before they left the project, right before they  
07 12:27:29 left, they opened all the manifolds Y? Because they  
08 12:27:34 wanted the subsequent operator to look as though  
09 12:27:38 whatever damage occurred after that is due to the  
10 12:27:41 subsequent operator. They opened all the manifold,  
11 12:27:43 imagine what gross negligence that must be. Whether  
12 12:27:46 they do? 17 days later, they sent an email to GAM, they  
13 12:27:50 have access to the systems of the plant from another  
14 12:27:54 project they have with the employer industry of  
15 12:27:56 environment with a system that combines all the scatter  
16 12:27:59 systems of the different environmental projects in  
17 12:28:02 Jordan. They send an email to GAM saying we notice from  
18 12:28:05 our project that H2S is very high in the power plant.  
19 12:28:09 Please note that this is critical. They were trying to  
20 12:28:13 evidence, they were trying to build up their defence  
21 12:28:16 knowing that there was going to be a counterclaim on the  
22 12:28:18 H2S. So they opened all the manifold before leaving and  
23 12:28:22 all the witnesses attested to it. All the witnesses.  
24 12:28:25 PRESIDENT: Do you have anything else to add before we  
25 12:28:31 conclude?

---

---

01 12:28:32 MR A NAJDAWI: No, ^^ my ^^ for the time you have given us  
02 12:28:37 I hope this was informative. I hope it gave you what  
03 12:28:41 you needed to hear.  
04 12:28:43 PRESIDENT: Thank you, Mr Najdawi.  
05 12:28:45 Now we have a short coffee break and then we will  
06 12:28:53 reconvene to have some clarification questions from the  
07 12:29:01 tribunal to the counsels.  
08 12:29:23 (Discussion off the record)  
09 12:29:24 (12.30 pm)  
10 12:30:04 (Short break)  
11 12:30:05 testing test microphone test. 1,  
12 15:23:58 {"^"join...}  
13 15:27:45 (3.34 pm)  
14 15:34:52 PRESIDENT: We will resume our hearing.  
15 15:34:55  
16 15:35:10 Mr Dimitrios Constantinidis  
17 15:35:11 PRESIDENT: Mr Dimitrios Constantinidis, welcome. Thank you  
18 15:35:21 for coming today.  
19 15:35:22 I think in front of you there are two holy books.  
20 15:35:37 Choose the preferable one to you, and please put your  
21 15:35:42 hands on the holy book and read -- in front of you also  
22 15:35:48 the oath. Please read the oath.  
23 15:35:49 WITNESS: I enter by almighty God to tell the truth, the  
24 15:35:52 whole truth and nothing but the truth.  
25 15:35:54 PRESIDENT: Thank you.

---

---

01 15:35:56 WITNESS: Thank you for accepting.

02 15:36:00 PRESIDENT: We will start with the examination, direct

03 15:36:09 examination of the fact witness of the claimant. The

04 15:36:15 floor is yours, Mr Has.

05 15:36:17 WITNESS: Excuse me, could I have a bottle of water?

06 15:36:19 PRESIDENT: Of course. ^.

07 15:36:23

08 15:36:27 Examination-in-chief by Mr H Khirfan

09 15:36:31 MR H KHIRFAN: Just for the record, could you please state

10 15:36:43 your full name and position?

11 15:36:43 A. My name is Dimitri Dimitrios Constantinidis, I am the

12 15:36:51 CEO and the chairman of the ^^ company, which is

13 15:36:56 a member of the joint venture which undertook this

14 15:36:59 project, this contract, and I am the comanage of the

15 15:37:06 joint venture.

16 15:37:06 PRESIDENT: Can you please raise your voice a little bit.

17 15:37:12 A. Excuse me.

18 15:37:13 And I am the comanager and the corepresentative of

19 15:37:20 the joint venture.

20 15:37:20 MR H KHIRFAN: Before the contract number 23/1/2010 was

21 15:37:30 signed, were there discussions about tax exemptions.

22 15:37:33 MR A NAJDAWI: I object because this was already tackled in

23 15:37:39 the opening statements and therefore this is no longer

24 15:37:41 of any relevance to the case. This was already

25 15:37:43 confirmed as there being no tax exemption at the time

---

---

01 15:37:46 they submitted the bid and therefore, this is an  
02 15:37:48 irrelevant matter. In addition, as per our objections  
03 15:37:51 in the memorandum of objections, this is not a matter  
04 15:37:53 which can be asked of a witness given that the contract  
05 15:37:58 instructions to be bidders says you have to dismiss and  
06 15:38:00 you have to disregard any tax exceptions.  
07 15:38:02 PRESIDENT: Can we skip this question? If we are talking  
08 15:38:11 about the 2012 contract, we can skip this question.  
09 15:38:17 MR H KHIRFAN: While I don't agree with the objection, but  
10 15:38:21 I will happy to oblige with the tribunal on this  
11 15:38:25 question and move to the next question.  
12 15:38:26 For the record, I disagree with this objection.  
13 15:38:30 A. Excuse me, I would like something else for personal  
14 15:38:35 comfort. If I could have some handker chief, please.  
15 15:38:39 PRESIDENT: Of course.  
16 15:38:41 WITNESS: Thank you very much and I'm sorry for the  
17 15:38:43 interruption.  
18 15:38:44 PRESIDENT: No, you are welcome.  
19 15:38:45 MR H KHIRFAN: Okay. During the discussions, preceding the  
20 15:38:50 2015 agreement, were there discussion about tax  
21 15:38:53 exemption?  
22 15:38:53 A. Yes, of course. During the discussion about --  
23 15:39:03 PRESIDENT: No, you didn't elaborate more about this  
24 15:39:06 question. ^^.  
25 15:39:07 MR H KHIRFAN: What was the discussion.

---

---

01 15:39:09 PRESIDENT: Okay.

02 15:39:09 MR H KHIRFAN: What was the discussion?

03 15:39:11 A. The discussion was that --

04 15:39:17 MR A NAJDAWI: I object, Mr Chairman. This is not in the

05 15:39:19 list of purposes.

06 15:39:20 MR H KHIRFAN: It is.

07 15:39:21 MR A NAJDAWI: Where, tell me where.

08 15:39:23 MR A NAJDAWI: It is.

09 15:39:24 PRESIDENT: I think there is some --

10 15:39:29 MR H KHIRFAN: There are three objections in the statement

11 15:39:32 of witnesses for the tax and there is a questions

12 15:39:36 about -- (overspeaking) -- ^^.

13 15:39:36 PRESIDENT: And even I think there is something about

14 15:39:41 discussions before the signing of contract.

15 15:39:45 MR H KHIRFAN: Yes, that's why I said I disagree, but happy

16 15:39:48 to oblige just for the -- (overspeaking) -- ^^.

17 15:39:50 MR A NAJDAWI: I'm looking for ^^.

18 15:39:52 MR H KHIRFAN: Just to put on record, please, I appreciate

19 15:39:56 that they are not continued on my time for the

20 15:39:58 questions, because we were very restricted with the

21 15:40:00 tribunal with very specific time. I cannot just make

22 15:40:04 those objection just part from my time for the direct.

23 15:40:08 MR A NAJDAWI: Mr Chairman, let me elaborate on my

24 15:40:11 objection. If I look at the purposes that were conveyed

25 15:40:13 by the claimant in which should be strictly limiting the

---

---

01 15:40:17 claimant's role in direct examination, it is not on me  
02 15:40:20 to figure out what goes out of the scope and what ms  
03 15:40:22 could within the scope. -- (overspeaking) -- ^^  
04 15:40:24 themselves to that.  
05 15:40:25 MR H KHIRFAN: It is for us.  
06 15:40:26 MR A NAJDAWI: Which were does cloe ^^ submission of  
07 15:40:29 statements nothing states, nothing even relates to the  
08 15:40:33 discussion that is took place prior to 25th --  
09 15:40:35 MR A NAJDAWI: No, there is because the -- (overspeaking) --  
10 15:40:37 ^^ between the contract will see capital in the  
11 15:40:40 objective refers to all contracts including previously  
12 15:40:43 and current. -- (overspeaking) -- ^^ it is within the  
13 15:40:46 objective.  
14 15:40:46 MR A NAJDAWI: There is discussions in April 2021 and there  
15 15:40:49 is also what the mitigation of damages and financial  
16 15:40:53 losses.  
17 15:40:53 MR H KHIRFAN: The objective refers to  
18 15:40:56 contract -- (overspeaking) -- ^^.  
19 15:40:56 PRESIDENT: Please, please, I will read. Testify n the  
20 15:41:01 context of pre-contract meetings regarding tax  
21 15:41:05 exemption.  
22 15:41:05 MR A NAJDAWI: This is the 2012, Mr Chairman.  
23 15:41:08 PRESIDENT: The claimant number claims 1, 3, #, 6.  
24 15:41:13 MR A NAJDAWI: Contract signature, not agreement.  
25 15:41:16 MR H KHIRFAN: Contract is with capital C a and it is

---



---

01 15:41:19 defined.

02 15:41:19 PRESIDENT: Excuse me, I will ends this discussion. I will

03 15:41:22 allow the question. Please.

04 15:41:23 MR H KHIRFAN: Thank you?

05 15:41:24 A. Excuse me, Mr Khirfan. Could you repeat? Because

06 15:41:32 I forgot.

07 15:41:32 Q. Yes. During's the discussions proceeding the 2015

08 15:41:37 agreement were there discussions about tax exemptions

09 15:41:39 and what they are? Because you answered yes.

10 15:41:42 A. Yes. We initially had sent an offer in February if

11 15:41:50 I remember well, of 2015. And with were not aware that

12 15:42:00 there were tax exemptions. Along the way, I think if

13 15:42:07 I remember well, in August 2015, the engineer and GAM

14 15:42:19 invite us in a meeting and they announced that there was

15 15:42:24 a bylaw by which the tax exemptions were put in place

16 15:42:33 for renewable energy projects. And we understood and we

17 15:42:43 agreed that our offer or new offer would be without

18 15:42:50 taxes and duties for on the basis of this tax exemption.

19 15:42:56 Then ^^ we proceeded to agree on a contract on an

20 15:43:05 agreement how to proceed with phase 2 and 3 of this

21 15:43:12 projects. ^.

22 15:43:13 Q. During those discussions, what did GAM represent

23 15:43:17 regarding its role in obtaining tax exemptions?

24 15:43:20 A. GAM as the owner of the project, explained to us that it

25 15:43:29 was GAM's duty to make the application and follow up.

---

---

01 15:43:36 They were the only people who could cause with the man,  
02 15:43:41 I don't know if I pronounce it well, the committee of  
03 15:43:43 men who gives the tax exemption ^^, and they would do  
04 15:43:47 all the procedure by themselves and they would ask us  
05 15:43:52 any technical details that were necessary.  
06 15:43:55 Q. Did GAM ever informed you that only exemptions to  
07 15:43:59 materials, goods will be applied for?  
08 15:44:01 A. No. We understood as the contract provides for, that  
09 15:44:08 GAM would apply for the fullest extent allowed by this  
10 15:44:16 bylaw of 2015.  
11 15:44:17 Q. When did it become apparent that GAM was not fulfilling  
12 15:44:31 its tax exemption obligation?  
13 15:44:33 A. This became apparent much later on in 2021.  
14 15:44:38 Q. What happened in 2021?  
15 15:44:42 A. We understood that the approved tax exemption by meme ^  
16 15:44:54 did not include sales tax exemption for imported  
17 15:45:01 services.  
18 15:45:01 Q. How did you know that the exemptions were rejected and  
19 15:45:15 you are requested for sales tax payment?  
20 15:45:17 A. We had received an interim claim by the tax authority.  
21 15:45:26 I don't remember the initials of the tax authority. And  
22 15:45:32 within this interim claim, -- the object of this interim  
23 15:45:40 claim was that we had not paid sales tax on imported  
24 15:45:49 services on the year 2016.  
25 15:45:51 Q. Just for the record, because he said he does not know

---

---

01 15:45:55 the relevant authority that issued this, just  
02 15:45:58 for -- (overspeaking) -- ^^?  
03 15:45:58 A. I said the tax authority.  
04 15:45:59 Q. Yes, ISTD.  
05 15:46:01 A. Okay. I don't remember the initials.  
06 15:46:04 Q. Okay. What did you do after Yousefed this from itsed  
07 15:46:08 the?  
08 15:46:08 A. We immediately informed GAM and we asked GAM in the  
09 15:46:17 case, in our letter to His Excellency the city manager,  
10 15:46:23 we immediately asked GAM if they had not applied for the  
11 15:46:32 sales tax exemption, that they apply presently. That  
12 15:46:37 means when we say presently, 2021.  
13 15:46:39 GAM -- do you want many to continue this story?  
14 15:46:46 PRESIDENT: No, I think it is all of that is within the  
15 15:46:50 written evidence submitted by you.  
16 15:46:53 MR H KHIRFAN: Yes, it is.  
17 15:46:55 How did GAM react for this?  
18 15:46:57 A. GAM did not do anything for -- this story was along the  
19 15:47:06 beginning of February, we send the second letter to His  
20 15:47:09 Excellency the city manager, stressing that the tax  
21 15:47:18 authority would find lies their claim and we would be  
22 15:47:23 obliged to pay, and if I remember well, end of March,  
23 15:47:31 nothing had happened and we sent a letter to His  
24 15:47:35 Excellency the mayor and then the same time we gave  
25 15:47:39 notice to GAM to claim, notice to claim. Our belief at

---

---

01 15:47:50 that time, that we were pushing GAM to make the  
02 15:47:54 application, the belief at that time that if they did  
03 15:47:57 the application, we get the exemption and so we would  
04 15:48:02 not have to pay the sales tax to the tax authority.  
05 15:48:07 Q. A meeting took place on 1 April 2021 regarding tax  
06 15:48:13 exemptions. Were you present?  
07 15:48:15 A. Yes, I was.  
08 15:48:16 Q. Who attended from GAM?  
09 15:48:18 A. His Excellency the city manager and various other  
10 15:48:26 digtrying of GAM.  
11 15:48:27 Q. What was discussed during this meeting?  
12 15:48:30 A. Two things were discussed. One was the issue of the  
13 15:48:36 application of GAM to the tax authority. The second  
14 15:48:42 issue which was discussed was the extension of the  
15 15:48:48 operational -- of the operation services we provided for  
16 15:48:55 the operation of Ghabawi project. These two issues were -- because it was  
17 15:49:06 ending our operation was ending  
18 15:49:07 Q. What did GAM say about the urgency of the tax matter of  
19 15:49:14 you discussed?  
20 15:49:14 A. GAM concurred that it understood the urgency, let's say  
21 15:49:25 more correct, and the promised that they would apply  
22 15:49:32 within the deadline we had understood at that time from  
23 15:49:39 the itsed the, I think I got it this time -- that such  
24 15:49:47 an application would be done by 18 April or some date  
25 15:49:54 around 18 April.

---

---

01 15:49:55 Q. What assurances were given by GAM?

02 15:49:59 A. The assurances was that they would apply and they would

03 15:50:03 try to get the tax exemption.

04 15:50:06 Q. What was the result of these communications after they

05 15:50:10 gave the --

06 15:50:11 A. The result of these communications was that GAM, at the

07 15:50:19 deadline date, applied for the tax exemption. They sent

08 15:50:26 us a copy on the same day the deadline was ending, but

09 15:50:34 unfortunately a few days later, I don't remember,

10 15:50:40 perhaps one week, something like that, the tax

11 15:50:45 authorities fine lieded their claim against us and

12 15:50:57 further, as we learnt one or two months later, the mem

13 15:51:09 meeting rejected the application of GAM. ^^.

14 15:51:11 Q. After the tax department fine lieded its claim and sales

15 15:51:17 tack along with the penalties were imposed, what

16 15:51:19 mitigation steps did the operator take?

17 15:51:22 A. First of all, before knowing the result of the

18 15:51:30 application of GAM to meme, we were certain that this

19 15:51:37 would application we had the impression that this

20 15:51:41 application would be approved. Therefore, we pressed

21 15:51:48 GAM by sending another notice, if I remember well it was

22 15:51:53 the same paper, some different paper, to accelerate the

23 15:52:01 procedure in meme and to receive the decision of meme,

24 15:52:08 so it could be a paper we could base our court case

25 15:52:15 against the ISTD, and be vindicated.

---

---

01 15:52:25 Unfortunately, after putting much pressure to GAM,  
02 15:52:30 in the learning that the meme committee had arrived to  
03 15:52:37 a decision, quite late because the deadline for the  
04 15:52:48 recourse against the finalisation of the claim of the  
05 15:52:53 tax authority had a deadline, quite late in the day, we  
06 15:53:00 received from GAM the decision of the MEMR committee,  
07 15:53:07 which rejected the application on the basis there was  
08 15:53:16 a new bylaw in 2018, which did not accept sales tax  
09 15:53:24 exemption in the case of a renewable energy projects.  
10 15:53:30 Therefore, the only -- in the meantime, there was  
11 15:53:40 unfortunate event that the Jordanian government mostly,  
12 15:53:47 if I remember well, due to Covid circumstances, decided  
13 15:53:55 to give am necessity to the taxpayers and the amnesty  
14 15:54:03 consisted of that they gave the right to the taxpayers  
15 15:54:10 to several declare taxes due in older years, within  
16 15:54:20 a deadline again, if they self-declare within this  
17 15:54:25 deadline and paid these due tax, then they would not be  
18 15:54:34 burdened with the fines and delay interest.  
19 15:54:37 So for this reason, because this was a singular  
20 15:54:44 opportunity, we not only self declared the sales tax of  
21 15:54:54 2016, but for the following years, in which we had  
22 15:55:00 invoices from imported services, up till 2020, because  
23 15:55:08 the 2350EU7B8isation of the claim for 2016 we had the  
24 15:55:17 sales tax, the capital, what was due originally, was  
25 15:55:21 less than 200,000.

---

---

01 15:55:22 Due to fines in the delay interest in 2021, the  
02 15:55:31 claim of the ISTD had reached more than 800,000 dinars,  
03 15:55:38 almost 900,000. For the next years when we did the  
04 15:55:44 declarations, the original sales tax, as a total, was  
05 15:55:51 around 1 million, less than 1 million, 950,000, while if  
06 15:55:57 we objected, went to court, et cetera et cetera, this  
07 15:56:04 claim, the claim of the tax authority, would be  
08 15:56:07 1,800,000 dinars.  
09 15:56:10 So we mitigated this cost by self-declaring all  
10 15:56:18 these years and of course, by doing so, our claim against  
11 15:56:26 the GAM was much smaller than it would be. Also  
12 15:56:30 I must not forget to say that the amnesty also had  
13 15:56:34 another dependency of if you applied for amnesty, you  
14 15:56:42 had no right to recourse afterwards to the courts,  
15 15:56:48 obviously.  
16 15:56:48 Q. Thank you. Do the unpaid invoices correspond to  
17 15:56:56 services under included under variation order number 10?  
18 15:56:59 A. Yes. When the beginning of 2021, we were invited by the  
19 15:57:12 engineer to do certain services. These services, I'm  
20 15:57:23 sorry, perhaps it was later on. I don't remember  
21 15:57:26 exactly the date, but it was the first semester of 2021.  
22 15:57:30 These services consisted of the rehabilitation of  
23 15:57:38 two pumping, leachate pumping stations of cell 4 and 5,  
24 15:57:45 the building of trench between cell 5 and cell 1 and 2,  
25 15:57:55 and the extension of the gas wells, because they became

---

---

01 15:58:04 covered, the gas wells of our projects were become  
02 15:58:09 covered from the waste of the new cells.  
03 15:58:12 So they would be destroyed and made inoperable if  
04 15:58:17 they were not extended in height.  
05 15:58:19 So in two months extension of our operation service  
06 15:58:30 for June and July.  
07 15:58:31 Q. Did you deliver the services corresponding to these  
08 15:58:36 invoices?  
09 15:58:36 A. We delivered the services for June, the operation  
10 15:58:44 services for June and July, as well as the extension of  
11 15:58:48 the wells. You must understand that these were urgent  
12 15:58:54 and the required by GAM uninjury I will, first for the  
13 15:58:58 wells because they would be inoperable and destroyed and  
14 15:59:02 second, because the GAM wanted to prepare itself for the  
15 15:59:09 next operator or whatever, in the dates or the months of June and July.  
16 15:59:17 We did all this without having an formally approved  
17 15:59:22 variation order.  
18 15:59:22 Q. We'll move now to the consultation and adjudication  
19 15:59:34 phase with the objectives.  
20 15:59:35 In early 2022, what was the status of the  
21 15:59:40 relationship between the parties, GAM and ^^?  
22 15:59:44 MR A NAJDAWI: This is a very general question.  
23 15:59:47 MR H KHIRFAN: But it ^^ -- (overspeaking) -- ^^ it's  
24 15:59:51 a consultation and education, just we need to know what  
25 15:59:53 was the relationship and we will for.

---



---

01 15:59:55 MR A NAJDAWI: If there are facts.

02 15:59:59 MR H KHIRFAN: It was a fact, what was the relationship, the

03 16:00:02 discuss, there were disputes, there were not. It will

04 16:00:04 give just the base for the ^^.

05 16:00:06 PRESIDENT: It is a very broad question K you narrow it to

06 16:00:09 specify.

07 16:00:09 MR H KHIRFAN: Yes.

08 16:00:11 PRESIDENT: Can you specify some things.

09 16:00:15 MR H KHIRFAN: Yes. Just in 2022 before the ^^ started what

10 16:00:21 was the status in relation. Were you in dispute? Were

11 16:00:24 you in performance.

12 16:00:25 MR A NAJDAWI: Mr Chairman,.

13 16:00:27 PRESIDENT: It is again a very broad question.

14 16:00:32 MR H KHIRFAN: It but it gives the base for the ^^.

15 16:00:35 PRESIDENT: We can talk hours and hours about the

16 16:00:37 relationship.

17 16:00:37 MR H KHIRFAN: Correct.

18 16:00:39 PRESIDENT: Specify some areas you want to about.

19 16:00:43 MR H KHIRFAN: In 2022, there was some disputes between the

20 16:00:58 parties. Was a consultation meeting scheduled to

21 16:01:02 address these issues?

22 16:01:02 A. Yes.

23 16:01:03 Q. Scheduled.

24 16:01:04 A. Yes.

25 16:01:05 Q. What was to be discussed in that consultation meeting?

---

---

01 16:01:09 A. We had made many efforts to resolve the four disputes we  
02 16:01:22 had the four claims we had issued in 2021. The first  
03 16:01:30 claim we issued was the claim regarding Covid. The  
04 16:01:36 second claim we issued when I say issued, I mean that we  
05 16:01:48 gave the details of the claim, not the notice, but the  
06 16:01:51 details.  
07 16:01:51 The second issue was regarding Covid -- the first  
08 16:01:59 issue was regarding Covid. The second issue was  
09 16:02:02 regarding the sales tax issue.  
10 16:02:04 The third claim we had given details was the  
11 16:02:13 invoices not paid and the fourth claim was regarding the  
12 16:02:18 interest for delayed payments.  
13 16:02:19 For the first claim we had tried to make  
14 16:02:26 a consultation meeting in summer 2021, but GAM did not  
15 16:02:34 refuse to ^ prepare it and therefore, we initiated the  
16 16:02:42 issue of adjudication. We tried to appoint an  
17 16:02:46 adjudicator.  
18 16:02:46 Excuse me. If I'm going too long. Please interrupt  
19 16:02:50 me and tell me what to do.  
20 16:02:52 Q. No, no --  
21 16:02:53 A. So we arrive in beginning of 2022. The adjudicator was  
22 16:03:04 not appointed. GAM wanted to skip adjudication. And in  
23 16:03:15 the normal course of events, we had to make  
24 16:03:20 a consultation before any other procedure, for all four  
25 16:03:23 claims, one we had tried, but the other three we had not

---

---

01 16:03:27 yet tried.

02 16:03:27 We were very happy to receive a positive reply by

03 16:03:35 GAM and consultation meeting was arranged for

04 16:03:44 mid February.

05 16:03:44 PRESIDENT: 2020?

06 16:03:50 A. 2022.

07 16:03:52 Do I continue the story? You want to make

08 16:03:59 questions.

09 16:03:59 MR H KHIRFAN: Please.

10 16:04:02 A. Three or four days before we had proposed dates,

11 16:04:10 et cetera, three or four days before the date of the

12 16:04:14 meeting, GAM sent us the confirmation of the meeting,

13 16:04:20 confirmed which persons would be attending, and the

14 16:04:25 attached to this confirmation they sent us a claim,

15 16:04:32 a counterclaim, their claim.

16 16:04:36 This claim did not have any details or analysis it

17 16:04:43 it was -- I don't remember, 10 pages, seven pages list,

18 16:04:50 with no explanation or details or basis or legal basis

19 16:04:55 or evidence or whatever.

20 16:04:56 And we responded to this. This is the substance of

21 16:05:05 what happened. I don't say exactly the words,

22 16:05:10 et cetera. The substance was that we responded to this,

23 16:05:13 that we will participate in this consultation meeting we

24 16:05:19 had agreed upon. We were in the impression that the our

25 16:05:22 claims would be discussed, but we cannot negotiate, we

---

---

01 16:05:30 cannot analyse the claim you have sent us, because there  
02 16:05:35 were no details and there was no time.  
03 16:05:37 If you want to give us details during the meeting,  
04 16:05:42 we would be very happy to listen and perhaps make  
05 16:05:46 a separate meeting regarding this claim.  
06 16:05:47 Also, in our participation list, we had not included  
07 16:05:58 a lawyer. On the day of the meeting, we received an  
08 16:06:05 email by GAM postponing indefinitely the consultation  
09 16:06:13 meeting for the reason that we had deicallied that we  
10 16:06:19 were not prepared to discuss or to negotiate their  
11 16:06:24 counterclaim, and the reason which is not understandable  
12 16:06:33 at all, that we to not have a -- we did not participate  
13 16:06:38 with a lawyer.  
14 16:06:39 Q. Those were the reasons given. Okay.  
15 16:06:45 A consultation meeting eventually took place on  
16 16:06:51 16 March 2022. Were you present?  
17 16:06:54 A. Yes, I was present.  
18 16:06:56 Q. Who attended from GAM?  
19 16:06:57 MR A NAJDAWI: Mr Chairman, this is a mutual consultation  
20 16:07:02 meeting. This is an amicable cement negotiations. Why  
21 16:07:05 are we going to -- (overspeaking) -- ^^.  
22 16:07:06 MR H KHIRFAN: ^.  
23 16:07:09 MR A NAJDAWI: This is confident ^^ it should not be  
24 16:07:13 disclosed.  
25 16:07:13 MR H KHIRFAN: It's not. We are before arbitral tribunal.

---

---

01 16:07:17 PRESIDENT: Please, let us ...

02 16:07:21 Before answering, Mr Constantinidis --

03 16:07:30 A. By my first name dim tris, so it's easier.

04 16:07:34 PRESIDENT: Okay.

05 16:07:35 (Discussion off the record)

06 16:07:42 PRESIDENT: Please don't answer the question.

07 16:07:50 Okay, why do you object to this question,

08 16:07:54 Mr Najdawi?

09 16:07:54 MR A NAJDAWI: Because Mr Chairman it's going into the

10 16:07:57 details of the conduct of a mutual consultation meeting

11 16:08:02 which in effect is the equivalent of amicable settlement

12 16:08:06 negotiations. The entire purpose of this meeting is to

13 16:08:09 amicably, is to discuss whether an amicable solution can

14 16:08:13 be reached without further resorting to the dispute

15 16:08:17 resolution process.

16 16:08:17 The discussions that took place and who was present

17 16:08:21 and what was done in this meeting and what was the it

18 16:08:24 a dispute ^^ disclosed in the statement of claim. These

19 16:08:27 things are confidential by nature under the Jordanian

20 16:08:31 bar association, we as lawyers cannot disclose or

21 16:08:36 divulge information regarding amicable settlement

22 16:08:38 negotiations.

23 16:08:38 Even in a case of this sort, it is a matter of basic

24 16:08:46 decency not to two through the details of an amicable

25 16:08:50 settlement negotiation. Why would we go through that?

---

---

01 16:08:55 It's amicable negotiation by nature.

02 16:08:58 PRESIDENT: Mr Hazem, ^^.

03 16:09:03 MR H KHIRFAN: I totally object. This is a contract between

04 16:09:07 two parties and these all process of consultation and

05 16:09:13 adjudication and arbitration was never confidential and

06 16:09:16 never without prejudice.

07 16:09:17 MR A NAJDAWI: It was always stated as confidential.

08 16:09:19 MR H KHIRFAN: Yes, okay, but it's never confidential and

09 16:09:24 it's part of the case file that is now presented for the

10 16:09:26 tribunal. Also, I want just to explain where the

11 16:09:29 Jordanian bar association says settlement negotiations

12 16:09:32 are confidential? Never. So I respectfully requesting

13 16:09:37 to dismiss this objection and just to allow the question

14 16:09:40 because also it is expressly stated in the objection, in

15 16:09:44 the objectives that were approved at by the tribunal ^^

16 16:09:48 for the purpose of this hearing.

17 16:09:49 DR AL BASHIR: May I ask a question, sir?

18 16:09:52 PRESIDENT: Okay.

19 16:09:52 DR AL BASHIR: Is it what you're saying, Mr Naj, that there

20 16:09:56 was agreement on confidentiality of these discussions?

21 16:10:01 MR A NAJDAWI: Yes, sir, and the witness can corroborate.

22 16:10:03 DR AL BASHIR: There was in writing that this is without

23 16:10:08 prejudice.

24 16:10:08 MR A NAJDAWI: Of course, of course. Press what is your

25 16:10:16 answer.

---

---

01 16:10:16 MR A NAJDAWI: It was a question to attend the meeting and  
02 16:10:18 this condition came from them, not from us. ^.  
03 16:10:21 MR H KHIRFAN: The question is specifically on --  
04 16:10:30 DR AL BASHIR: Was there a written agreement in  
05 16:10:35 correspondence that these discussions are without preace  
06 16:10:38 dis?  
07 16:10:38 MR A NAJDAWI: We can ask the witness.  
08 16:10:42 DR AL BASHIR: I think if it's there, we could see it on  
09 16:10:45 record without asking the witness.  
10 16:10:46 MR A NAJDAWI: It's going to take some time to pull up the  
11 16:10:49 record.  
12 16:10:49 MR H KHIRFAN: But anyway, the settlement agreements are no  
13 16:10:52 more confidential than the whole facts of this issue.  
14 16:10:56 MR A NAJDAWI: Your dispute is about whether we approached  
15 16:11:04 consultations in good faith. And not whether what we  
16 16:11:08 discussed.  
17 16:11:11 PRESIDENT: Can you please tell us about the evidence within  
18 16:11:19 your written evidence that relates to.  
19 16:11:22 MR A NAJDAWI: Yes, sir, I can pull it up although  
20 16:11:25 Mr Chairman this goes without saying an amicable  
21 16:11:27 negotiation is without ^^ I'll pull up the record now.  
22 16:11:29 Which meeting was this.  
23 16:11:31 MR A NAJDAWI: We are talking about 16 March 2022 ^ Mr Chir  
24 16:11:38 ^.  
25 16:11:39 PRESIDENT: Did you find it?

---

---

01 16:11:56 PRESIDENT: While they are trying to find this evidence, can  
02 16:12:21 we try ^^.

03 16:12:21 MR H KHIRFAN: The question that was objected on that what  
04 16:12:24 is subjected to the does not want him to.

05 16:12:26 DR AL BASHIR: Don't ask any questions about this meeting.

06 16:12:29 MR H KHIRFAN: Okay.

07 16:12:30 DR TARAWNEH: Mr Has, I think your testimony should be about  
08 16:12:34 the circumstances surrounding the mutual consultation  
09 16:12:37 meeting that took place on 16 March 2022, not what  
10 16:12:44 happened in that meeting.

11 16:12:45 MR H KHIRFAN: The circumstances,.

12 16:12:48 DR TARAWNEH: No, the circumstance.

13 16:12:49 PRESIDENT: Surrounding is different from what has been  
14 16:12:52 discussed, it is different.

15 16:12:55 MR H KHIRFAN: Yeah. What was agreed.

16 16:12:59 PRESIDENT: Again, it is what was the objection, is within  
17 16:13:08 the objection. Please. ^^.

18 16:13:09 MR T NAJDAWI: Mr Chairman, logically speaking, while  
19 16:13:50 they're pulling up the document, do you expect anybody  
20 16:13:53 will meet in an amicable set up to discuss claims of  
21 16:13:59 either if they're not comfortable that these discussions  
22 16:14:04 will never be used in a court of law? Otherwise we  
23 16:14:08 wouldn't have met anyone.

24 16:14:09 MR A NAJDAWI: The intention is to resolve the dispute  
25 16:14:13 amicably. This cannot be the subject of a dispute.

---



01 16:14:16 PRESIDENT: Please excuse us. We will deliberate for five  
02 16:14:22 minutes.  
03 16:14:22 (4.14 pm)  
04 16:15:04 (Short break)  
05 16:15:07 (4.19 pm)  
06 16:19:50 MR A NAJDAWI: Mr Chairman, it is exhibit C221, our learned  
07 16:19:58 counsel have reviewed it and they can confirm to you  
08 16:20:00 that it was the operator's statement that these  
09 16:20:05 negotiations shall be on a without prejudice basis.  
10 16:20:09 DR AL BASHIR: Do you confirm that the language is there?  
11 16:20:12 MR H KHIRFAN: Yes, the language is there, but I don't think  
12 16:20:15 it applies to March meeting, it applies to February  
13 16:20:19 meeting that was cancelled.  
14 16:20:20 MR A NAJDAWI: Mr Chairman, it's the same meeting that was  
15 16:20:24 pose on thed until March.  
16 16:20:25 PRESIDENT: Let's skip the question because the intention  
17 16:20:30 was clear, that it's confidential.  
18 16:20:33 MR H KHIRFAN: Okay.  
19 16:20:38 MR T NAJDAWI: No one will meet you unless he feels he's  
20 16:20:41 confidentable to discuss.  
21 16:20:42 MR H KHIRFAN: Those discussions could be used with any  
22 16:20:46 case.  
23 16:20:46 MR T NAJDAWI: Any case, imagine. ^^.  
24 16:20:48 MR H KHIRFAN: Okay. Done. Whatever was discussed,  
25 16:20:56 whatever decisions, whatever resolution, please.

---

---

01 16:20:59 MR T NAJDAWI: No the tribunal took five minutes it's added  
02 16:21:02 to your time.  
03 16:21:03 MR H KHIRFAN:  
04 16:21:07 (Discussion off the record)  
05 16:21:12 MR A NAJDAWI: It goes without saying, Mr Chairman, I didn't  
06 16:21:14 ^^.  
07 16:21:14 PRESIDENT: Let's not debate about this matter.  
08 16:21:19 MR H KHIRFAN: Okay. Whatever was discussed, resolved, was  
09 16:21:23 progress made towards resolution of this dispute after  
10 16:21:27 this meeting, resolved, yes.  
11 16:21:32 DR TARAWNEH: Did you reach an agreement?  
12 16:21:35 A. Yes.  
13 16:21:35 MR H KHIRFAN: Was progress made towards this agreement that  
14 16:21:40 you mentioned now?  
15 16:21:41 A. It was on the side of GAM to formalise it.  
16 16:21:45 Q. What did GAM say about the dispute? Sorry, sorry.  
17 16:21:49 Did you follow up on what you agreed on?  
18 16:21:58 A. Yes, we pressed, we sent a pressing letters to GAM, but  
19 16:22:03 to no avail.  
20 16:22:05 Q. What response did you receive from GAM after following  
21 16:22:10 up --  
22 16:22:11 MR A NAJDAWI: Mr Chairman, I object, again. It's  
23 16:22:15 a response he's asking about is the result of --  
24 16:22:18 MR H KHIRFAN: No, no. At all. What did you receive from  
25 16:22:21 GAM? I'm not asking what you did discuss, what did you

---

---

01 16:22:24 agree.

02 16:22:24 MR A NAJDAWI: Mr Chairman, it's either a pos interest ^^ in

03 16:22:28 both cases this is without prejudice. It cannot be

04 16:22:31 stated on the record.

05 16:22:31 PRESIDENT: I personally agree.

06 16:22:36 MR H KHIRFAN: Okay. We're happy to oblige.

07 16:22:41 Few questions. But on the registration renewal

08 16:22:57 certificate, I think.

09 16:22:59 What documentation is needed to renew the

10 16:23:01 registration of the operator as foreign operating branch

11 16:23:04 in Jordan.

12 16:23:05 MR T NAJDAWI: That's a legal requirement by law. It's not

13 16:23:08 up to the witness to state. This is not a fact.

14 16:23:10 MR H KHIRFAN: Okay. Did you request the normal --

15 16:23:15 A. Yes, we did -- (overspeaking) -- ^^ sorry. Sorry.

16 16:23:18 PRESIDENT: Wait.

17 16:23:20 MR H KHIRFAN: Did you request from dam to be provided with

18 16:23:25 the annual letter that is necessary for the renewal of

19 16:23:29 your foreign operating office in Jordan?

20 16:23:31 A. Yes, we did in September 2021.

21 16:23:34 Q. What was GAM's response on this?

22 16:23:37 A. GAM responded that we are in dispute and they would not

23 16:23:41 give us this certificate.

24 16:23:43 Q. Did they drnlings due to the disputes we had between the

25 16:23:51 operator and GAM.

---

---

01 16:23:52 Q. What were the consequences of GAM's refusal?

02 16:23:57 A. The most important consequence was that the bank account

03 16:24:05 was frozen., our local, our branch office bank account.

04 16:24:11 Q. On the experience certificate, did the operator request

05 16:24:15 experience certificate from GAM?

06 16:24:17 A. Yes, at the same period.

07 16:24:19 Q. Why are such certificate so important?

08 16:24:22 A. There are two reasons. In Greece we have a system

09 16:24:30 a registry of contracting companies and in order to

10 16:24:40 maintain the registration and the class of the company,

11 16:24:44 its class can participate in certain tenders. You need

12 16:24:49 to prove your experience ^. The invoices are

13 16:24:54 cross-referenced with the certificates we get by our

14 16:24:57 clients.

15 16:24:57 So we could not include the turnover of this project

16 16:25:03 in our registration certificate.

17 16:25:06 The second reason is that we needed in international

18 16:25:19 tenders, to provide experience with certificate and

19 16:25:27 without the certificate, we could not use this project

20 16:25:33 as reference.

21 16:25:33 Q. Did GAM issue the requested certificate?

22 16:25:38 A. No.

23 16:25:39 Q. For what reasons did GAM give any reasons for this?

24 16:25:44 A. Sorry, I'm always interrupting.

25 16:25:47 Q. No issue.

---

---

01 16:25:48 A. For the same reason, as above. That means due to the  
02 16:25:54 disputes.  
03 16:25:54 Q. What has been the impact on the joint venture?  
04 16:25:57 A. The impact on the joint venture was that we could not  
05 16:26:01 use this turnover for our registration in the Greek  
06 16:26:08 registration of contractor, and we could not use this  
07 16:26:15 project as a reference for international tenders.  
08 16:26:18 Q. Last two questions on the confidentiality C10 that  
09 16:26:28 was -- I have to ask you. Do you know anyone by the  
10 16:26:31 name of Zayeder has ban ^?  
11 16:26:33 A. No.  
12 16:26:33 Q. Does Zayeder has ban have any relation with the  
13 16:26:37 operator?  
14 16:26:37 A. From we search this and we could not find any  
15 16:26:42 relationship ^name).  
16 16:26:48 Q. One question, last question on the H2S. When the issue  
17 16:27:26 of high H2S was discovered in December 2020, did you  
18 16:27:33 request additional payment from GAM for the remaining  
19 16:27:35 duration of the contract?  
20 16:27:36 MR A NAJDAWI: I object, Mr Chairman.  
21 16:27:39 PRESIDENT: Don't answer, please. What is your.  
22 16:27:42 MR A NAJDAWI: This is not part of the facts. We have three  
23 16:27:46 facts on H2S. We have H2S analysers hands held and  
24 16:27:50 mounted, then we have H2S measurements throughout the  
25 16:27:53 project period, and then we have measures taken to

---

---

01 16:27:57 address H2S. In no place does it state payments related  
02 16:28:02 after H2S.  
03 16:28:02 MR H KHIRFAN: It is measures related to H2S.  
04 16:28:07 MR A NAJDAWI: What did you state exactly? What's the  
05 16:28:10 question?  
06 16:28:10 MR H KHIRFAN: We're saying when the issue of high 4S2 was  
07 16:28:16 discovered in December 2020, did you request additional  
08 16:28:19 piment from GAM for this remaining duration of the  
09 16:28:21 contract.  
10 16:28:21 MR A NAJDAWI: This is not part of the --  
11 16:28:24 MR H KHIRFAN: It is measures.  
12 16:28:25 PRESIDENT: It is not about measures, it is about  
13 16:28:28 measurement, H2S measurement.  
14 16:28:30 MR H KHIRFAN: But to cover the mitigation measures.  
15 16:28:33 MR A NAJDAWI: You're asking about payments. You said did  
16 16:28:37 you request any further -- (overspeaking) -- ^^.  
17 16:28:39 MR H KHIRFAN: Mitigation one of the objectives.  
18 16:28:42 MR A NAJDAWI: It has nothing to do with mitigation. You're  
19 16:28:44 asking whether he made any request.  
20 16:28:45 MR H KHIRFAN: Yes, because it is one of our mitigation  
21 16:28:49 measures to keep the project.  
22 16:28:50 PRESIDENT: Okay, the tribunal allow the question. Please  
23 16:28:53 answer the question.  
24 16:28:55 A. Although the measures to --  
25 16:29:04 MR A NAJDAWI: Please repeat your question.

---

---

01 16:29:05 PRESIDENT: The question is about did you apply for  
02 16:29:10 additional payment after discovering the H2S high  
03 16:29:14 levels?  
04 16:29:14 A. I'll put the horse before the cart. We never applied  
05 16:29:21 for additional payment, although the measures we took  
06 16:29:25 were costly.  
07 16:29:26 MR T NAJDAWI: That was not asked.  
08 16:29:31 MR A NAJDAWI: It's okay. We can ask about it.  
09 16:29:36 MR H KHIRFAN: Thank you. This is my direct.  
10 16:29:39 PRESIDENT: Thank you. Thank you for your cooperation.  
11 16:29:51 MR A NAJDAWI: Mr Chairman, if you could just give us five  
12 16:29:57 minutes to just prepare, because I'm finding trying to  
13 16:30:00 find one specific exhibit.  
14 16:30:02 PRESIDENT: Five minutes break.  
15 16:30:06 MR A NAJDAWI: Found it. May I start, Mr Chairman.  
16 16:30:25 PRESIDENT: You may start.  
17 16:30:26  
18 16:30:26 Cross-examination by Mr A Najdawi  
19 16:30:29 MR A NAJDAWI: So you have mentioned in one of your  
20 16:30:38 testimony above that when GAM notified you of the need  
21 16:30:40 to discuss their counterclaim prior to a mean  
22 16:30:43 consultation meeting, you said you cannot negotiate  
23 16:30:49 a counterclaim at this very, with this have the late  
24 16:30:52 submission; is that correct.  
25 16:30:52 DR TARAWNEH: Rephrase the question.

---

---

01 16:31:05 MR A NAJDAWI: Mr Dim tris, you stated before in your  
02 16:31:12 testimony when you were asked about a mutual --  
03 16:31:14 DR AL BASHIR: Can we go back to the question in the record?  
04 16:31:19 And the answer.  
05 16:31:20 MR A NAJDAWI: We can, but this will tame more time. We can  
06 16:31:23 go back.  
07 16:31:23 MR H KHIRFAN: Just to make sure.  
08 16:31:26 MR A NAJDAWI: I can't really play with the record here,  
09 16:31:28 with the transcript. How do I go up on the laptop?  
10 16:31:31  
11 16:31:31 DR TARAWEH: I personally remember what he said answering  
12 16:31:38 that question. He said when we scheduled the meeting,  
13 16:31:43 we received a response from GAM from 7 to 10 pages  
14 16:31:50 regarding their counterclaim. Their counterclaims were  
15 16:31:55 not substantiated or something like that. Was that  
16 16:32:00 true?  
17 16:32:01 A. There was no analysis, no legal basis, no data, if you  
18 16:32:09 like I can give an example.  
19 16:32:11 DR TARAWEH: Yes.  
20 16:32:12 MR A NAJDAWI: No, we didn't ask for an example.  
21 16:32:14 A. No, I meant talking to the --  
22 16:32:16 MR A NAJDAWI: You can't talk to the.  
23 16:32:18 Look. And you refused to discuss the counterclaim  
24 16:32:23 in the meeting, right.  
25 16:32:24 MR H KHIRFAN: Objection, the meeting he cannot

---



---

01 16:32:29 ^^ -- (overspeaking) -- ^^ you want to disclose the  
02 16:32:31 meeting I can ask him.  
03 16:32:32 DR AL BASHIR: It is in the record.  
04 16:32:36 MR A NAJDAWI: It is in the letters as well.  
05 16:32:40 DR AL BASHIR: It is in the record a reference to the  
06 16:32:42 operator's response four days before the meeting took  
07 16:32:48 place regarding how the operator will approach the  
08 16:32:55 counterclaim. It is already in the record. So are you  
09 16:32:58 asking the question again.  
10 16:32:59 MR A NAJDAWI: Yes.  
11 16:33:00 DR AL BASHIR: Because it is in the record.  
12 16:33:02 MR A NAJDAWI: Yes. Did the operator accept discussing the  
13 16:33:05 counterclaim at the mutual consultation meeting?  
14 16:33:07 A. We could not respond the counterclaim with this data and  
15 16:33:15 at that time.  
16 16:33:16 Q. Do you recall Mr Dim tris whether a request for mutual  
17 16:33:23 consultation was filed after with GAM by the operator  
18 16:33:27 with GAM, after you submitted a statement of claim in  
19 16:33:30 the in in this arbitration?  
20 16:33:32 A. I recall that we and I think it is in my testimony  
21 16:33:46 consultation for the Covid claim only ^^.  
22 16:33:47 Q. After the statement of claim was submitted in this  
23 16:33:50 arbitration, so that would be very recent?  
24 16:33:53 A. I'm sorry. I did not understand your question exactly.  
25 16:33:58 After we -- yes, we had a consultation after --

---

---

01 16:34:05 Q. That wasn't my question. Did you as an operator,  
02 16:34:10 because you're a representative of the operator?  
03 16:34:11 A. I don't remember who initiated it. I don't remember.  
04 16:34:15 Q. This was more recent than 2020, 2021?  
05 16:34:18 A. Yes, I don't remember.  
06 16:34:19 Q. But you know that there was a request for mutual  
07 16:34:23 consultation?  
08 16:34:23 A. Yes, perhaps it was from it, I don't remember.  
09 16:34:25 Q. It's after a statement of claim, it's not going to be  
10 16:34:28 us. In any case, the question is did that consultation  
11 16:34:33 actually happen and did GAM present itself in that  
12 16:34:37 mutual consultation meeting?  
13 16:34:38 A. Yes, of course.  
14 16:34:39 Q. Yes, of course.  
15 16:34:40 So issues with timing regarding that mutual  
16 16:34:43 consultation meeting was not an impediment for GAM to  
17 16:34:48 participate in that meeting, they conditions tell you of  
18 16:34:50 any issues of timing; correct ^^ did they request an  
19 16:35:03 extension or at least a suspension of their period to  
20 16:35:05 file the defence in this arbitration?  
21 16:35:07 A. I think so.  
22 16:35:11 Q. You think so. What was your response?  
23 16:35:13 A. But --  
24 16:35:15 Q. What was your response?  
25 16:35:16 A. We do not want to delay the arbitration.

---

---

01 16:35:20 Q. So the request came from you, they asked you to suspend  
02 16:35:24 their period so that they can participate and you said  
03 16:35:27 no, but they participated; correct?  
04 16:35:29 MR H KHIRFAN: What's the relevance.  
05 16:35:30 MR A NAJDAWI: Because Mr Chairman, -- (overspeaking) -- ^^.  
06 16:35:35 PRESIDENT: Let him answer, please.  
07 16:35:37 MR A NAJDAWI: Is that correct?  
08 16:35:39 A. Yes. Can I explain the reason or not?  
09 16:35:42 Q. No, I didn't ask the reason.  
10 16:35:46 A. I ask your permission.  
11 16:35:49 PRESIDENT: No. During the re-direct examination, he may  
12 16:35:53 ask you?  
13 16:35:53 A. Mr Naz's permission I asked. ^.  
14 16:35:58 PRESIDENT: He will never give you his permission.  
15 16:36:04 MR A NAJDAWI: Let us go back to the first segment.  
16 16:36:15 I thought I would address this first because it's  
17 16:36:17 actually very important. But let us go back to the  
18 16:36:19 beginning of your testimony. You said something very  
19 16:36:23 important, Mr Dim. You said that the discussions before  
20 16:36:29 the 2015 agreement involved a discussion about imported  
21 16:36:35 services?  
22 16:36:35 A. No, I did not say that.  
23 16:36:38 MR H KHIRFAN: The record is clear.  
24 16:36:40 MR A NAJDAWI: (Arabic spoken). -- (overspeaking) -- ^^?  
25 16:36:51 A. Next time I will wait a couple of minutes before

---

01 16:36:55 I speak.

02 16:36:55 PRESIDENT: I will advise you to do so.

03 16:36:59 MR A NAJDAWI: Mr Chairman, may I continue.

04 16:37:04 PRESIDENT: The record is there. I think you can go back to

05 16:37:06 the record and see.

06 16:37:10 MR A NAJDAWI: So you did not say that?

07 16:37:13 A. Please repeat, because I lost the train of thought.

08 16:37:17 Q. And if we go, you said also something very --

09 16:37:24 A. Please could you repeat, because you said no, I did not

10 16:37:26 say that, what?

11 16:37:29 Q. It's already done.

12 16:37:30 A. ^^.

13 16:37:32 Q. I'm not going to ask the question again.

14 16:37:34 PRESIDENT: Please, let him answer the question clearly and

15 16:37:39 give him the opportunity to explain what he meant by his

16 16:37:43 answer, please.

17 16:37:44 MR A NAJDAWI: Yes, sir.

18 16:37:45 PRESIDENT: Please, Mr Dim tris, raise your voice a ill will

19 16:37:49 bit.

20 16:37:49 A. Sorry. I'm sorry.

21 16:37:51 DR AL BASHIR: Take 30 seconds before you answer.

22 16:37:57 MR A NAJDAWI: Prior to the 2015 to the signature of the

23 16:38:05 2015 agreement, did you tell GAM that you wished for an

24 16:38:10 exemption for service, it ported services prior to the

25 16:38:15 2015 agreement ^?

---

---

01 16:38:16 A. No, we did not ask for exemption of the services, we  
02 16:38:22 asked for the full exemption provided by the bylaw of  
03 16:38:29 2015.  
04 16:38:29 Q. Did you inform GAM that you wished to exempt imported  
05 16:38:36 services or not?  
06 16:38:37 DR AL BASHIR: He answered the question.  
07 16:38:41 MR A NAJDAWI: My answer, my question is very specific. Did  
08 16:38:44 he inform GAM.  
09 16:38:45 PRESIDENT: He answered no, we did not ask for exemption of  
10 16:38:51 the services.  
11 16:38:52 MR A NAJDAWI: Okay. Did you ever request in writing, so it  
12 16:39:00 is any understanding that your answer now ^ was a verbal  
13 16:39:05 discussion, right?  
14 16:39:05 A. What?  
15 16:39:08 Q. Mr Dim, when you said right now that we asked for the  
16 16:39:16 full suite of exemption prior to the 2015 agreement, was  
17 16:39:21 that double verbal discussions?  
18 16:39:22 A. These was what GAM presented to us. We did not ask.  
19 16:39:31 GAM told us you will get the full exemption of the bylaw  
20 16:39:37 2015 and for this reason you must make your offer much  
21 16:39:44 smaller and you will not pay taxes and duties.  
22 16:39:47 Q. Perfect.  
23 16:39:48 A. This is was what was said.  
24 16:39:50 Q. Perfect. So prior to 2021, prior to 2021, did you ever  
25 16:39:58 request in writing to GAM to exempt sales tax on

---

---

01 16:40:05 imported services?

02 16:40:05 A. No, we did not.

03 16:40:07 Q. If we go back to your testimony, you have said earlier

04 16:40:13 that when you submitted your offer for phases 2 and 3,

05 16:40:20 you did not know that the 2015 bylaws or regulars,

06 16:40:26 whatever the term you use is, you did not know that

07 16:40:29 these were in effect; correct?

08 16:40:29 A. Correct.

09 16:40:30 Q. In that offer, did you state a specific budget line item

10 16:40:40 on taxes (Arabic spoken)?

11 16:40:45 PRESIDENT: Ask the question.

12 16:40:48 MR A NAJDAWI: In that offer, did you provide that there

13 16:40:56 will be additional taxes which you wished to have GAM

14 16:41:01 pay for, that were not originally in your original bid

15 16:41:06 of 2010?

16 16:41:07 A. Yes, we did.

17 16:41:10 Q. What was those taxes, Mr Dim?

18 16:41:12 A. I do not recall.

19 16:41:16 Q. Would you like me to refresh your memory?

20 16:41:18 A. Please do.

21 16:41:19 Q. With we present exhibit R17 qua

22 16:41:25 irrelevant. -- (overspeaking) -- ^^?

23 16:41:25 PRESIDENT: I will allow it, Hazem.

24 16:41:28 MR H KHIRFAN: It's your time.

25 16:41:30 PRESIDENT: You can produce this exhibit.

---

---

01 16:41:33 MR A NAJDAWI: It's R17, Mr Chairman. Actually, R27, sorry.

02 16:41:41 DR AL BASHIR: We will be able to see it ourselves?

03 16:41:47 PRESIDENT: Yes, Jude will show us this exhibit. (Pause).

04 16:42:26 PRESIDENT: Did you find it? Can we see it, please?

05 16:42:36 MR A NAJDAWI: My question pertains to page 19 digital.

06 16:42:58 If we can go to page 10, 11 digital.

07 16:43:22 SECRETARY: Table 3?

08 16:43:33 MR A NAJDAWI: It's called F cost implication ^^ the last

09 16:43:37 paragraph ^doc) and then the table after it in 1.9.1.

10 16:43:41 PRESIDENT: Please show it to the witness. (Pause).

11 16:44:32 MR A NAJDAWI: Mr Dim, this is the 2015 proposal that you

12 16:44:44 mentioned in your testimony, which is designed by you ^.

13 16:44:48 Can you tell us what the referenced section states which

14 16:44:52 is the last paragraph on page 11 digital?

15 16:44:55 A. Yes, do you want me to read it?

16 16:45:06 Q. Yes.

17 16:45:07 A. In relation to the sales and other taxes imported foods

18 16:45:15 there is an adjustment in particular an overall taxation

19 16:45:17 of 31 per cent has been calculated for imported goods

20 16:45:20 paid in euro in phase B in phase C the respected

21 16:45:25 percentage is only 16 per cent." ^doc.

22 16:45:26 Q. If you go to the table after it, which is on page 12

23 16:45:31 digital, and if you could go to budget line item 1.9.1.

24 16:45:38 What is the heading of this budget line item?

25 16:45:41 A. Taxes levees and other charges.

---

01 16:45:45 Q. What do you state under this heading?

02 16:45:47 A. I was ready to read.

03 16:45:50 Q. You want to read?

04 16:45:51 A. Yes. Taxation an imported goods and duty stamps on

05 16:45:59 contract variation." ^doc.

06 16:46:00 Q. Is this Mr Dim tris, what prompted the discussion over

07 16:46:05 the need to obtain an exemption in the following

08 16:46:09 discussions that took place prior to the signature of

09 16:46:11 the 2015 agreement? Was this the reason behind?

10 16:46:13 A. I don't know what prompted the discussion. I know that

11 16:46:19 at that time, GAM wanted us to have the minimum possible

12 16:46:25 budget and they promised us that we would get a tax

13 16:46:31 exemption according to the bylaw of 2015.

14 16:46:35 Q. Mr Dim, did you state in your proposal any other taxes

15 16:46:41 which you found relevant in your proposal?

16 16:46:44 A. In this, if I remember well and please the record will

17 16:46:52 correct me, the written record, if I remember well, this

18 16:46:57 was budgetary proposal because many things were not

19 16:47:02 determined at the time.

20 16:47:03 Q. My question is very clear. In this proposal, which is

21 16:47:08 signed by you, and it is the starting point from which

22 16:47:13 we can move onto other items, in this proposal, did you

23 16:47:17 note that there are any other taxes other than taxes on

24 16:47:21 imported goods, which you found relevant for the

25 16:47:24 purposes of the proposal?

---



01 16:47:24 A. What is written is written and it does not refer here to --

02 16:47:31 Q. I'll ask you another question.

03 16:47:33 A. May I finish my answer, please?

04 16:47:36 PRESIDENT: Does I it refer to what?

05 16:47:38 A. To imported services sales tax. This is what I want me

06 16:47:43 to answer.

07 16:47:43 MR A NAJDAWI: Does this proposal include design and

08 16:47:47 engineering consultancy services for phases 2 and 3?

09 16:47:50 A. It includes design and all services necessary.

10 16:47:56 Q. Mr Dim tris, if we could please have him look at R28,

11 16:48:05 Jude. I'm really sorry. Qua Mr Tribunal needs to see

12 16:48:14 the exhibit before the witness.

13 16:48:16 MR A NAJDAWI: I'm fine.

14 16:48:17 A. I understand tomorrow that we will be another room where

15 16:48:20 there will be a pro scream for.

16 16:48:21 MR A NAJDAWI: I think we will finish today?

17 16:48:23 A. Nod for me, for the rest. ^.

18 16:48:27 Q. R28. Sorry, okay, R28, page -- one second, please.

19 16:48:42 If we could go to page 3 digital, Jude. Taxation

20 16:48:50 exemption.

21 16:49:08 (Discussion in Arabic)

22 16:49:34 state the date on record as well of this letter?

23 16:49:36 MR A NAJDAWI: I'm fine with the tribunal finds that

24 16:49:39 necessary, we can do that.

25 16:49:40 PRESIDENT: Okay, please. Can you tell us what date?

---

---

01 16:49:45 MR H KHIRFAN: For the witness to be to know what exhibit.

02 16:49:54 PRESIDENT: Okay. Show the witness the exhibit. I think it

03 16:50:28 was 15 July 2015.

04 16:50:30 MR H KHIRFAN: 24 July 2015. ^^.

05 16:50:41 PRESIDENT: 24 July 2015.

06 16:50:53 MR H KHIRFAN: Okay.

07 16:50:56 MR A NAJDAWI: This is also signed by you, Mr Dim, and I am

08 16:51:03 wondering whether you remember the context of this?

09 16:51:06 A. No. Please tell me. I don't know what you're -- which

10 16:51:15 part of this letter you are referring to. I'm sure --

11 16:51:18 Q. It's three pages, he remembered the discussions in 2015.

12 16:51:23 So he should remember this letter.

13 16:51:24 A. Excuse me --

14 16:51:26 PRESIDENT: No, no -- (overspeaking) -- ^^. Please?

15 16:51:29 A. Signed ^^ is valid -- (overspeaking) --

16 16:51:34 ^^ -- (overspeaking) -- ^^.

17 16:51:34 PRESIDENT: Please, Mr Ahmed,.

18 16:51:37 MR A NAJDAWI: Page 3 digital Mr Chairman.

19 16:51:39 PRESIDENT: Okay refer to a specific -- please.

20 16:51:41 MR A NAJDAWI: Which is the last paragraph.

21 16:51:43 A. What do you want me to comment on this? Or what do you

22 16:52:03 want me to read?

23 16:52:04 Q. I'll --

24 16:52:06 A. I'm sorry. But --

25 16:52:09 Q. I try to refresh your memory. After the submission of

---

---

01 16:52:12 your proposal, which you have stated you have submitted  
02 16:52:15 at a time where you did not know about the 2015  
03 16:52:18 regulations, did the database E engineer reject your  
04 16:52:22 escalation on taxes ^?  
05 16:52:24 A. I don't remember this.  
06 16:52:27 Q. In this letter, what do you state in the last paragraph  
07 16:52:33 of page 3 digital?  
08 16:52:34 A. Do you mind if I read it loud so I remember also.  
09 16:52:38 Q. No, no, I don't mind of course.  
10 16:52:40 A. Okay.  
11 16:52:41 DR TARAWNEH: Yes, you can read it?  
12 16:52:43 A. I'm sorry.  
13 16:52:44 DR TARAWNEH: Yes, you can read it. He's asking about  
14 16:52:46 something written.  
15 16:52:47 A. Okay.  
16 16:52:48 A. Although the project was excluded from taxation  
17 16:52:52 exemption this was not known to tenders during the bid  
18 16:52:56 phase. This means that the operators offered a huge  
19 16:53:00 cost not taken in consideration in this bid. The  
20 16:53:06 investment for the second part of the contract by GAM  
21 16:53:10 would be expected as a reasonable and fair compromise to  
22 16:53:13 the benefit of both sides." ^doc.  
23 16:53:16 MR A NAJDAWI: My question, Mr Dim, did you know about this,  
24 16:53:21 the statement here, what you're saying? Did you know  
25 16:53:24 about this at the time you submitted your proposal for

---

---

01 16:53:27 phases 2 and 3?

02 16:53:28 A. Know what?

03 16:53:31 Q. So you're saying that although the project was excluded

04 16:53:36 from taxation exemption, this was not known to tenderers

05 16:53:40 during the bid phase; correct? This means that the

06 16:53:43 operator suffers a huge cost not taken in consideration

07 16:53:46 in his bid, the original bid. A reimbursement for the

08 16:53:50 second part of the contract by GAM would be expected as

09 16:53:52 a reasonable and fair compromise to the benefit of both

10 16:53:55 sides. Was this circumstance, this particular

11 16:53:58 circumstance, known to you at the time you submitted the

12 16:54:01 2015 escalation, that --

13 16:54:04 A. What is the circumstance? -- (overspeaking) -- ^^.

14 16:54:07 Q. No, Mr Chairman,?

15 16:54:09 PRESIDENT: Mr Naj, please. Ask a precise question.

16 16:54:16 MR A NAJDAWI: My question is precise. This circumstance,

17 16:54:21 the one he's stating in his own letter, although the

18 16:54:23 project was excluded from taxation exemption, this was

19 16:54:25 not known to tends letters burg the bid phase.

20 16:54:27 PRESIDENT: Okay.

21 16:54:28 MR A NAJDAWI: Was this circumstance, this fact that you're

22 16:54:30 alleging in this letter, was this known to you before at

23 16:54:35 the time you submitted the 2015 proposal for phases 2

24 16:54:38 and 3.

25 16:54:39 MR H KHIRFAN: (Arabic spoken). -- (overspeaking) --

---

---

01 16:54:43 ^^ -- (overspeaking) -- ^^.

02 16:54:44 MR H KHIRFAN: In order to object it.

03 16:54:45 PRESIDENT: Let the witness ask any clarification if he has

04 16:54:49 such?

05 16:54:49 A. Excuse me, Mr Chairman.

06 16:54:52 DR TARAWNEH: You can.

07 16:54:54 PRESIDENT: -- (overspeaking) -- ^^ if you want to clarify?

08 16:54:57 A. I interrupted him, I'm very sorry. Okay.

09 16:55:01 MR A NAJDAWI: You said in this paragraph --

10 16:55:04 A. Let me understand because I don't understand. I'm not

11 16:55:08 playing games. I really don't understand your question.

12 16:55:10 Q. I understand. Let me rephrase. You're saying in this

13 16:55:13 paragraph, it was not known to tends letters during the

14 16:55:17 bid phase that the project was excludessed from taxation

15 16:55:19 exemption. This is what the letter states?

16 16:55:21 A. Yes.

17 16:55:21 Q. And that therefore, this means that the operator suffers

18 16:55:24 a huge cost not taken in consideration in his bid.

19 16:55:28 A reimbursement for the second part of the contract by

20 16:55:31 GAM would be expected as a reasonable and fair

21 16:55:33 compromise to the benefit of both sides. This

22 16:55:37 particular fact, the fact that essentially states that

23 16:55:43 you did not know at the time you submitted your original

24 16:55:45 bid, that the project does not have a taxation exesks.

25 16:55:50 Was this fact known to you at the time you submitted

---

---

01 16:55:55 a proposal in 2015 for new phases 2 and 3 which we just  
02 16:56:01 looked at?  
03 16:56:01 PRESIDENT: What do you mean by this fact ^^ . The fact is  
04 16:56:08 the fact. Because I didn't also understand.  
05 16:56:11 Did you I do you mean the fact that this project is  
06 16:56:19 not excluded from exemption? This fact you are asking  
07 16:56:23 about?  
08 16:56:24 MR A NAJDAWI: That this project was excludessed from --  
09 16:56:27 PRESIDENT: Was excludessed from tax exemption. Okay.  
10 16:56:30 A. We understood during the project, during the  
11 16:56:42 negotiation, of our original bid,.  
12 16:56:45 MR A NAJDAWI: , no I didn't ask about that. Mr Chairman.  
13 16:56:49 A. I don't understand your question. -- (overspeaking) --  
14 16:56:51 ^^.  
15 16:56:51 PRESIDENT: The question is simple. When you submitted your  
16 16:56:58 offer for the original contract, you didn't know that  
17 16:57:04 the project was excluded from the tax exemption.  
18 16:57:08 A. Yes.  
19 16:57:09 PRESIDENT: When you signed this letter,.  
20 16:57:11 MR A NAJDAWI: No, no, Mr Chairman. When you submitted,  
21 16:57:16 when you submitted a proposal for new phases 2 and 3,  
22 16:57:20 the proposal that we looked at before, R27 I think,.  
23 16:57:24 PRESIDENT: You were aware that this project is excludessed  
24 16:57:28 from tax exemption?  
25 16:57:29 A. Yes.

---

---

01 16:57:29 MR A NAJDAWI: That's it.

02 16:57:31 PRESIDENT: This is the question. -- (overspeaking) -- ^^ -- (overspeaking) --  
^^ -- (overspeaking) --

03 16:57:36 ^^ -- (overspeaking) -- ^^ -- (overspeaking) --

04 16:57:36 ^^ -- (overspeaking) -- ^^.

05 16:57:37 MR A NAJDAWI: I will not go back on this.

06 16:57:40 If we go to -- did you read the 2015 regulations

07 16:57:48 before you signed the 2015 agreement?

08 16:57:51 A. Yes.

09 16:57:53 Q. So the operator made itself aware of the content of the

10 16:58:01 2015 regulations during the time it discussed these

11 16:58:05 regulations with GAM; correct?

12 16:58:06 A. Yes.

13 16:58:08 Q. A very important --

14 16:58:12 A. Excuse me, in principle. Not -- -- (overspeaking) --

15 16:58:20 ^^.

16 16:58:20 DR AL BASHIR: Please finish your answer. Not every?

17 16:58:24 A. What I'm trying to say as a management I don't know the

18 16:58:29 details. We knew the principle of the 2015 ^^.

19 16:58:34 MR A NAJDAWI: Thank you. Did you, if we can pull up, Jude,

20 16:58:39 please, exhibit R45.

21 16:58:41 MR H KHIRFAN: It's in Arabic language. He cannot present

22 16:59:33 it to him.

23 16:59:33 MR A NAJDAWI: Okay. It's in or pick.

24 16:59:42 PRESIDENT: Before showing the witness, what is the question

25 16:59:45 about this exhibit?

---

---

01 16:59:45 MR A NAJDAWI: I want to ask him, I just realise that there  
02 16:59:49 is no translation to this, but they should have one.  
03 16:59:53 But the question is going to be as follows.  
04 16:59:56 Towards tend of 2015, do you remember receiving  
05 17:00:04 GAM's application to the ministry of energy in respect  
06 17:00:08 of the tax reduction it applied for under the 2015  
07 17:00:13 regulations on your behalf?  
08 17:00:14 A. I'm not aware of that. I understand that the document  
09 17:00:22 you are referring to is in Arabic and the language of  
10 17:00:25 the contract is English.  
11 17:00:26 Q. Are you aware, you're aware of the document, are you  
12 17:00:32 aware whether you received it from GAM in 2015 or at  
13 17:00:37 that point this time on or about the date of signature  
14 17:00:41 of the 2015 agreement? ^^ if hi remembers the  
15 17:00:49 document.  
16 17:00:49 A. I'm not aware. This does not mean that E did not  
17 17:00:53 happen.  
18 17:00:53 Q. But you remember the document?  
19 17:00:57 A. No, you showed me the document.  
20 17:00:58 Q. I didn't show you the document?  
21 17:00:59 A. No, you told me.  
22 17:01:00 Q. Okay.  
23 17:01:02 A. You said there 45 and it is in Arabic. This I came to  
24 17:01:08 know this.  
25 17:01:09 Q. Did you have the capability to read whether laws or

---



---

01 17:01:18 correspondence in Arabic?

02 17:01:20 MR H KHIRFAN: I object.

03 17:01:23 MR A NAJDAWI: He said he read the 2015 regulations.

04 17:01:26 MR H KHIRFAN: I object.

05 17:01:27 PRESIDENT: I think he meant that he read --

06 17:01:30 MR A NAJDAWI: Not Arabic.

07 17:01:31 PRESIDENT: Translation of it.

08 17:01:33 MR A NAJDAWI: Yes.

09 17:01:34 PRESIDENT: Translation of it, okay.

10 17:01:36 MR A NAJDAWI: Did you have the capability to translate

11 17:01:39 documents that Yousefed in or bish including documents

12 17:01:41 which you did not receive, but you found, like the 2015

13 17:01:44 regulation, did you have the capability to translate.

14 17:01:45 MR H KHIRFAN: Objection, it's a very general question.

15 17:01:48 He's asking about the witness capability of authorising

16 17:01:53 translation documents.

17 17:01:54 MR A NAJDAWI: Not the witness, the document.

18 17:01:55 MR H KHIRFAN: Specific question and document we can say,

19 17:01:57 but general, it's very general.

20 17:01:58 MR A NAJDAWI: The operator, Mr Chairman, not the witness.

21 17:02:00 MR H KHIRFAN: He's con foos doing witness. The question

22 17:02:03 is.

23 17:02:03 PRESIDENT: I don't think he is --

24 17:02:06 MR H KHIRFAN: Do you have the capability of translating.

25 17:02:08 MR A NAJDAWI: Okay, I'll rephrase. How did you answered

---

---

01 17:02:12 earlier that you read the 2015 regulations. How did you  
02 17:02:16 read? How did you make yourself aware of those  
03 17:02:18 regulations?

04 17:02:18 A. If I remember well, it was the English translation was  
05 17:02:26 in the internet.

06 17:02:27 Q. So GAM did not provide you the translation; correct?

07 17:02:31 A. No, I don't think so at least. I don't remember.

08 17:02:35 Q. Do you recall GAM or the DBE engineer requesting ^ lists  
09 17:02:46 of the materials that you wished a tax reduction for?

10 17:02:49 A. I remember that the DBE engineer requested lists of  
11 17:02:59 materials which were to be imported.

12 17:03:02 Q. Do you remember whether it was important to present  
13 17:03:09 these lists, the lists of the materials, specifically,  
14 17:03:14 to the ministry of energy, in order to obtain the tax  
15 17:03:18 reduction or exemption?

16 17:03:19 A. I remember that this was crucial because we had to show  
17 17:03:27 this list to the customs authority.

18 17:03:29 Q. Only because you had to show it to the customs  
19 17:03:33 authority?

20 17:03:33 A. This was my understanding.

21 17:03:35 Q. Okay. You said that --

22 17:03:42 A. And it was the practice.

23 17:03:43 Q. So you have stated earlier in your testimony you  
24 17:03:52 addressed certain meetings that took place, I'm sorry, I don't remember the  
25 17:04:02 year, but they were I think on or about early, mid-2021. Meetings that took place around

---

---

01 17:04:08 your claim for the or not your claim, the issue you had  
02 17:04:13 with the ISTD, with the tax didn't regarding the 2016  
03 17:04:17 imported services and the sales tax on them.  
04 17:04:19 Did you address that in your testimony earlier?  
05 17:04:23 A. Yes, of course, but it was -- if you allow me to say.  
06 17:04:29 Q. Of course?  
07 17:04:30 A. What I said before.  
08 17:04:31 Q. Of course.  
09 17:04:31 A. The purpose of the meeting was, at that point, for the  
10 17:04:38 application of GAM, to the MEMR committee.  
11 17:04:44 Q. Did you provide GAM, do you recall providing GAM during  
12 17:04:49 those meetings, do you recall providing them the  
13 17:04:52 contracts and the invoices and the entire financial  
14 17:04:56 documentation covering the cycle of those imported  
15 17:05:00 services?  
16 17:05:00 A. No, we did not.  
17 17:05:02 PRESIDENT: Just a minute.  
18 17:05:04 MR A NAJDAWI: He answered.  
19 17:05:06 PRESIDENT: Excuse me.  
20 17:05:07 A. Next time I remember.  
21 17:05:10 PRESIDENT: Okay. Please remember next time. Sorry.  
22 17:05:13 MR A NAJDAWI: And we can move on to the second question.  
23 17:05:18 You stated earlier I think my dear colleague asked  
24 17:05:23 you about mitigation and there was a discussion  
25 17:05:27 revolving around the amnesty with the ISTD and the

---

---

01 17:05:32 finality of the decision and all of that.

02 17:05:33 My question in that context is as follows. Did you

03 17:05:39 know or were you informed or advised that you could

04 17:05:44 challenge the decision of the sales tax department at

05 17:05:48 the court of law in Jordan?

06 17:05:49 A. I testified on this, that we had the right.

07 17:05:57 Q. That you had the right to challenge the ISTD's decision

08 17:06:01 at the court of law?

09 17:06:02 A. Yes, I testified before on this.

10 17:06:03 Q. I understood. Sorry.

11 17:06:04 Then my dear colleagues will asked you about

12 17:06:11 variation order 10 and the invoice you issued under that

13 17:06:17 variation order for additional works which you have

14 17:06:20 stated were wells in cells 4 and 5. My question is

15 17:06:26 stied you continue the works under the variation order

16 17:06:29 number 10? Did you complete them?

17 17:06:32 A. No, because the variation was approved much later than

18 17:06:40 the end date.

19 17:06:41 Q. Mr Dim tris, you stated earlier in your testimony that

20 17:06:47 the DBE requested that you carry out these additional

21 17:06:51 works and you obliged accordingly and you carried out

22 17:06:56 such works and submitted an invoice. In the DBE's

23 17:07:00 request for these additional works, did you complete the

24 17:07:03 works requested by the engineer?

25 17:07:04 A. No, because the engineer, if I remember well, agreed

---

---

01 17:07:10 with us that the variation should be approved before we  
02 17:07:13 do the works and our offer had the precondition, there  
03 17:07:27 are two issues, one was that the variation order should  
04 17:07:33 have been approved before we start and the second  
05 17:07:38 precondition was that these prices and this service  
06 17:07:42 would be provided while we are present in the project,  
07 17:07:51 while the project was executed, not after the end date.  
08 17:07:57 After our services are stopped ^^.  
09 17:07:59 Q. Thank you, Mr Dim.  
10 17:08:00 But you carried out a fraction of those works prior  
11 17:08:08 to the issuance of the variation order?  
12 17:08:09 A. I explained the reasons. If you want me, I can repeat  
13 17:08:13 them.  
14 17:08:13 Q. Because you were in the project?  
15 17:08:14 A. No, excuse me. Will you allow me.  
16 17:08:18 PRESIDENT: Yeah, of course. Please finish your answer?  
17 17:08:22 A. ^^ these works were extremely urgent. I explained  
18 17:08:26 before that the extension of the wells was obligatory  
19 17:08:33 because these wells were going, were being covered by  
20 17:08:38 the waste of the neighbouring cells. And they would  
21 17:08:44 become damaged or incor rabble. If we waited for the  
22 17:08:49 approval of the variation order, then there would be  
23 17:08:56 damage in the project and nobody wanted this.  
24 17:08:58 Also, the city manager himself asked us to extend  
25 17:09:05 the operation in July. These were the two parts

---

---

01 17:09:11 for June and July. These were the two issues we  
02 17:09:15 understood GAM's need for time to either agree with us  
03 17:09:23 to extend the operation one, two, three years or  
04 17:09:27 whatever, or to find another operator and we will not  
05 17:09:31 leave our client hanging.  
06 17:09:32 This is the reason we did this services.  
07 17:09:37 Q. Thank you, Mr Dim.  
08 17:09:39 PRESIDENT: It's understood.  
09 17:09:40 MR A NAJDAWI: But you agreed to the entirety of the DBE's  
10 17:09:44 request in terms of these additional works?  
11 17:09:46 A. No.  
12 17:09:47 Q. You only agreed for the urgent part?  
13 17:09:49 A. Yes, because the variation order was approved  
14 17:09:55 in December, January, December 2021, January 2022,  
15 17:10:01 I don't remember exactly, but far later than we stopped  
16 17:10:05 servicing the projects.  
17 17:10:06 Q. I'll just ask one more question on this.  
18 17:10:09 PRESIDENT: On this, but you know how many minutes left?  
19 17:10:14 MR A NAJDAWI: How many?  
20 17:10:15 PRESIDENT: For you.  
21 17:10:16 MR A NAJDAWI: No, Mr Chairman.  
22 17:10:18 PRESIDENT: 20 minutes, taking into consideration the  
23 17:10:24 objection time which was added to your time. 20  
24 17:10:33 minutes.  
25 17:10:33 MR A NAJDAWI: Mr Dimitri, are you 100 per cent sure that

---

---

01 17:10:40 when the DBE requested the additional works, you only  
02 17:10:45 agreed to the part of those additional works which were  
03 17:10:49 urgent, namely the wells that you have just mentioned?  
04 17:10:52 A. No, we did not agree anything. What happened was that  
05 17:11:01 the urgency arrived in front of us. We strictly said  
06 17:11:08 that we will do this works when the variation order is  
07 17:11:15 approved. But we will not allow with our presence  
08 17:11:21 there, to have destruction of the project. And top  
09 17:11:30 leave our client hanging without having someone to  
10 17:11:35 operate the works.  
11 17:11:36 Q. Mr Chairman, my question is very simple. Okay --  
12 17:11:38 A. When you ask me and please let me clarify. When the DBE  
13 17:11:45 requested these works he agreed to do the ^^ once only  
14 17:11:49 and I reply, we did not as I to do ther I don't works at  
15 17:11:53 that time they were not urgent. When they started the  
16 17:11:56 discussion.  
17 17:11:56 Q. Clear?  
18 17:11:57 A. Afterwards it became urgent and because we are I think  
19 17:12:01 we are of good faith, we did not want to have damages.  
20 17:12:08 (Discussion off the record)  
21 17:12:17 PRESIDENT: I prefer that we will take a short break for  
22 17:13:19 10 minutes and then resume the hearing.  
23 17:13:20  
24 17:13:20 (5.13 pm)  
25 17:13:43 (Short break)

---

---

01 17:13:43 (55.35 pm)

02 17:35:02 MR A NAJDAWI: Mr Chairman, I just haven't --

03 17:35:05 MR T NAJDAWI: On page 210, line --

04 17:35:10 MR A NAJDAWI: Because we need to show him and his laptop

05 17:35:14 isn't working.

06 17:35:14 TECHNICIAN: I can access it.

07 17:35:18 MR A NAJDAWI: If you can go to page 210, lines 19 to 24.

08 17:35:26 Do you see it in front of you?

09 17:35:47 A. Not yet. (Pause).

10 17:35:52 Q. It starts line 19, Mr Dimitri, with Mr Anaj ^^ no no

11 17:36:15 Mr Chairman, right?

12 17:36:18 WITNESS: Please exhibit R45.

13 17:36:27 MR A NAJDAWI: Line 19, page 210. 209? Sorry. Just for

14 17:36:59 confirm Mr Tim before you start reading because I'm

15 17:37:01 going to ask you a question here. Line 19, I'm going to

16 17:37:04 ask a question on lines 19 to 24.

17 17:37:06 Line 19 starts with Mr A Najdawi no no Mr Chairman,

18 17:37:11 correct?

19 17:37:11 A. Yes.

20 17:37:13 Q. And then line 24 says A. Yes. Correct?

21 17:37:19 A. Yes.

22 17:37:20 Q. I want you to read this answer and I want you to ask

23 17:37:25 a question. Please let me know when?

24 17:37:27 MR H KHIRFAN: Sorry, this out of context.

25 17:37:30 MR A NAJDAWI: I want to remind him of his answer.

---



---

01 17:37:34 MR H KHIRFAN: Let him read what was the question what was  
02 17:37:37 the answer. And it's on record Q he needs to read it.  
03 17:37:39 MR A NAJDAWI: I want him to remind him of his answer and  
04 17:37:43 the context so that I can ask him a question about this.  
05 17:37:47 This is very standard.  
06 17:37:48 PRESIDENT: Okay.  
07 17:37:50 MR H KHIRFAN: I don't know if the witness will understand  
08 17:37:54 the question.  
09 17:37:54 PRESIDENT: Okay, let him ask the question.  
10 17:37:57 MR A NAJDAWI: Mr Chairman,.  
11 17:37:58 PRESIDENT: Okay, ask the question, please. Bra ask him the  
12 17:38:02 question.  
13 17:38:02 MR A NAJDAWI: Did you read it?  
14 17:38:04 A. Yes.  
15 17:38:04 Q. My question is just to when you answered in line 24  
16 17:38:18 "yes", did you mean that you knew the project was  
17 17:38:26 excluded from tax exemption at the time you submitted  
18 17:38:29 a proposal for new phases 2 and 3?  
19 17:38:31 A. In February of 2015, if I remember well. Yes, we  
20 17:38:42 understood at this time, this there was no exemption  
21 17:38:47 from the project.  
22 17:38:47 Q. February 2015 was the time you submitted your proposal  
23 17:38:53 for phases -- new phases 2 and 3?  
24 17:38:55 A. As I explained, it was a budget proposal, because many  
25 17:38:59 things were not determined at the time.

---

---

01 17:39:01 MR A NAJDAWI: Thank you, Mr Chairman. This is done.

02 17:39:06 PRESIDENT: This is the last question?

03 17:39:12 MR A NAJDAWI: We.

04 17:39:13 PRESIDENT: Okay, go to redirect.

05 17:39:15 MR H KHIRFAN: Yes.

06 17:39:16 DR AL BASHIR: Only to what was raised.

07 17:39:19

08 17:39:22 Re-examination by Mr Khirfan

09 17:39:25 MR H KHIRFAN: Mr Dimitri, I will remind I why with the

10 17:39:28 question, so we can put context and just to make link

11 17:39:31 with the cross, so our questions will be coming after

12 17:39:34 the cross only, I will not ask row for any --

13 17:39:37 MR A NAJDAWI: This was not transcribed what I just.

14 17:39:39 PRESIDENT: It is being transcribed.

15 17:39:42 MR A NAJDAWI: Could you please fix this? I can't see.

16 17:39:51 (Discussion off the record) (discussion in Arabic) ^

17 17:40:14 MR H KHIRFAN: Regarding counsel's question, esteemed

18 17:40:26 counsel question, that you requested to initiate

19 17:40:29 settlement negotiations, and after submitting the

20 17:40:33 statement of claim, then refused to pose the deadline

21 17:40:37 for GAM, to submit its response in the arbitration. Can

22 17:40:42 you please explain why you did not consent to pausing

23 17:40:48 GAM's deadline for the commission ^^?

24 17:40:49 A. What is pausing.

25 17:40:51 MR A NAJDAWI: You asked about pausing.

---

---

01 17:40:53 MR A NAJDAWI: Postponing.

02 17:40:55 MR H KHIRFAN: Suspending. It's the same.

03 17:40:59 MR A NAJDAWI: Pausing, okay.

04 17:41:03 A. I will explain what the drove us to this decision. We

05 17:41:17 had been -- our understanding of the actions of GAM and

06 17:41:26 this was our understanding, I don't say that it is an

07 17:41:29 objective fact, okay? But I am asked to explain why we

08 17:41:34 did it was that GAM was continuous trying to postpone

09 17:41:44 the finalisation of our dispute. This happened with the

10 17:41:52 issue of the add dude day for, with the issue of trying

11 17:41:59 to -- not agreeing in any -- in any case, this was our

12 17:42:10 understanding and this was our understanding on one

13 17:42:15 again one time, when GAM had arrived with an agreement

14 17:42:21 with us and then never thrived.

15 17:42:23 Our explanation of the actions of GAM is that they

16 17:42:28 did not want our disputes to be fine liesed by a third

17 17:42:37 person and this was a delay tactic in a few words.

18 17:42:40 MR H KHIRFAN: In relation to Mr Naj's question on whether

19 17:42:49 you ever requested an exemption on design and

20 17:42:55 consultancy services, it wasn't my ^ck).

21 17:42:57 MR A NAJDAWI: Question wasn't ever, it was at any time

22 17:43:00 prior to 2021.

23 17:43:01 MR H KHIRFAN: Whether you requested an exemption on design

24 17:43:07 and consultancy services, whatsoever as Mr --

25 17:43:11 PRESIDENT: Prior to 2021 ^^.

---

---

01 17:43:14 MR H KHIRFAN: Did you tell GAM that you do not want an  
02 17:43:18 exemption on design and consultancy services?  
03 17:43:19 A. We never stated that.  
04 17:43:20 Q. Did GAM ever ask you whether you wanted an exemption on  
05 17:43:25 design and consultancy services?  
06 17:43:26 A. We were never asked.  
07 17:43:27 Q. Did GAM ever tell you that it would not be submitting  
08 17:43:33 for exemption on design and consultancy services?  
09 17:43:35 A. We were never aware of that.  
10 17:43:38 Q. Or that the lists and materials of materials that you  
11 17:43:42 were providing to GAM and the DBE would be the only  
12 17:43:45 thing GAM would submit an application on?  
13 17:43:48 A. We never were aware of this.  
14 17:43:50 Q. Mr Naj mentioned that GAM and/or the DBE were requesting  
15 17:43:58 from the operator certain lists on what you required tax  
16 17:44:04 exemptions on. Were these requests from the DBE or GAM  
17 17:44:09 asking to specify all things both goods and services,  
18 17:44:15 that you require an exemption on or did they only  
19 17:44:18 request for the list of materials?  
20 17:44:20 A. They only requested the list of materials.  
21 17:44:23 Q. So what was your understanding regarding this request  
22 17:44:29 from DBE and GAM?  
23 17:44:30 A. Our understanding was that this, since GAM was handling  
24 17:44:39 this procedure, this was the specific procedure for the  
25 17:44:42 importation of materials and this was necessary as we

---

---

01 17:44:48 know very well, when we pass customs.

02 17:44:50 Q. When providing this list, why didn't you feel the need

03 17:44:54 to also specify services along with the goods and

04 17:44:58 materials?

05 17:44:58 A. It never passed crossed our minds that when a project is

06 17:45:09 characterised as tax and duty exemption, that there are

07 17:45:17 specific -- there should be a specific referral to the

08 17:45:24 services.

09 17:45:25 Q. I refer to the question and bear with me on this,

10 17:45:32 because this is the question that --

11 17:45:33 A. And also I would like to state something on this answer.

12 17:45:36 Q. Please.

13 17:45:37 A. That to put some evidence in this our understanding of

14 17:45:48 this time, is that we on all invoices of important

15 17:45:54 services, we went to the tax authority and we paid the

16 17:46:03 income -- the percentage for income tax which is due in

17 17:46:08 Jordan. The withholding.

18 17:46:11 Q. I refer to the question and discussions surrounding

19 17:46:16 Mr Naj's question on whether you were aware that there

20 17:46:21 were no exemptions in place for the first phase of the

21 17:46:26 project and whether you were aware of this when you

22 17:46:30 signed the 2015 agreement?

23 17:46:32 MR A NAJDAWI: That wasn't my question.

24 17:46:34 MR H KHIRFAN: This is the problem no one and the question.

25 17:46:37 MR A NAJDAWI: Any question was as follow.

---

---

01 17:46:39 PRESIDENT: Whether the question was very crystal clear and  
02 17:46:42 he answers the witness answered it, also ^ crystal  
03 17:46:48 clearly.

04 17:46:48 MR H KHIRFAN: Okay. To follow up on this and clarify any  
05 17:47:10 confusion caused with this, within that. Can you please  
06 17:47:16 tell that when you signed the 2015 agreement, did you  
07 17:47:19 know and belief that the bylaw number 13/2015 was in  
08 17:47:24 effect and that GAM would be applying for these  
09 17:47:28 exemptions for the project.

10 17:47:28 PRESIDENT: Excuse me, Mr Khirfan, he already answered this  
11 17:47:32 question.

12 17:47:32 MR H KHIRFAN: Okay.

13 17:47:33 PRESIDENT: The direct examination ^^ (Arabic spoken).

14 17:47:40 MR H KHIRFAN: Returning to the matter of variation order  
15 17:47:45 number 10 in this current claim, are you claiming  
16 17:47:48 payment from GAM for any scope or services mentioned in  
17 17:47:54 variation order number 10 that you did not perform?  
18 17:47:57 A. Of course not.

19 17:47:58 Q. Nothing further.

20 17:48:01 PRESIDENT: Thank you. Okay. Mr Dimitri tris, my  
21 17:48:08 colleagues and also myself, we have some questions for  
22 17:48:12 you. We will start with Dr Salah.

23 17:48:16

24 17:48:17 Questions by TRIBUNAL

25 17:48:17 DR AL BASHIR: During this period, you were based in Jordan

---

01 17:48:24 or you were based somewhere else?

02 17:48:25 A. You specify the period.

03 17:48:32 DR AL BASHIR: The period of the contract, 2012 to 2021,

04 17:48:36 these nine years?

05 17:48:36 A. We had a joint venture is established in Greece and we

06 17:48:44 had a branch office in Jordan.

07 17:48:46 DR AL BASHIR: I'm asking about your goodself?

08 17:48:50 A. Myself?

09 17:48:52 DR AL BASHIR: Yes?

10 17:48:52 A. I was based in Athens. I came several times in Jordan,

11 17:49:01 but I was not continuously on site.

12 17:49:03 DR AL BASHIR: At the beginning of your evidence to us you

13 17:49:07 said your comanager of the JV; correct?

14 17:49:11 A. Yes.

15 17:49:12 DR AL BASHIR: Who is the other comanager?

16 17:49:14 A. Mr Grammatas.

17 17:49:14 MR H KHIRFAN: Norm's witness.

18 17:49:20 DR AL BASHIR: I have no further questions.

19 17:49:22 PRESIDENT: Dr Musleh please.

20 17:49:27 DR TARAWNEH: Okay. When you were giving phase number 2 of

21 17:49:31 the project in 2015, did you obtain all tax exemptions

22 17:49:40 in goods and materials?

23 17:49:41 A. We did not never obtained the exemptions.

24 17:49:48 DR TARAWNEH: Goods and materials?

25 17:49:51 A. Let me answer.

---

---

01 17:49:52 DR TARAWNEH: Yes, please.

02 17:49:53 A. Please. I will answer your question. I will not go

03 17:49:56 otherwise.

04 17:49:56 I clarified that we never got exemptions ourselves.

05 17:50:04 GAM provided the exemptions.

06 17:50:06 DR TARAWNEH: What do you mean you imported the goods and

07 17:50:12 materials via familiar?

08 17:50:14 A. No. I mean that the procedure, all the procedure was

09 17:50:19 dealt by GAM. This is what I mean. I'm sorry, my

10 17:50:23 English is not very good. So I like to be very clear in

11 17:50:28 my answers. So some exemptions in many cases exemptions

12 17:50:40 was delayed. In such cases, that means we got a letter

13 17:50:46 from GAM, proceed, we will pay for the duties and taxes

14 17:50:57 for the imported material, and then when we get the

15 17:51:03 exemption, we will be compensated by the customs

16 17:51:11 authority.

17 17:51:11 DR TARAWNEH: For your claim number 1, regard bzing your

18 17:51:19 claim for the tax services, when you first claimed to

19 17:51:26 obtain the sales tax in your services from GAM?

20 17:51:30 A. We first claimed when it became, when the tax authority

21 17:51:37 came to us and made the interim claim for sales taxes of

22 17:51:45 2016. This happened in early 2021.

23 17:51:48 DR TARAWNEH: So the source of your claim is the Law Number

24 17:51:56 13/2015?

25 17:51:57 A. Yes.

---



---

01 17:51:59 DR TARAWNEH: Thank you.

02 17:52:03 PRESIDENT: Mr Dimitri tris, can you please, if you know,

03 17:52:15 why the JV did register with the ISTD from the

04 17:52:23 beginning?

05 17:52:23 A. I'm not aware of this fact. I am aware of the fact that

06 17:52:33 from the first day we started, we made the branch office

07 17:52:40 in Jordan, we registered with the ISTD.

08 17:52:43 PRESIDENT: But you don't know why?

09 17:52:45 A. Because you get a licence and you registered with (still

10 17:52:51 question ^ from the ministry of public works and housing

11 17:52:55 and with the Jordanian contractors association?

12 17:52:58 A. Yes.

13 17:52:58 PRESIDENT: And the contractors are not required or not

14 17:53:03 obliged to register with the ISTD?

15 17:53:06 A. No, we have a tax number. Until today.

16 17:53:10 PRESIDENT: But you are not obliged --

17 17:53:14 A. We are registered with ISTD.

18 17:53:16 PRESIDENT: I know. Why? This is the question, why?

19 17:53:19 A. Because we --

20 17:53:20 PRESIDENT: Under the contractor's law, you are not required

21 17:53:23 ^^ to register?

22 17:53:24 A. I have no idea. But normally we -- this is the practice

23 17:53:32 in grease. We thought this is normal.

24 17:53:34 PRESIDENT: Okay.

25 17:53:36 A. We relied on our chartered accountants, tax consultants,

---

---

01 17:53:48 et cetera.

02 17:53:48 PRESIDENT: Mr Dimitri tris, dim tris ^, did you pay any

03 17:53:55 sales tax during the period from 2012 to 2016 on the

04 17:54:05 imported services?

05 17:54:06 A. I do not recall. I suppose we did what was necessary

06 17:54:16 because we have been ^^ by these years by the tax

07 17:54:23 authority.

08 17:54:23 PRESIDENT: But you performed design and consultancy

09 17:54:31 services during these years?

10 17:54:32 A. Yes. But as a , let me explain something. As ^^ we had

11 17:54:50 since we had no issue with the income tax because this

12 17:55:03 income tax for our case as a contractor was on the

13 17:55:08 turnover, we did not feel that we had to go very much

14 17:55:14 and check what our chartered accountants and tax

15 17:55:22 consultants did.

16 17:55:24 PRESIDENT: Okay. What is the total value of the design

17 17:55:44 both by your Joe dean January branch?

18 17:55:46 A. Do you mean the total value of the invoices.

19 17:55:49 PRESIDENT: Yeah, of the design, the imported design, what

20 17:55:53 is the value of the imported design?

21 17:55:55 A. If I remember, recall well, the sales tax was imposed on

22 17:56:06 6 million JD invoices.

23 17:56:12 PRESIDENT: I know.

24 17:56:14 A. Yes.

25 17:56:14 PRESIDENT: I know that for a fact. But what is the total

---

---

01 17:56:18 value you paid for such imported design.

02 17:56:21 DR TARAWNEH: For the design only.

03 17:56:23 PRESIDENT: Only design.

04 17:56:25 A. I do not remember the break down.

05 17:56:27 PRESIDENT: And the other services, what does they represent

06 17:56:34 or what does they include? What the components of the

07 17:56:39 other services?

08 17:56:39 A. Yes.

09 17:56:40 PRESIDENT: The consultancy services?

10 17:56:42 A. The issue of the definition I will explain immediately.

11 17:56:48 MR A NAJDAWI: Mr Chairman, may I have just a recess with

12 17:56:54 the tribunal?

13 17:56:55 PRESIDENT: Without the witness being with us?

14 17:57:03 MR A NAJDAWI: Please.

15 17:57:04 PRESIDENT: Present?

16 17:57:05 MR A NAJDAWI: Yes, please.

17 17:57:07 PRESIDENT: Okay, can you please give us two minutes?

18 17:57:10 WITNESS: Okay.

19 17:57:12

20 17:57:20 (The witness left the hearing room)

21 17:57:20 MR A NAJDAWI: Mr Chairman, a huge part of our defence after

22 17:57:31 we conclude the parts on principle, is a matter of

23 17:57:36 evidence and a major part of that as stated during the

24 17:57:44 statements is that we are left with a single allegation

25 17:57:47 saying that there were design and engineering

---

---

01 17:57:50 consultancy services imported by the local branch.

02 17:57:54 However, no evidence whatsoever actually evidences this

03 17:58:00 allegation or links it to the project. Nothing links it

04 17:58:04 to our project.

05 17:58:04 Therefore, I had the same thought of asking the

06 17:58:11 witness, but I hope that whatever answer he gives does

07 17:58:19 not replace the need for written evidence in this

08 17:58:21 regard.

09 17:58:21 PRESIDENT: I think we are aware of this. We are perfectly

10 17:58:27 aware of this.

11 17:58:28 But I'm trying to understand what kind of

12 17:58:32 consultancy services are within the project.

13 17:58:36 MR A NAJDAWI: I understand.

14 17:58:37 PRESIDENT: What are the components.

15 17:58:38 MR A NAJDAWI: I understand. I'm okay.

16 17:58:39 (Tribunal confers)

17 17:59:10 PRESIDENT: Please call the witness.

18 18:00:01

19 18:00:04 (The witness returned to the hearing room)

20 18:00:04 WITNESS: Do I continue to answer?

21 18:00:19 PRESIDENT: I apologise for disturbance. However you may

22 18:00:24 answer the question, what are the components of such

23 18:00:26 services? What do they consist --

24 18:00:29 A. Please.

25 18:00:29 PRESIDENT: What do they consist of?

---

---

01 18:00:31 A. Please excuse me for interrupting. I began to say  
02 18:00:39 something which I believe that you, as an engineer, will  
03 18:00:43 understand better than anybody.  
04 18:00:45 When we say design, there is the initial design and  
05 18:00:53 then there are minor modifications, construction  
06 18:00:58 drawings, as-built drawings, et cetera.  
07 18:01:00 So in all these invoices, we performed shop drawings  
08 18:01:14 for pipework, for various things like that.  
09 18:01:20 A second issue we had in this project, but it's  
10 18:01:25 normal in such type of projects, is that the landscape  
11 18:01:31 is not solid. What I mean. When you work in this type  
12 18:01:39 of waste, you excavate here, the level you excavated one  
13 18:01:46 week before when you work next in a neighbouring place,  
14 18:01:53 changes.  
15 18:01:54 So we had to always to update our design with all  
16 18:02:00 this changes.  
17 18:02:01 Further, the personnel we had in Jordan, which the  
18 18:02:13 foreign personnel and some of the Jordanian personnel,  
19 18:02:17 because we had some very good Jordanian engineers, could  
20 18:02:25 not -- needed a continuous consultation with the  
21 18:02:33 engineers we had in our office for reports, for market  
22 18:02:43 research, for negotiations, with the suppliers,  
23 18:02:48 technical or commercial.  
24 18:02:49 And then the reporting we have in this project you  
25 18:02:57 can contest yourselves, that it was a very voluminous.

---

---

01 18:03:04 We encountered many unexpected problems. We had, as you  
02 18:03:14 well know, regarding general set 2 ^, regarding various  
03 18:03:21 issues we had. And these issues where it was not  
04 18:03:26 possible from the site that they take it under, on  
05 18:03:35 their, from org in Jordan, let's say, to take it on its  
06 18:03:40 back.  
07 18:03:40 So we had a continuous support in this complex  
08 18:03:49 project, because it was not only construction, it was  
09 18:03:51 also operation, to our people in Jordan. We did project  
10 18:03:59 management. We did contractual management. This  
11 18:04:06 contractual management was not in the purview of the  
12 18:04:11 local people.  
13 18:04:11 So we provided all this. We did 3D models of as  
14 18:04:23 I explained before, with had continuous change of  
15 18:04:26 landscape. We had 3D models which we followed up all  
16 18:04:31 this. And in operation as you know, this is very  
17 18:04:38 sensitive story. This type of projects need very much  
18 18:04:50 attention and care, and we had continuous input in the  
19 18:04:57 processing of the data we had every month.  
20 18:05:00 So we had a world of people working in our  
21 18:05:13 central -- working for us outside Jordan, which were  
22 18:05:18 expensive people and people that you keep even if you  
23 18:05:23 don't have jobs, and you pay their salaries. This is  
24 18:05:27 the situation. This was the situation. This was the  
25 18:05:30 type of services we provided.

---

---

01 18:05:32 PRESIDENT: Thank you, Mr Dimitri tris. I don't have any  
02 18:05:38 further questions, but you are kindly requested to  
03 18:05:45 provide us with your ID that we will have a copy of it  
04 18:05:50 to add it, to be added to the file.  
05 18:05:52 WITNESS: I anticipated. (Handed).  
06 18:05:55 MR H KHIRFAN: Can I have just one --  
07 18:06:00 PRESIDENT: ^^.  
08 18:06:05 MR H KHIRFAN: Exactly.  
09 18:06:06 DR AL BASHIR: Please do not answer.  
10 18:06:09 MR H KHIRFAN: Dr Tarawneh, he asked a question --  
11 18:06:17 WITNESS: Do you want me to go out?  
12 18:06:19 PRESIDENT: No.  
13 18:06:19 MR H KHIRFAN: He ask a question and it's on the record,  
14 18:06:22 says so the source of your claim is the Law Number  
15 18:06:29 13/2015? So I believe that this terminology is just  
16 18:06:34 more maybe very legal and (Arabic spoken) the source of.  
17 18:06:38 So I just want through the tribunal, just to ask the  
18 18:06:42 question again about the difference between when you say  
19 18:06:46 the source of this obligation. Is it under the contract  
20 18:06:49 or under the law? Just to make it clear for him to  
21 18:06:51 answer.  
22 18:06:52 MR A NAJDAWI: Mr Chairman, he already gave the  
23 18:06:54 answer. -- (overspeaking) -- ^^ -- (overspeaking) -- ^^.  
24 18:06:55 DR TARAWNEH: When I answered your question, you were  
25 18:06:59 claiming the service tax. You said, sorry, the sales

---

---

01 18:07:06 tax for services. You said in 2015, they told us there  
02 18:07:13 was a new regulation or a new law or a new bylaw which  
03 18:07:20 dictated that the services ^^ energy were exempted from  
04 18:07:27 taxes. Am I true?  
05 18:07:30 A. Yes.  
06 18:07:30 DR TARAWNEH: So when you made your claim about the  
07 18:07:35 exemption of sales tax in your services, you claimed  
08 18:07:41 them according to this law or according to the contract  
09 18:07:44 as you're lawyer said?  
10 18:07:47 A. Please let me respond a little bit lengthier.  
11 18:07:52 DR TARAWNEH: Take your time.  
12 18:07:54 A. In our negotiations in 2015, it was clear to us, in  
13 18:08:01 order to reduce our offer, that our offer would be free  
14 18:08:08 of taxes and duties for imported whatever, taxes and  
15 18:08:18 goods and services. This was the principle. And this  
16 18:08:28 became contract in 2015, not be exact wording I'm  
17 18:08:34 saying, but with the wording that GAM will get the tax  
18 18:08:40 exemption and we will benefit from it without reduction  
19 18:08:44 of our contract price.  
20 18:08:45 But we had the assurances that this application  
21 18:08:54 would be approved by GAM.  
22 18:08:57 PRESIDENT: It is perfectly understood. However --  
23 18:09:03 MR A NAJDAWI: -- (overspeaking) -- ^^.  
24 18:09:05 PRESIDENT: However -- no, no. I believe that he clarified  
25 18:09:14 his previous answer, but still on the record, there are

---



---

01 18:09:20 answers written and they are on the record.

02 18:09:24 Last thing, Mr Dimitri introduce. We will finish

03 18:09:30 now and we will reconvene tomorrow.

04 18:09:33 You he not allowed to discuss your testimony today

05 18:09:41 or the testimonies of other witnesses with them or with

06 18:09:47 the experts or with the team members of the two couples.

07 18:09:51 You are not allowed under Jordanian law to discuss any

08 18:09:55 of what has been said today, what you testified today

09 18:10:02 with any of other witness or expert or the members of

10 18:10:09 your team.

11 18:10:09 WITNESS: Okay.

12 18:10:10 MR H KHIRFAN: Can he attends the hearings going forward?

13 18:10:13 PRESIDENT: Did you object to this.

14 18:10:17 MR H KHIRFAN: We send this via email.

15 18:10:20 PRESIDENT: They didn't object.

16 18:10:21 MR A NAJDAWI: In utmost good faith, Mr Chairman, we are

17 18:10:24 fine with this, but this is baring in mind that he was

18 18:10:29 present during the project's lifetime and he will be

19 18:10:33 present during the time where our witnesses will be

20 18:10:37 present and there was a certain level of back and forth,

21 18:10:41 back when they were performing the project between them

22 18:10:46 and the employees of GAM.

23 18:10:47 So I wouldn't expect that this would result in any

24 18:10:51 issues towards our witnesses, it will not result in any

25 18:10:56 interruptions or any sort of gestures towards our

---

---

01 18:11:00 witnesses. In good faith, we are okay with his presence  
02 18:11:04 in future hearings.  
03 18:11:05 PRESIDENT: Agreed.  
04 18:11:07 MR H KHIRFAN: Good faith is assumes.  
05 18:11:09 PRESIDENT: Thank you. Ladies and gentlemen.  
06 18:11:13 (6.11 pm)  
07 18:11:20 (The hearing adjourned until 9.30 am on the following day)  
08 18:11:20 (The hearing adjourned until 9.30 am on the following day)  
09 19:11:14 Test test so operating there was an existing cell.  
10 19:13:54 Operating the cell was the responsibility of the JV.  
11 19:13:58 MR A NAJDAWI: The cellist, yes. The operation service  
12 19:14:03 include the cell, cells 1, 2 and 3. They don't just  
13 19:14:06 reference the power plant. However, the existing  
14 19:14:09 facility aspect is only the leachate drainage system,  
15 19:14:13 which is separate facility, it's a drainage facility  
16 19:14:16 which pours into a main pump house and this is outside  
17 19:14:19 the body of the cell.  
18 19:14:21 But you are telling Mr Naj, that the management  
19 19:14:30 system for the leachate is part of the greater  
20 19:14:36 responsibility to manage the leachate.  
21 19:14:38 MR A NAJDAWI: Yes.  
22 19:14:39 Here's your claimant's counsel tells us that this is  
23 19:14:49 not a part of the of are you for's responsibility.  
24 19:14:54 MR A NAJDAWI: May I answer.  
25 19:14:57 COURT REPORTER: Sorry, I've just got a technical problem.

---

---

01 19:15:04 I just needs like probably three minutes. Sorry.

02 19:15:06 PRESIDENT: Okay.

03 19:15:08 (Discussion off the record)

04 19:15:13 MR A NAJDAWI: Look, there's a lot of reliance and emphasis

05 19:25:29 being placed on rop raise AI acceptance certificate,

06 19:25:31 which your excellency was right in asking about the

07 19:25:34 effect of that. To start with, this is not

08 19:25:37 a construction contract. This is a DBO. The contract

09 19:25:40 and there is a huge difference between a database O

10 19:25:42 contract and a construction contract.

11 19:25:43 Secondly, of ^^ certificate tance certificate.

12 19:25:50 PRESIDENT: Why does that change the standard in.

13 19:25:52 MR A NAJDAWI: Because you're no longer in possession of the

14 19:25:54 facility after you issue an operational acceptance

15 19:25:58 certificate and therefore, the issue of identifying

16 19:26:03 defects, be it defects in designs or construction, is an

17 19:26:07 ongoing liability on the operator and this is as part of

18 19:26:11 operations.

19 19:26:12 And as part of operations, the services themselves

20 19:26:15 are defined in a way to capture repair works and

21 19:26:19 rehabilitation, they do not just stop at any defect

22 19:26:23 liability period which they have talk about regarding

23 19:26:27 the operational acceptance certificate. This does not

24 19:26:29 stop here. They had skew scriv position and control of

25 19:26:31 the cell. They knew everything and the power plant.

---

---

01 19:26:34 They knew everything that was going on.  
02 19:26:35 What was particularly -- what is particularly  
03 19:26:40 something to note here is that they were also concealing  
04 19:26:44 what was going on in terms of negative aspects in their  
05 19:26:48 operations.  
06 19:26:49 What to we need to prove? We need to prove that in  
07 19:26:52 the T aspect of the TBOT which were not transferred  
08 19:26:57 a proper fat. I do not need to two back to  
09 19:27:00 a denegligent in design. I do not deed to two back to  
10 19:27:02 the deeffect in construction. I do not need to am  
11 19:27:05 tribute it to an operational fault. They transferred  
12 19:27:07 something which is not safe, which is deficient, which  
13 19:27:09 is damaged.  
14 19:27:10 And there is no question that if that is the case,  
15 19:27:13 then it is their response.  
16 19:27:14 There no needs to gabbing to a root cause.  
17 19:27:19 PRESIDENT: Sorry.  
18 19:27:20 DR AL BASHIR: Sorry, what does the operation certificate  
19 19:27:23 mean for you?  
20 19:27:23 MR A NAJDAWI: The operational acceptance certificate  
21 19:27:25 essentially means that the completed the construction  
22 19:27:30 regardless it was good construction or not, this is  
23 19:27:33 similar in every other project.  
24 19:27:35 And then an operational acceptance certificate about  
25 19:27:47 issued on tests on commissioning, meaning the main

---

---

01 19:27:51 functions of the facility have been seen whether in dry  
02 19:27:55 or wet commissioning of that plant.  
03 19:27:56 Those functions do not mean when they are seen, once  
04 19:28:01 an operational acceptance certificate is issued, they do  
05 19:28:04 not mean that the liability stops here. Because there  
06 19:28:08 are latent defects, there are deficiencies, there are  
07 19:28:12 operational faults that may come afterwards. There are  
08 19:28:17 damages that occur to the plant because of poor  
09 19:28:19 maintenance, because of poor operations, because of an  
10 19:28:22 action or omission by a certain personnel or someone  
11 19:28:25 coming a third party coming from outside.  
12 19:28:27 The contract being a DBO. The contract places  
13 19:28:34 emphasis, we have an additional requirement, which is T.  
14 19:28:38 Therefore decreases the emphasis.  
15 19:28:39 MR H KHIRFAN: No, there is no T.  
16 19:28:43 MR A NAJDAWI: Of course there is you have to trance  
17 19:28:46 transition acceptance plan. What are you saying.  
18 19:28:47 PRESIDENT: Okay, it is not the question.  
19 19:28:49 MR A NAJDAWI: Let me continue because I don't interrupt.  
20 19:28:51 PRESIDENT: Mr Najdawi, sorry, but you are arguing the whole  
21 19:28:55 case.  
22 19:28:55 MR A NAJDAWI: But you asked something.  
23 19:28:56 PRESIDENT: No, the question is very simple. The burden and  
24 19:29:02 what does the certificate -- in your opinion, does the  
25 19:29:08 certificate of acceptance for each phase have any way or

---

---

01 19:29:15 have any value or not? In your opinion. This is the  
02 19:29:19 question.  
03 19:29:20 MR A NAJDAWI: The only weight it had is that in that  
04 19:29:30 limited time of doing tests on commissioning, which are  
05 19:29:35 dry or wetted, they're not full extend, they're not for  
06 19:29:38 a years it's a week or two weeks. They have the weight  
07 19:29:41 of saying that during those two weeks, the power plant  
08 19:29:45 functioned generally according to general functions.  
09 19:29:50 PRESIDENT: And the basis for this assertion is what?  
10 19:29:52 DR AL BASHIR: It was operable at that time.  
11 19:29:57 MR A NAJDAWI: At that time and at that time only. This  
12 19:30:02 does no extend to include proper operation and  
13 19:30:05 functional acceptance beyond that time.  
14 19:30:07 PRESIDENT: And the basis for this assertion that its  
15 19:30:11 limited in time and scope is in.  
16 19:30:13 MR A NAJDAWI: I'll tell you U because there is an on going  
17 19:30:15 liability to guarantee the functional and the technical  
18 19:30:19 coherence of the power plant and the technical and  
19 19:30:23 functional compatibility or compliance of the power  
20 19:30:26 plant with the contract. And this guarantee is  
21 19:30:29 expressly stated in the contract as part of transfer.  
22 19:30:32 So they have to transfer something eventually that  
23 19:30:37 is in date state and condition. You can't give them  
24 19:30:40 operations after operational acceptance certificate and  
25 19:30:43 then doing actions or operating it badly such as to

---

---

01 19:30:48 damage the purchase plant and then say well, they're not  
02 19:30:51 responsible because two years ago or three years ago on  
03 19:30:54 operational acceptance certificate was issued.  
04 19:30:56 DR AL BASHIR: Understood.  
05 19:30:58 MR A NAJDAWI: But it doesn't approve the design, the  
06 19:31:01 as-built.  
07 19:31:01 MR A NAJDAWI: It's functions only, functional output. Ba  
08 19:31:07 ba first of all what he said it's not a design a bieldz  
09 19:31:11 business contract. This means there is the design build  
10 19:31:14 period under which they render the design build  
11 19:31:17 services. You finish there's completion, there's tests  
12 19:31:20 commissioning there's operational certificates during  
13 19:31:23 all this time the DBE attends the tests they check the  
14 19:31:26 prop other and good functioning they check that the  
15 19:31:29 works constructed meet every requirement in the design  
16 19:31:32 build services appendix. After that, this is clearly  
17 19:31:35 stipulated in the contract. And that the function ^.  
18 19:31:38 PRESIDENT: We are not arguing again the case.  
19 19:31:40 MS ABAZA: ^^ just to complete this point, afterwards, when  
20 19:31:44 the operational acceptance certificate is issued, the  
21 19:31:47 defect liability period starts. This is in the  
22 19:31:50 contract. The contract specifically says after the  
23 19:31:52 defect liability spires, there is no more liability on  
24 19:31:55 the operator except for fraud or deceit. These similar  
25 19:32:00 exclusions that we're all aware of. After that, defect

---

01 19:32:03 liability -- responsibility for design build services is  
02 19:32:06 distinction issued. What Ahmad is saying and this is  
03 19:32:09 true, if the operator missed up or they made serious  
04 19:32:15 grave merchandise takes in their operation service, of  
05 19:32:17 course the operational acceptance certificate does not  
06 19:32:21 protect them. Entia are you ^^ does not protect. But  
07 19:32:25 they've not maiming claims of defects of the operational  
08 19:32:30 services. They're making claims of defect of the design  
09 19:32:32 build services.  
10 19:32:32 MR A NAJDAWI: That is not true.  
11 19:32:35 PRESIDENT: Thank you. It is understood. We have read all  
12 19:32:39 the submissions.  
13 19:32:40 COURT REPORTER: Sort are you, again, sir. I apologise,  
14 19:32:44 I've got another problem.  
15 19:32:45 PRESIDENT: Okay.  
16 19:32:59 (Discussion off the record) test test test test test.  
17 21:47:02 Testing mic number 1, testing mic number 2 chairman,  
18 21:48:02 testing mic number 3,.  
19 21:48:04 Testing mic number 4, testing mic number 5,.  
20 21:48:13 Testing mic number 6, test mic number 7, test mic  
21 21:48:24 number 8.